Section A

NOTICE:

(a) This is a DRAFT Request for Proposal (RFP). The U.S. Government is NOT looking for proposals at this time. The purpose of this document is to obtain industry comments and feedback on its contents prior to release of the Final RFP. The Government is not utilizing this document to negotiate or solicit proposals, and issuance of this DRAFT RFP does not serve to bind the Government in any way. This DRAFT RFP is subject to change prior to final issuance for the Formal RFP. The Government will not reimburse Offerors for any preparation of responses to this DRAFT RFP.

(b) Comments regarding this DRAFT RFP are due to the individuals below, via email, no later than close of business on 10 March 2026.

Anna Whitcomb, Contracting Officer: anna.e.whitcomb2.civ@army.mil

Amanda Carlson, Contract Specialist: amanda.l.carlson25.civ@army.mil

Derek Rooks, Contract Specialist: derek.s.rooks.civ@army.mil

REQUIREMENTS SUMMARY:

1. Solicitation W519TC-26-R-0003 is for the production of propellants and the operation and modernization of the Radford Army Ammunition Plant (RFAAP) beginning in Fiscal Year (FY) 2027. This solicitation will result in an award of a single Indefinite Delivery, Indefinite Quantity (IDIQ) contract effective as of the date of award, which will also identify the date of full operation control to the awardee also.

2. The resultant contract will consist of a base period with five (5), one-year ordering periods; an evaluated option for five (5), one-year ordering periods exercised at time of award; and two additional unevaluated 10-year options. Therefore, the maximum period of performance is 30 years should both 10-year unevaluated options be exercised based on successful performance of the contract during the initial 10-year period. Performance evaluations during the initial period will lead to an option decision in year five (5) of the initial period. The resulting contract will also include a one-year transition occurring during the contract's final ordering period to allow for completion of deliveries and ongoing projects.

3. During the life of the resultant contract (inclusive of all evaluated and unevaluated options), the Government is entitled to order a maximum dollar amount of $20,144,020,112.00, inclusive of all Contract Line Item Numbers (CLINs). The Minimum Guaranteed Amount (MGA) for the IDIQ contract awarded as a result of this solicitation is $5,000.00. In accordance with (IAW) FAR 16.504(a)(2), Indefinite-quantity contracts, the successful Offeror will receive the MGA and shall provide a process map at the time of contract award. The MGA will be included in the first delivery order.

4. General information regarding this solicitation can be found on the System for Award Management (SAM) website at www.sam.gov by searching solicitation number W519TC-26-R-0003. The Government has established a Virtual Library (VL) on the SAM.gov site for Offerors to use in support of proposal development. Instructions for obtaining access to the VL are available on SAM.gov. Technical Data Package (TDP) information related to this Solicitation can be found within the VL. The data furnished by the Government to Offerors under this solicitation may only be used in support of proposal development. No other use of this data is authorized.

5. This acquisition is restricted to only those firms within the U.S. or its outlying areas, as authorized by 10 U.S.C. 3204(a)(3) and FAR 6.103-3, Industrial mobilization; engineering, developmental, or research capability; or expert services. The applicable Justification and Approval, Control Number 26-004, was approved on XX March 2026.

6. Contractors must have an active registration in SAM to do business with the Federal Government. Contractors are required to be registered in SAM at the time of proposal submission. The website for registering in SAM is www.sam.gov .

7. Specifications and drawings in the Technical Data Packages (TDPs) are Distribution D and Export Controlled.

8. The Government has conducted a Baseline Facility Assessment (BFA) and Baseline Environmental Condition Assessment (BECA) at RFAAP for the purpose of presenting the current operating state of equipment and environmental conditions at the facility. This assessment is intended to be used for informational purposes only to assist in determining the suitability and conditions of the processes, facilities, and environmental conditions at the facility. In using any of the information and evaluations in the BFA or BECA, Offerors should independently verify and determine whether to include specific actions in their proposals and plans and must assume all liability for the success or failure of these actions. The Government expressly makes no representations as to the probability of the success of the assets and opportunities examined in these reports, nor the accuracy or completeness of information in total. The final assessment of the adequacy of the equipment, infrastructure, and environmental conditions must be made by report users. The results will be available to Offerors via RFAAP's VL.

9. Utilizing a best value subjective tradeoff evaluation, and subject to availability of funds, this solicitation will result in the award of a hybrid supply and service IDIQ contract to one Offeror consisting of Firm-Fixed-Price (FFP) CLINs for production items, CLINs for modernization efforts that may be either Fixed Price or Cost-Reimbursable, and FFP or Incentive Fee CLINs for Direct Funded Performance Work Statements (PWS's). The Government is contemplating Oral Presentations as part of proposal submission requirements.

10. With the exception of Volume 6, Indemnification Request Package, Offerors' proposals shall be submitted no later than the date specified in Block 9 of the SF33, and

shall be valid for a minimum of 365 days after submission. Offerors shall input 365, as a minimum, into Block 12 of the SF33.

11. Receipt of an Offeror's proposal in response to this solicitation is an affirmation that the contractor has had access to and received adequate information to prepare a proposal. The successful proposal may be incorporated into the resultant contract in whole or in part at the time of the award. If incorporated, the Offeror's proposal will therefore be a material term of the contract and failure to fully implement it could result in termination. No revisions or changes to the contractor's proposal may be made after award without prior approval of the Contracting Officer.

12. Offerors are advised to carefully read Sections L and Section M before submitting their proposals. Data requested for evaluation has been clearly identified in the Section L narrative. All Offerors are responsible for ensuring that their proposals contain all the information to be included per this solicitation and will permit a complete and accurate evaluation of the proposal. Offerors should ensure all fill-ins and blanks are complete within the solicitation. Offerors should ensure that any proposal submitted in response to this solicitation and any issued amendments include all information required by the solicitation. The Government will not make assumptions concerning an Offeror's intent, capabilities, facilities or experience. The Offeror is responsible for understanding all requirements of the solicitation. Evaluation of offers shall be in accordance with the evaluation guidelines and specific evaluation procedures in Section M of this solicitation. All Offerors shall submit their proposals and any proposal revisions, if required, in strict accordance with the instructions set forth in the solicitation and any issued amendments. The Government must be able to access information along with any submitted changes within proposals readily and easily and will not be responsible for not being able to view necessary information that was not submitted IAW the instructions set forth in the solicitation.

13. The Government reserves the right to open discussions. In the event the Government determines discussions are necessary, the Contracting Officer shall establish a competitive range comprised of the most highly rated proposals. Only those Offerors within the competitive range will be included in discussions and considered for an award.

14. A Small Business Subcontracting Plan is required at the time of proposal submission; see FAR 52.219-9, Small Business Subcontracting Plan, for details. IAW FAR 19.702(b)(1), subcontracting plans are not required from Small Business concerns.

15. Offerors are responsible for checking with the Contracting Officer and/or Contract Specialist to ensure that the proposal submitted has been received by the Contracting Officer and/or Contract Specialist. This must be done by the date/time set in the solicitation for receipt of offers.

16. The Government will not reimburse Offerors for incurred costs associated with preparation of proposals.

Section A

17. All contractual provisions and clauses specified are obligatory for the prime contractor. The prime contractor is responsible for flowing down and enforcing contractual provisions and clauses upon all subcontractors, suppliers, and vendors. The Government makes special note of flowdown requirements for FAR clause 52.211-15 Defense Priority and Allocation Requirements.

18. Offerors shall not propose any assumptions that take exception to the solicitation. Should an Offeror propose assumptions that do take exception to the solicitation, the Contracting Officer reserves the right to deem the proposal unacceptable and ineligible for award.

19. A SECRET Facility Security Clearance is required of the operating contractor of RFAAP due to the criteria identified in Attachment 0023, DD254 - Contract Security Classification Specification. A SECRET Facility Security Clearance is required prior to contract award. The Government reserves the right to conduct an assessment of offerors' eligibility to obtain a SECRET Facility Security Clearance prior to contract award. Reference Narrative C-08, Facility Security Clearance Requirement, for additional details.

20. Offerors are advised that the current operating contractor will encumber and maintain the RFAAP facility through 31 December 2026. Both the incumbent and the successful Offeror will be contractually required to negotiate contract transition and start-up activities in good faith to affect a complete, safe, and secure assumption of responsibilities without impacting facility operations, production deliveries, and ongoing modernization projects as required by Attachment 0008, PWS 8 - Transition In and Attachment 0017, PWS 17 - Transition Out. The successful Offeror will take over operational control of the facility at 0000 Eastern Time on XX Month 2028, unless otherwise negotiated with the incumbent and contractually executed by the Contracting Officer.

21. Pursuant to FAR 9.103, a contract will only be awarded to a contractor that the Contracting Officer determines to be responsible. Offerors must be able to demonstrate that they meet the standards of responsibility as set forth in FAR 9.104. The Government reserves the right to conduct a pre-award survey on any or all Offerors, and if applicable, joint venture partners, and major subcontractors.

22. IAW FAR 9.5, Organizational and Consultant Conflicts of Interest, it has been determined that the companies, and any affiliates or subsidiaries, listed below have an Organizational Conflict of Interest (OCI) and are prohibited from offering a proposal as a prime contractor or participating as a sub-contractor or a member of any team competing for this contract. The Contracting Officer reserves the right to reject any offer it considers to represent an OCI.

(1) The Shenton Group Inc.
(2) Azimuth Consulting Services (Azimuth)

(3) B-Skies Inc.
(4) Franklin Engineering Group Inc.
(5) NEPSCO, LLC

Note: The term “DBOC” is a commonly used term that covers the entities of The Shenton Group, Azimuth Consulting Services and Franklin Engineering Group.

23. Offerors are advised that the Government will be using contractor support from Azimuth and Northeastern Energetic Process Services Company (NEPSCO), LLC during the source selection process. As Azimuth and NEPSCO will have access to Offerors' proposals, in addition to the aforementioned restrictions, Offerors are required to execute a Non-Disclosure Agreement (NDA) with Azimuth and NEPSCO. Azimuth and NEPSCO are prohibited from participating as a subcontractor on any efforts/projects executed under the resultant contract. Offerors shall submit the executed NDAs with its proposal. The NDAs found at Attachments 0029 and 0030 serve as templates and may be altered if mutually agreed upon by both parties.

24. The items to be procured under this effort are determined to be hazardous; therefore, the Contracting Officer may request a Pre-Award Safety and Security Survey.

25. Sec 806 TBD

26. The contract will consist of FFP CLINs for production items. Quantities and delivery schedules will be listed in the respective delivery order(s) to be issued after IDIQ award. All proposed prices should be entered in Attachment 0019 – Price Matrix. Prices not entered on the Price Matrix will not be considered. First Article Test (FAT) costs are required to be included for each Ordering Period IAW Narrative E-06, First Article Test (Government Testing) and shall be priced IAW Attachment 0019. Offerors should NOT assume FATs will be waived and must provide FAT costs as required to be considered for award. However, the Government reserves the right to require or waive FAT throughout the life of the contract. If requesting indemnification, the Offeror must complete a Price Matrix or both pricing with indemnification and pricing without indemnification.

27. The following PWS’s may be directly funded, for the first ten (10) years of this contract, subject to availability of funds. It is the Government’s intent that funding requirements for these direct funded PWS’s decrease steadily over the initial ten-year period with the final year reaching $0.00 funding requirement.

PWS 1 - Environmental
PWS 2 - Facility Planning
PWS 3 - Fire Protection & Emergency Services
PWS 4 - Government Property
PWS 5 - Occupational Health
PWS 6 - Security & Anti-Terrorism
PWS 7 - Maintenance

Section A

PWS 8 - Transition In – Will be posted at a later date
PWS 9 - Safety
PWS 10 - Energy & Utilities
PWS 11 - Facility Ops & Production Reporting
PWS 13 - Technology & Cybersecurity
PWS 15 - ALTESS
PWS 17 - Transition Out
PWS 18 - Ground Water Monitoring & Industrial Restoration

*PWS 14 (ACO Staff Support) and 16 (Ammunition Materiel Management) have been deleted.

28. The following PWS will be funded utilizing tenant rent revenue:

PWS 12 - Armament Retooling and Manufacturing Support (ARMS)

The successful Offeror is required to abide by the terms of the RFAAP ARMS Tenant Use Agreements in existence and effective beyond 31 December 2026. The ARMS Tenant Use Agreements are provided at Attachment 0027.

29. Reference Narrative H-02, Restriction of Critical Items and Components, for a list of critical items and components whose manufacture are restricted to sources within the U.S. or its outlying areas.

30. Government Property: The Government intends to provide the property listed at Attachment 0024 - Government Furnished Property, to the successful Offeror under this contract in an "as is, where is" condition. The Government will retain ownership of property (including intellectual property) and rights to this property, as well as all property acquired and/or utilized by the contractor. See PWS 4 Government Property, Narrative H-01 Ownership of Property and Rights to Intellectual Property, and FAR 52.245-1, Government Property, for details.

31. The contract is F.O.B. Origin. The Government is only responsible for the costs associated with the shipment of the deliverable end item; the contractor is responsible for all other shipping, to include components, ingredients, and equipment.

32. The Government is directing a minimum production workload to RFAAP. The Government shall not be responsible for the Offeror achieving its workload plan if the Government orders/funding are different than the current estimate and/or purchased from sources other than RFAAP. The Government has included the most current publicly available Program Objective Memorandum (POM) forecast to use as a reference point of the DoD's 5-year plan for how the Government intends to allocate resources. (see Attachment 0032).

Section A

33. The Offeror shall not assume that the Government is required to invest in modernization activities beyond the amount intended to be awarded as a result of this solicitation, based on the Offeror's proposal(s) for Volume 2.

34. The Government reserves its right to award modernization projects to the prime operator, the U.S. Army Corps of Engineers, or a third party.

35. The Contracting Officer will re-negotiate, as required, the terms and conditions of this contract if future Base Realignment and Closure (BRAC) legislation or other Government decisions alter current plant status/missions. The Government shall retain the right to modify the mission of the facility; this may include, or result in, the potential closure of the facility.

36. The Contractor is advised that contract changes, to include engineering changes, will be authorized only by the Contracting Officer IAW the terms of the resultant contract. No other Government personnel, whether in the act of technical supervision or administration, is authorized to make any commitment or instruct the contractor to perform or terminate any work, or to incur any obligation.

37. If a requirement arises that is considered Construction, as defined by FAR 2.101, the applicable construction provisions and clauses will be added to the appropriate task order.

38. The ACC-RI Contracting Officer is the only individual authorized to issue orders under the resultant contract.

39. The Contracting Officer reserves the right to conduct a Post Award Conference after contract award.

40. Clauses and provisions from the FAR, DFARS, AFARS, and supplements thereto are incorporated into this document by reference and in full text. Those incorporated by reference have the same force and effect as if they were given in full text.

41. Offerors may submit questions regarding this RFP via email to the Contract Specialists, Ms. Amanda Carlson (amanda.l.carlson25.civ@army.mil) and Mr. Derek Rooks (derek.s.rooks.civ@army.mil) and the Contracting Officer, Ms. Anna Whitcomb (anna.e.whitcomb2.civ@army.mil). Questions must be received by Month XX, XXXX 1200 Central Time to ensure answers will be provided.

42. This solicitation should not be discussed with any Government employee except the Contracting Officer, Ms. Anna Whitcomb, or her representatives, Ms. Amanda Carlson and Mr. Derek Rooks. Failure to adhere to this restriction may be grounds to declare your firm ineligible for consideration of any award resulting from this competitive acquisition. Any formal communications such as request for clarifications, discussions, and/or information concerning this solicitation should be submitted in writing to Contract Specialists, Ms. Amanda Carlson (amanda.l.carlson25.civ@army.mil) and Mr. Derek

Rooks (derek.s.rooks.civ@army.mil) and the Contracting Officer, Ms. Anna Whitcomb (anna.e.whitcomb2.civ@army.mil). Please indicate the solicitation number in the subject line of all correspondence.

43. When the Final RFP is posted, the closing date and time for receipt of proposals will be annotated on page one (1) of this solicitation. The Government is currently requesting proposal submission within 60 calendar days of issuance of Final RFP.

Section B

CLIN 1000 Production Quantity
All proposed unit prices for Production shall be entered into Attachment 0019. Delivery Schedules will be identified on individual Delivery Orders.

If requesting Indemnification, proposed unit prices shall also be entered into Attachment 0019.

CLIN 2000 First Article Test
All proposed prices for First Article Tests shall be entered into Attachment 0019. Delivery Schedules will be identified on individual Delivery Orders.

If requesting Indemnification, proposed unit prices shall also be entered into Attachment 0019.

CLIN 3000 Direct Funded PWSs
Proposed Prices for Direct Funded PWSs shall be entered into Attachment 0019.

CLIN 4000 Propellant Reassessment
Proposed Prices for Propellant Reassessment shall be entered into Attachment 0019. See B-02 for details.

CLIN 5000 Modernization Project
Modernization efforts will be directly funded.
All proposed prices for Modernization shall be entered into Attachment 0019.

Delivery Schedules will be identified on individual Delivery/Task Orders.

CLIN 6000 CDRLS
CDRLs shall be not separately priced. Information required by the CDRLs shall be delivered as specified in Exhibit A.

Section B

B-01 PRICE MATRIX
(a) The RFAAP price matrix is applicable to Government direct buys procured under the contract resulting from this solicitation, as well as third party orders that are received in support of systems contracts that utilize RFAAP components. Prices in support of third party orders shall not exceed the prices established in the RFAAP price matrix as a result of this competition, or if future unevaluated options are exercised and negotiated. This requirement is also applicable to any future products not currently on the matrix that are subsequently negotiated and added.

(b) All proposed prices shall be entered into the price matrix at Attachment 0019. If the Offeror is requesting indemnification, the appropriate matrix within Attachment 0019 shall be submitted as well.

(c) Unit prices under this acquisition shall not contain more than two (2) decimal places.

(d) Evaluation quantities and weights are included in the price matrix. The evaluation quantities and weights are estimates based on planning quantities at this time and are not obligatory under this contract; they are not binding and shall not be relied upon for execution purposes. Not meeting, or exceeding, the evaluation quantities should be expected and will not constitute revision of the price matrices or grounds for a request for equitable adjustment. If the Government's requirements do not result in orders meeting or exceeding the evaluation quantities, it shall not constitute the basis for a request for equitable adjustment or claim. All orders placed against this contract are subject to availability of funds.

(e) In the event unevaluated option periods are executed in the future, the RFAAP contractor agrees to utilize a mutually agreeable pricing curve, in lieu of range pricing, to establish prices for production items. Information regarding implementation of pricing curves in DoD acquisitions can be found at the following website:

https://www.acq.osd.mil/asda/dpc/pcf/pricing-tools.html

(f) Pursuant to FAR 52.215-23, Limitation on Pass-Through Charges, the Government will not pay excessive pass-through charges on the procurement cost of utilities under the RFAAP contract. The Contracting Officer will determine if additional excessive pass-through charges exist based on an analysis of the value the Contractor adds to its subcontracts.

(g) Economic Price Adjustment: All matrix unit prices are subject to an economic price adjustment in accordance with Narrative I-02, Economic Price Adjustment - Natural Gas and Narrative I-04, Economic Price Adjustment - Escalation.

(h) Non-Competitive Contract Actions: No profit or fee will be allowed on the actual purchase of utilities under non-competitive contract actions awarded under the contract resulting from this solicitation.

(i) FFP Delivery Orders (DO) and DO modifications will be utilized to place requirements for nitrocellulose, propellants, energetic materials and components based on the quantities and the ordering period within which the DO is placed.

(j) Production Base Support (PBS) efforts (inclusive of Modernization projects) will be negotiated and awarded via separately priced Fixed Price or Cost Reimbursable plus Fee (Incentive or Fixed) DOs or DO modifications. The successful awardee will not be permitted to charge costs associated with execution of the PWS scopes to Production Base Support efforts as direct costs or indirect allocations.

(k) New Facilities Under On-going Modernization Initiatives: The Government intends to share the most current information available regarding scope, schedule, status, and various other items for the modernization projects being executed by the incumbent operator that will be completed subsequent to award of the contract resulting from this solicitation. The transition of these new facilities to the successful Offeror will not constitute change conditions to this contract. Additionally, the Government will provide its best estimate of project completion dates, but actual completion dates may vary from these estimates. Delays in project completion will not constitute change conditions to this contract. Any variance in the actual date facilities are transitioned to production to those provided in support of this solicitation will not be grounds for a change condition, request for equitable adjustment, or claim.

(l) The Government may require modernization analysis, interface, engineering support, and the procurement of components and raw materials. Such efforts will be negotiated and awarded via separately priced Fixed Price or Cost Reimbursable plus Fee (Incentive or Fixed) DOs or DO modifications.

(m) The contractor shall promptly propose fair and reasonable prices for components and/or propellants and nitrocellulose for third party contracts in support of any Government contract.

(n) All products presented for acceptance to the Government under the resultant contract shall be fully compliant with the TDPs provided with the solicitation. Any cost impact due to Government approved configuration change(s) during contract execution will be limited exclusively to the costs directly attributable to the change(s), require substantiation, and be negotiated IAW the Changes Clause (52.243-1, Changes-Fixed Price).

(o) Definitions:

Section B

Direct Government Sale: Operator contracts directly with the Government for a RFAAP product regardless of end user.

Third-Party Government Sale: Operator contracts with a non-Government entity for a product that is ultimately incorporated into a system to be purchased by the US Government.

Commercial Sale: Operator contracts directly with a non-Government entity for a product that is not ultimately incorporated into a system purchased by the US Government.

B-02 PROPELLANT REASSESSMENT

(a) In order to determine the functional serviceability of propellant prior to loading into a component item, the systems contractor/producer is responsible for submitting a sample of the propellant lot(s) with a date of manufacture beyond two years of contract award for testing at:

CDR, CCDC, DEVCOM ARMAMENTS CENTER (W907CC)
AMMUNITION RECEIVING OFFICE
FIDLAR ROAD, BLDG.806 (propellant surveillance lots B938)
PICATINNY ARSENAL, NJ 07806-5000

(b) The sample or samples shall be submitted not less than 120 days prior to the date that loading is to commence. The following information shall accompany the sample shipment:

(1) Point of contact information at the systems contractor/producer's facility.

(2) Lot number(s) and NSN of propellant/propelling charge requiring assessment.

(3) Estimated start date of project requiring reassessment.

(4) Propellant/Propelling Charge Lot number(s).

(5) Serial or identification numbers of the propellant containers/drums.

(c) Sample selection will be accomplished by or in the presence of a Government Quality Assurance Representative. The sample shall represent the lot(s) undergoing test.

(1) The following table shall be used when determining the number of representative samples that must be selected:

Propellant Type	# Drums per lot	Sample Size
M2, M9 Flake	1 to 5	1 pound
Spheroidal Ball,	6 to 24	2 pounds*
60, 81 & 120mm	15 to 29	3 pounds*
Mortar, Artillery	30 plus	5 pounds*

Section B

Stick	# Boxes per lot	May be cut to appropriate length per QAR to accommodate shipping container
	1 to 5	1 pound
	6 to 14	2 pounds*
	15 to 29	3 pounds*
	30 plus	5 pounds*
Propelling Charges	Standard Units of issue to closely approximate ½ pound of charge weight per lot	1/2 pound

*The number of pounds indicates the different number of drums/containers that shall be sampled.

(2) Randomly select the propellant drums/boxes in accordance with the required sample size, and remove to a propellant holding area approved by the Government for a minimum of 36 hours to permit the contents of the drum/boxes to acclimate to ambient temperature. The individual sample containers/bags, shall be adjacent to the drums/boxes. One at a time, open each drum/box and with a clean, brass conductive scoop or a non-sparking cutting device for stick propellant, and remove the required sample, place in the sample container/bag and immediately seal. After sampling is performed immediately reseal the drum/box the sample was drawn from. Continue until all samples are selected, using one bag or container per drum or box to collect the sample. Mark each individual sample with the propellant lot number, drum/box number from which the sample was removed, and annotate with the ship to address identified in paragraph a.

(d) The sample shall be prepared for shipment to CCDC in accordance with the following:

(1) Place bulk propellant samples in a clean and dry watervapor proof antistatic bag or container of minimum size to hold the sample and to allow for grounding as required. Seal bag by one of the following methods:

(i) folding the opening over three times to close and apply two single wraps of tape that overlaps itself a minimum of one inch.

(ii) gather the opening together and tie with a twist tie.

(2) Propellant shall not be removed from increment bags.

(3) Large grain or stick propellant shall be individually wrapped in plastic or be bagged and taped.

Section B

(4) Outer pack for samples shall consist of standard ammunition packs meeting the requirements of Title 49, Code of Federal Regulations or latest Bureau of Explosives (BOE) Tariff 6000.

(e) The results of the propellant reassessment pertaining to its suitability for use shall be provided by the PCO within 90 days after submittal to the laboratory at CCDC.

(f) The contractor is responsible for bearing the cost of the Propellant Reassessment performed at the CCDC Propellant Laboratory.

Section C

C-01 TECHNICAL DATA PACKAGES

The following drawings and specifications are applicable to this solicitation. Exceptions can be found at Attachment 0020 TDP Section C Exceptions.

CLIN	NOMENCLATURE	NSN	TDP #
0001	COAI-PROP PAP7993 F/CHRG,PROP,155MM,M231	1376-01-489-1519	12991140:19200
0002	COAI-PRPLT M31A2,CHG,PROP,155MM, M232A1	1376-01-526-6467	13010119:19200
0003	COAI-PRPLLANT M30A1 CHG,PROP,155MM, M232	1376-01-489-1755	12993885:19200
0004	PROPELLANT, M1 SP	1376-00-009-0041	MIL-DTL-60318-T2:19200
0005	PROPELLANT, M1 MP	1376-00-009-0042	MIL-DTL-60318-T1:19200
0006	PROPELLANT M6, CHG,PROP,155MM,M1192A	1376-01-053-9370	MIL-P-63404:19200
0007	PROPELLANT, M10	1376-01-055-8598	MIL-P-48099:19200
0008	COAI - PROPELLANT M64 SINGLE-PERFORATED	1376-01-546-3736	13015504:19200
0009	COAI - PROPELLANT M64 MULTI-PERFORATED	1376-01-546-3733	13015503:19200
0010	PROPELLANT GRAIN F/MK126 RKT MTR-APOBS	1376-01-590-0313	87012A1115
0011	PROPELLANT, DOUBLE-BASE SHEET, TYPE N-5	1376-01-055-5971	MIL-P-17689:19200
0012	PROPELLANT, M9 FLAKE	9999-99-999-9999	MIL-DTL-32322:19200
0013	PROPELLANT, M5 FOR USE IN SPECIAL APPLI	1376-01-053-9368	MIL-P-48089:19200
0014	PROPELLANT, JA2 7-PERF GRANULAR, CYLINDR	9999-99-999-9999	13053606:19200
0015	PROPELLANT, SCDB	1376-01-D01-3479	13051227:19200
0016	PROPELLANT, STICK, DEGN	1376-01-D01-6160	13051228:19200
0017	PROPELLANT, RPD-596 M1002	1376-01-725-8540	13033596-1:19200
0018	PROPELLANT, RPD-596 M865	1376-01-725-9406	13074472:19200
0019	PROPELLANT, M14 M865 & M724A2	1376-01-373-5883	12956320-1:19200
0020	BENITE STRANDS	1376-00-764-8063	MIL-B-45451:19200
0021	FILM, INHIBITING	1340-01-055-2782	9240825:19203
0022	AA-2 NAVY	1376-01-055-0994	AS2543:30003
0023	MK90 ROCKET GRAIN NAVY	1376-01-160-3075	233AS106:30003
0024	AA-6, PROPELLANT DOUBLE-BASE	1376-01-122-5290	AS3028
0025	PROPELLANT AFP-001 FOR THE GAU-8 SERIE	9999-99-999-9999	200610330
0026	PROPELLANT MK44, AFP-001	9999-99-999-9999	28081855
0027	PROPELLANT, M2	1376-01-085-7243	MIL-P-60989:19200
0028	COAI F/PROPELLANT M9,FLAKE(FOR USE IN 40	1376-01-587-6080	13021760:19200
0029	NITROCELLULOSE, GRD A TYPE I	1376-01-130-6392	MIL-DTL-244-A-T1:19200
0030	NITROCELLULOSE, GRD A TYPE II	9999-99-999-9999	MIL-DTL-244-A-T2:19200
0031	NITROCELLULOSE, GRD B TYPE I	1376-01-185-5467	MIL-DTL-244-B-T1:19200
0032	NITROCELLULOSE, GRD B TYPE II	9999-99-999-9999	MIL-DTL-244-B-T2:19200
0033	NITROCELLULOSE, GRD B TYPE III	9999-99-999-9999	MIL-DTL-244-B-T3:19200
0034	NITROCELLULOSE, GRD C TYPE I	1376-01-185-5468	MIL-DTL-244-C-T1:19200
0035	NITROCELLULOSE, GRD C TYPE II	1376-01-185-5470	MIL-DTL-244-C-T2:19200
0036	NITROCELLULOSE, GRD D	9999-99-999-9999	MIL-DTL-244-D:19200
0037	NITROCELLULOSE, GRD E	9999-99-999-9999	MIL-DTL-244-E:19200
0038	NITROCELLULOSE, GRD F	9999-99-999-9999	MIL-DTL-244-F:19200

TDPs for the items identified above can be found on SAM.gov in the Virtual Library. It is the Offeror's responsibility to ensure it has obtained the most recent specifications that the Government has made available in the Virtual Library to support proposal development.

The Government will incorporate approved engineering change proposals (ECPs) into the resulting contract as they are submitted, reviewed, and approved.

(a) TDPs will be obtained electronically via the Contracting Opportunities posting for this requirement on the SAM.Gov website. You must have an account prior to accessing any TDP(s). To register for an account in SAM.Gov, please visit https://secure.login.gov/?request_id=d84abb0e-1664-4378-afa0-f29595aefb72 and select create account. The toll free helpdesk phone number is (866)606-8220 and for

International (334) 206-7828. Vendors are responsible for placing correct information in SAM.Gov.

(b) You may need to use special software to view the documents that are posted on SAM.Gov. This viewing software is freeware, available for download at no cost from commercial websites like Microsoft and Adobe. Additionally, some TDPs may require ImageR or Lucent viewers to view the TDP(s) and are available as freeware at:

ImageR Viewer: http://g6msd.redstone.army.mil
Lucent Viewer: http://www.ec-edi.com/

(c) The TDP(s), TDPL(s) and their corresponding outstanding Engineering Exceptions for this solicitation will be accessible via the solicitation posting in Contracting Opportunities (as described below) from the date of issue through the time specified on the solicitation for receipt of offers.

(d) FOR UNRESTRICTED TDP(s):

(1) TDPs for this solicitation are unrestricted and can be accessed electronically via the solicitation posting. The TDP and all necessary TDP documents will be posted under the Attachments / Links tab. You must have a SAM.Gov account prior to accessing the TDP.

(2) To access the TDP(s), click directly on the document you want to view under the Attachments / Links tab. You will be prompted for your username and password prior to gaining access to the TDP.

CLIN: N/A
TDPL Date: N/A

(e) FOR RESTRICTED TDP(s):

TDPs and any other related documents, if applicable, for this solicitation are restricted and can be accessed electronically via the solicitation posting, with valid Contractor login credentials. TDPs and any other related documents are posed with various options, such as Restricted and Export Control. These additional controls are described below:

(1) Access to RESTRICTED TDP(s):

TDP(s) that have been marked as Restricted can be accessed electronically via the solicitation posting, with valid Contractor login credentials. TDP(s) that have been marked as Restricted will require U.S. Government approval prior to gaining access to the requested information. To request access log in to SAM.Gov, go to the applicable solicitation under Contracting Opportunities within SAM.Gov, select the Attachments / Links tab, and then click on the Request Explicit Access button. Completion of a Use and Non-Disclosure Agreement form may be required prior to gaining access to the

TDP. Please allow 2-3 working days to process your request. You will receive a system generated email from donotrely@sam.gov saying A Notice Manager from ACC-RI has updated your access to Controlled Documents. Click here to sign in and view the request details or go to the notice to access the Controlled Documents. If your request is denied you will be able to see further details of why you were and how to proceed.

(2) Access to EXPORT CONTROL TDP(s)

(i) TDP(s) that have been marked as Export Control can be accessed electronically via the solicitation posting, with valid Contractor login credentials. In addition, to obtain access to these TDP(s), vendors and Contractors must have a current DD 2345, Military Critical Technical Data Agreement on file with the Defense Logistics Information Service (DLIS). If you do not have an approved DD 2345, Military Critical Technical Data Agreement on file with DLIS, then you will not be able to access the TDP. To obtain certification, go to https://www.dla.mil/HQ/LogisticsOperations/Services/JCP/DD2345Instructions/ click on Documents and follow the instructions provided. Processing time is estimated at five (5) working days after receipt.

(ii) TDP(s) that have been marked Export Control will require U.S. Government approval prior to gaining access to the requested information. To request access log in to SAM.Gov, go to the applicable solicitation under Contracting Opportunities within SAM.Gov, select the Attachments / Links tab, and then click on the Request Explicit Access button. The requestor MUST BE the data custodian that is listed on the DD 2345. Please allow 2-3 working days to process your request. If the company MPIN changes, the user will be required to verify the MPIN again to gain access to the Export Control TDP(s). Completion of a Use and Non-Disclosure Agreement form may be required prior to gaining access the TDP. You will receive a system generated email from donotrely@sam.gov saying A Notice Manager from ACC-RI has updated your access to Controlled Documents. Click here to sign in and view the request details or go to the notice to access the Controlled Documents. If your request is denied you will be able to see further details of why you were and how to proceed.

(iii) If multiple individuals in your company need access to the Export Control TDP for solicitation, it can be obtained from your data custodian listed on the DD 2345.

(iv) TDP(s) that have an Export Control Warning Notice are subject to the Arms Export Control Act (Title 22, U.S.C., Sec 2751, et. seq.) or the Export Administration Act of 1979, as amended, Title 50, U.S.C., App. 2401 et. seq.

CLIN: Various
TDPL Date: Various

(3) Further dissemination of Restricted TDP(s) must be in accordance with provisions of DoD Directive 5230.25. This also applies to distribution of the TDP to all SUBCONTRACTORS at every level.

(4) Upon completion of the purposes for which the restricted technical data has been provided, the Contractor is REQUIRED to destroy all documents, including all reproductions, duplications, or copies thereof as may have been further distributed by the Contractor. Destruction of this technical data shall be accomplished by: shredding, pulping, burning or melting any physical copies of the TDP and/or deletion of removal of downloaded TDP files from computer drives and electronic devices, and any copies of those files.

(f) Questions related to registration in SAM.Gov should be directed to https://fsd.gov/fsd-gov/home.do . The helpdesk phone number is (866)606-8820. Vendors are responsible for placing correct information in SAM.Gov. A user guide for SAM.Gov can be found here: https://dodprocurementtoolbox.com/site-pages/contract-opportunities

C-02 MODERNIZATION AND DIRECT SERVICES

This contract encompasses Direct Funded Performance Work Statements (PWSs) and any separately funded modernization project requirements referred to as Production Base Support (PBS). The PBS Industrial Facilities (IF) program to modernize/rehabilitate Government-owned production facilities that are used for making Department of Defense munitions. In certain instances, construction of facilities occurs which utilize the Corps of Engineers (COE) as the design agency and construction project manager. The Operator may have to work directly with other agencies as a result of any orders issued under this agreement. Projects may also include demolition and relocation of facilities. The execution of any project is subject to availability of funding. The PBS requirements may be very broad in scope and could include, as examples: fixing a roof, removing a building, or upgrading a piece of machinery.

Resultant Task Orders can be Fixed Price, Fixed Price Incentive, Cost Reimbursable, Cost Plus Fixed Fee, or Cost Plus Incentive Fee. The proposed pricing in the successful Offeror’s Price Matrix (Attachment 0019) will be used for the prices in which the Government has agreed to pay the Operator for the performance of those Direct Funded PWSs and for the NC Facility.

The Operator shall provide all management, supervision, personnel, labor, generalized or specialized equipment necessary to perform the functions detailed in each Task Order. This is to be done in strict accordance with all the terms, conditions, general and special provisions specified by Task Order. Schedules for work not already proposed will be negotiated along with Price.

The Operator's work and responsibility shall include all contractor planning, programming, administration, and management necessary to provide all repairs, construction, design build and any related services as specified in each individual Task Order. The work shall be conducted by the Operator in strict accordance with all applicable laws, regulations, and/or any changes, revisions thereto. The Operator shall ensure that work meets or exceeds the specifications in the Task Order. The Operator shall perform its own administrative services necessary to accomplish the work; i.e., supply, procurement, quality control, job order shop operation, financial controls, maintenance of accurate, complete records, files, and libraries of documents such as Federal, State, and local regulations, technical manuals, manufacturer's instructions and recommendations, and any other similar documents. The work shall meet or exceed the most current industry leading benchmarks and conform to federal, state and local codes for the applicable scope of work. The work shall conform to military and civil works regulations to the maximum extent practicable where equivalent industry standards cannot be applied. In addition to the above, the Operator shall comply with any local codes or RFAAP Plant specific codes.

Facilities and scope will be identified in each Task Order. Work will vary from project to project and will require extensive knowledge of the functional operation relating to the efficient use of the facility, equipment, and facility support systems, and building structures. Since the facilities may be in full operation, the Operator shall be required to minimize interference with the daily operation of the facilities when performing requirements.

The Operator must assume the responsibility for performance of any facilities managed, designed, erected, and constructed under any Task Orders awarded to it under this contract.

C-03 RESPONSIVENESS TO GOVERNMENT

The Operator will be required to coordinate work with the Contracting Officer and his/her designees, as required. This includes Request for Proposal/Request for Quote response timelines, which are binding as identified within the respective letters/requests to the Operator, unless otherwise agreed to in advance by the Government Contracting Officer.

The Operator shall maintain cooperative and businesslike relations with other facilities support contractors and Government workers with whom he/she comes in contact.

The Operator shall respond, in a reasonable period of time agreed to by both parties, to all Government requests for information necessary to accomplish the inherently governmental function of managing this contract.

NOTE: Although the Government will enlist the assistance of Subject Matter Experts (SMEs) including COE Staff, Administrative Contracting Officer (ACO) Staff as well as other Government SMEs, the Contracting Officer is the ONLY person who is able to bind the US Government in any way. Any change orders, schedule and/or design modifications, or other changes that may alter the requirements of the individual Task Orders, even minimally, shall be authorized by the cognizant Contracting Officer on a case-by-case basis.

Section C

C-XX MODERNIZATION SUPPORT FOR THE INCUMBENT OPERATING CONTRACTOR

The successful awardee will be required to support the incumbent's execution of these modernization projects to final completion by entering into agreements with the incumbent that address, at a minimum, the following:

- Providing facility access, support facilities, and personnel necessary for project execution (facilities, maintenance, safety, health, and environmental, emergency response, security, property, etc.)
- Ensuring the incumbent receives on-site infrastructure and other provisions from office space, IT, vehicles for operation within the limited area, equipment, etc.
- Providing analytical lab and research and development support as necessary
- Ensuring availability of existing plant equipment (nutsches, transporters, etc.) as required to commission and transition facilities until project acceptance
- Providing and including costs for utilities, energy usage, and other processes necessary for project execution (i.e., filtered water, river water, steam, electrical, plant air, waste water treatment, explosive waste disposal, treatment of explosive contaminated items, etc.), to include commissioning and transition to production
- Maintain and provide qualified operators to run new facilities
- Maintaining, coordinating the timing of, and providing raw materials/commissioning materials
- Providing required levels of intermediate materials and downstream facility processing to support incumbent commissioning requirements
- Utilize incumbent standards and procedures

C-04 PROGRAM MANAGEMENT REVIEWS (PMR)

The Contractor shall support/host periodic onsite Program Management Reviews (PMRs) at the request of Capability Program Executive Ammunition & Energetics, RFAAP Government Staff, or Army Sustainment Command (ASC) (minimum of three times per year) in accordance with paragraph 2.1.5.1 of PWS 2 - Facility Planning.

C-05 MATERIAL SAFETY DATA SHEETS

FAR 52.223-3, Hazardous Material Identification and Material Safety Data, indicates failure to submit the Material Safety Data Sheet (MSDS) prior to award may result in the apparently successful Offeror being considered non-responsive and ineligible for award. However, MSDSs are not required to be submitted with the Offerors' proposals but will be required from the successful Offeror subsequent to award.

C-06 FACILITY SECURITY CLEARANCE REQUIREMENT

Requirements of this contract will require the contractor to have access to classified material up to and including the SECRET level. As such, a Facility Security Clearance at the SECRET level is required. Classified material must be handled in accordance with the current National Industrial Security Program Operating Manual (NISPOM), DoD 5220.22-M, Department of the Army Information Security Program, AR 380-5, and any local security classification guidance and source documents. Remaining security requirements, to include handling of sensitive information, are stated on Attachment 0023, DD 254 - Contract Security Classification Specification.

C-07 SAFEGUARDING PERMANENT AND ENDURING RECORDS
(a) The contractor shall implement a process to, and shall capture, catalog, retain, and preserve records (which includes, but is not limited to data, technical data and documents) that are necessary for the operation and maintenance of RFAAP facilities, equipment, and systems (to include present/past Research and Development activities); and contribute to the safety of RFAAP personnel and protection of RFAAP property. Permanent records from this contract and from prior contracts shall be organized, maintained and archived in designated locations for use by both the Government and contractor representatives during this contract; and retained for use during successor contracts. The contractor shall maintain and provide an index (in electronic format) upon Government request in accordance with CDRL XXXXX describing the structure of records by type, title, designated storage media and locations. Records shall be organized such that they are recoverable; either through cataloging, indexing, and/or arrangement by building, area, equipment number, or other functional grouping. The requirement to comply with this narrative will be effective upon contract award. Preservation of historical records will include any documentation provided by the Government and/or transitioned by the incumbent to the successful awardee, as necessary.

(b) Permanent records shall include, but not be limited to, the following:

(1) Manuals, specification sheets, spare parts lists, maintenance procedures, engineering drawings and two and three dimensional computer-aided design models, supplied by vendors or original equipment manufacturers with new equipment, facility or utility systems and components.

(2) Procedures and drawings developed by the contractor and prior contractors or provided to the contractor or prior contractors for operation and maintenance of RFAAP property (real and personal) and processes to include production; drawings for construction, fabrication, and modification of property, including design analyses and records of significant deviations of as-built configurations from designs. This includes, but is not limited to: standard operating procedures (SOPs), manufacturing instructions, process instructions, engineering standards, process change equipment change records, calibration settings, detailed maintenance procedures, maintenance job aids, corrective and preventative maintenance logs, preventative maintenance tasks and schedules, plant protection standards, control systems documents and source code, test procedures, analytical test procedures, analytical compatibility test results, analytical test data, electrical transient analyzer program (ETAPS) models, geospatial information systems (GIS) data, inventory control system data and any equivalents.

(3) Safety data, analyses and test results supporting safety site plans and establishment of safe operating conditions (e.g., hazard analyses, results of barricade/hopper tests, sensitivity testing of energetics, testing of physical/software safeguards/interlocks, design or structural analyses). This includes, but is not limited to: relief calculations, Safety Action Logs, Process Hazards Analyses (PHAs) (current and prior), Safety Data Sheets (SDS) Electrical Area Classifications and any equivalents.

(4) Manufacturing process and inspection equipment performance testing related to equipment capabilities, quality inspection and AAIE.

(5) Results of compliance monitoring/testing/inspections required by federal, state, and local laws or regulations; permits; or stipulated in PWSs and/or clauses in this contract. This includes, but is not limited to: Environmental Action Logs and any equivalents.

(6) Analytical data, certificates of conformance, batch records and any equivalents.

(c) Designated representatives authorized by the Contracting Officer shall have access to permanent records during the course of this contract. Upon request by the ACO or Contracting Officer, the contractor shall provide copies of permanent records for use by the Government.

(d) Procedures shall be established by the contractor to instruct personnel involved in receiving, developing, using or storing records on proper records accession and handling. Records stored electronically in software systems or file sharing sites shall not be degraded or lost due to software, server, or storage system migration/replacement.

(e) Consistent with other rights in technical data provisions of this contract (e.g., Narrative H-01, Ownership of Property and Rights to Intellectual Property), the Government shall have no less than Government Purpose Rights to all permanent records defined in this clause.

(f) The contractor shall provide access to data pursuant to this narrative to the Contracting Officer and representatives designated by the Contracting Officer during the course of this contract. The contractor must deliver all applicable technical data to the Government on an annual basis by no later than 31 December of each year and certify that it is free of all proprietary information. After the initial full transfer to the Government, subsequent transfers on the one-year cycle shall only be updated or new documents. Data shall be delivered in its current form as of the date of submission. The form/media to be used for data delivery (e.g., electronic, flat file) will be specified by the Contracting Officer at that time and must facilitate its transfer to, and use by, the Government. The contractors support and performance of this data deliverable will be provided at no additional cost to the Government and requests for data pursuant to the terms of this clause will not be subject to the changes clause.

(g) Data under this narrative shall be provided at the end of the contract and is authorized for release to prospective bidders.

C-08 CONFIGURATION CHANGE MANAGEMENT DOCUMENTATION

(a) The contractor may submit Engineering Change Proposals (ECPs) and Requests for Variance (RFVs) for the requirements in the Government provided Technical Data Package (TDP). The contractor shall prepare and submit ECPs, NORs, and RFVs as required by the accompanying DD Form 1423, Contract Data Requirements List (CDRL). If a Value Engineering Change Proposal (VECP) clause is included on this contract, VECPs shall be submitted in the same manner as ECPs.

(1) ECPs - The contractor may request a permanent change to the requirements specified in the TDP or any other baseline documentation by submitting an ECP. ECPs shall be submitted to include all Notices of Revision (NORs) necessary to completely define the requested change. Each ECP shall be accompanied with at least one NOR per affected document. The contractor shall not present any production items for acceptance incorporating any change to the TDP or other baseline documentation until notified by the Government the ECP has been approved and incorporated in the contract.

(i) Page 1 of DD Form 1692 (or equivalent) shall be submitted for all ECPs. Pages 2-7 of DD Form 1692 shall be submitted when required to properly explain all the potential logistics and technical impacts of the proposed change. DD Form 1695 NOR or DD Form 1695-1 Tabulated NOR (or equivalents) shall be submitted to completely describe the desired change on each affected document.

(ii) All ECPs submitted by the contractor will be routine priority unless otherwise justified. If the contractor considers the ECP to be emergency or urgent, they shall include justification within 48 hours of submittal of the ECP.

(2) RFVs - The contractor may request to temporarily depart from a requirement specified in the TDP or any other baseline documentation, by submitting an RFV. RFVs may be submitted either pre-production (formerly known as Request for Deviation (RFD)) or post-production and prior to acceptance by the Government (formerly known as Request for Waiver (RFW)). DD Form 1694 (or equivalent) shall be submitted for all RFVs. The contractor shall not present any production items for acceptance with any nonconformance to the requirements in the TDP or other baseline documentation until notified by the Government the RFV has been approved and incorporated in the contract.

(b) Submission of requested changes - The submission of an ECP or RFV by the Contractor will not impact the required delivery dates specified within the contract, shall not constitute excusable delay in the performance of this contract by the Contractor or in any way relieve the contractor from compliance with the contract delivery schedule. If a delivery date change is needed, it must be negotiated with the Contracting Officer and documented via modification to the contract. The submission of an ECP and/or RFV by the Contractor shall not preclude the Government from exercising its rights under any clause of the contract.

(c) Specifications - Permanent proposed changes to specifications which are part of the TDP or baseline documentation shall be requested with an ECP and NOR (i.e. Specification Change Notices (SCNs) are not required).

C-09 RFAAP RESEARCH AND DEVELOPMENT CAPABILITY REQUIREMENTS
The RFAAP contractor shall be capable of providing on-site Research & Development (R&D) capabilities at RFAAP to support new product development initiatives, scale-up of newly developed processes, and improvements to current production processes. This capability shall address required disciplines to perform R&D related activities related to nitrocellulose and propellants.

Development and Scale Up: The contractor shall be capable of providing the personnel, knowledge, and processes to successfully execute the development of new propellant formulations, ingredients, manufacturing methodologies and processes. This includes the scale-up of production processes for propellants and other critical ingredients, as well as propellant development (e.g., grain geometry, perforations), rheology and die design. The Contractor will engage with various DoD and third-party R&D customers, as necessary, and be capable of responding to solicitations for externally funded R&D activities.

Support to Production Operations: The Contractor shall be capable of supporting production of legacy energetic/propellant formulations and ingredients using legacy processes. This may include improvements to legacy process, modifications to current formulations, technology insertion opportunities, and investigative functions when necessary.

Analytical, Performance, and Hazards Testing: The Contractor shall be capable of performing analytical testing in support of RFAAP manufacturing operations, investigative functions, and direct funded customer requests. These requirements may include energetic performance, thermal stability, sensitivity, identification/qualification, and physical measurement testing.

C-10 KEY PERSONNEL
Prior to replacing any key personnel as outlined in the offeror's proposal, Volume 1 Production & Operations, the contractor shall notify the Contracting Officer of the change and provide information regarding the proposed replacement, including a resume. Key personnel positions may not remain vacant for more than 90 days. The USG may provide feedback on the replacement's qualifications, but the contractor retains full responsibility for the selection and performance of key personnel.

C-11 TECHNICAL DATA PACKAGE BASELINE
The contractor shall provide a TDP Baseline Report identifying the TDP configuration of each individual item produced under the resultant contract (i.e. the production items included in Attachment 00XX). The TDP configuration is defined by the contract and any

subsequent modifications to the contract that result in configuration changes. The report shall be prepared as required by Exhibit X, CDRL ZZ-XXX, and shall describe the TDP configuration (i.e., ECPs) in effect on the date that the report is issued. The TDP Baseline shall be for informational purposes only. The contract and any subsequent modifications shall take precedence. Exceptions to TDP requirements shall not be included without approval from the Contracting Officer.

C-12 INVENTORY MANAGEMENT

1. Responsibility and Ownership
   The Contractor shall be solely responsible for the management, control, and disposition of all propellant, materials, production by-products, chemicals, intermediates, off-specification materials, NC Fines, residual materials, residual products, and production excess materials (hereinafter collectively "Contractor-Controlled Materials") generated or acquired during the performance of this contract. The Contractor is responsible for all inventory and waste management decisions related to these materials.

2. Storage and Time Limitations
   The Contractor shall not store any Contractor-Controlled Materials on-site for a period exceeding the duration permitted by applicable federal, state, and local regulations and permits. In no event shall the storage time for any such materials exceed a maximum of two (2) years from the date of generation or acquisition.

3. Disposition at Contract Expiration
   The Contractor is required to ensure that all inventories of Contractor-Controlled Materials are at zero (0) upon the expiration or termination of this contract. The Contractor shall be responsible for all costs associated with the removal, disposal, or transfer of these materials in accordance with all applicable laws and regulations.

C-13 LEGACY WASTE REDUCTION

Legacy Waste Reduction

The Contractor shall be responsible for the progressive reduction and elimination of all legacy waste materials existing at the contract start date. The Contractor shall reduce the total inventory of legacy waste by no less than ten percent (10%) each year of the contract's initial 10-year Period of Performance (POP), with the objective of achieving complete removal of all legacy waste by the end of the initial 10-year POP. The Contractor shall document this annual reduction in a report submitted to the Government (CDRL XXX).

C-14 FACILITY INVESTMENT and MODERNIZATION

1. Overall Objective and Requirement

   The Contractor shall develop, manage, and execute a comprehensive Facility Investment and Modernization Plan. This Plan shall be a single, integrated "living document" that governs all Contractor-proposed and co-funded initiatives designed to accelerate the transformation of RFAAP. The Plan and all activities within it shall support the Army's strategic objectives, including, but not limited to: increasing safety and readiness, enhancing resiliency, improving sustainability, reducing operational costs, and expanding capabilities. The Plan shall be structured into the four distinct components detailed below, and all proposals, reporting, and updates shall be managed through the consolidated deliverables specified at the end of this section.

a. Strategic Facility Self-Investment

   i. Definition & Criteria: A 100% Contractor-funded project that is not otherwise required by the contract. To qualify, a project must measurably reduce long-term operating costs, increase production flexibility or surge capacity, or otherwise improve the strategic viability of the installation. All costs shall be financed by the Contractor and shall not be recovered from the Government.

   ii. Government Funding & IP: No Government matching funds will be provided. The Government will not acquire IP rights unless separately negotiated.

b. Short-Term Facility Upgrade

   i. Definition & Criteria: A co-funded project that demonstrably improves the safety, environmental performance, reliability, or throughput of an *existing* capability. Contractor cost-share shall not be amortized or recovered from the Government.

   ii. Government Funding & IP: The Government will co-invest up to a total program cap of $250M. The Government will acquire, at a minimum, Limited Government Rights for all resulting IP.

c. Facility Reset

   i. Definition & Criteria: A co-funded initiative focused on facility cleanup, abatement, life-cycle extension, and footprint rationalization needed to sustain current operations, with limited or no long-term cost reduction or viability enhancement beyond restoring existing performance and removing excess. This includes the decommissioning, demolition, or removal of dormant, underutilized, or excess facilities, buildings, and structures to reduce risk and the basic sustainment burden. The plan must be fully implementable within three (3) years of operational control, with significant improvements realized within six (6) months and must detail the Offeror's approach and prioritized plan to:

      1. Modernize safety equipment, processes and management systems. For example: control system interlocks, machine guarding, training systems,

employee protection, escape egress, vehicles, communication systems, and signage.

2. Perform extensive minor and major maintenance across the facility above the PWS baseline, including transformation of the maintenance management system and replacement of equipment/area used to conduct maintenance tasks such as spare part storage areas and vehicles used by maintenance technicians.
3. Upgrade employee care and support facilities such as change houses, transportation systems, etc.
4. Upgrade production facilities, equipment and management systems including control systems, automation, material handling (within process and between processes), labor structures, material traceability systems and supporting information technology. Full replacement of major components and systems is acceptable.
5. Implement energy conservation and resiliency improvements such as metering of utilities and implementation of sustainable energy sources.
6. Seed additional industry partnerships necessary to accomplish reset activities
7. Optimize the Modernized Nitrocellulose (NC) Facility and linked improvements for the legacy facility. Emphasis on sustaining the capability currently utilized by facilities in the legacy NC area still required for NC production such as replacing those capabilities such that NC production at RFAAP is no longer partially reliant on facilities within the legacy NC area.
8. Upgrade supporting infrastructure including utilities (electric, fiber, water, steam, etc.) roads and rail
9. Execute needed demolition and optimization of RFAAP physical footprint
10. Surge removal of excess equipment beyond baseline PWS requirements
11. Implement modern security technologies to augment security forces and screening systems
12. Disposition of Existing Non-Conforming Material – The Offeror shall provide a plan for disposition of existing NC fines (see Attachment 0019) and other non-conforming materials. If the Offeror chooses not to disposition existing NC fines and other non-conforming material, they will assume ownership and full financial responsibility to address them before the end of the base contract period.
13. Correct any other identified shortfalls the Offeror proposes to address.
14. The Contractor shall include its Explosive Site Safety strategy to implement its reset plan. The strategy shall address requirements of, but is not limited to, DoDM 4145.26, DoD Contractor's Safety Manual for Ammunition and Explosives, Chapters 5 and 7.

ii. Government Funding & IP: The Government will co-invest up to a total program cap of $500M. The Offeror shall propose a Government matching fund ratio for each project, which shall not exceed a 1:10 ratio (Contractor:Government). The Government will acquire Unlimited Rights for all resulting IP.

d. Long-Term Modernization Plan

   i. Purpose & Assumptions: The Contractor shall develop a comprehensive, long-term (10+ years) modernization strategy for RFAAP. The strategy shall serve as the primary input to inform the Government's prioritization, planning, budgeting, and awarding of future, fully Government-funded modernization projects. The plan shall be based on a notional budget of $3.5B to $4.5 B over a 10-year period, with the assumption that no single year will exceed $1B in funding.

e. Deliverables

   The Contractor shall manage all proposals, progress reporting, intellectual property assertions, and closeout actions for all four components of the Facility Investment and Modernization Plan through the following integrated deliverables:

   i. Facility Investment and Modernization Plan [CDRL AXX-001]: The Contractor shall submit the initial, comprehensive Plan to the Contracting Officer for review and acceptance. This single document shall contain the complete, detailed plans for all four components, including the initial list of all proposed projects for the first year of performance.

   ii. Annual Plan Update [CDRL AXX-002]: On an annual basis, the Contractor shall submit a complete update to the Facility Investment and Modernization Plan to the Contracting Officer for review and acceptance. This update will serve as the formal mechanism to:

      1. Propose all new projects for the upcoming year for all four investment components.

      2. Provide any necessary revisions to the long-term strategy and roadmap.

      3. Re-baseline long-range schedules and priorities for ongoing efforts.

   iii. Quarterly Investment and Modernization Progress Report [CDRL AXX-003]: The Contractor shall submit a single, comprehensive quarterly report detailing progress against the currently accepted Plan. This report shall include, for all active projects across all four components:

      1. A summary of work performed and progress against milestones.

      2. Current financial status, including expenditure tracking for both Contractor and Government funds.

      3. Auditable documentation demonstrating the Contractor's cost-share portion has not been amortized or recovered.

      4. Schedule performance and risk updates.

5. A formal assertion of any Intellectual Property (IP) generated from projects completed during the quarter, granting the Government the contractually required rights (e.g., Limited, Unlimited).

iv. Final Facility Reset Completion Report [CDRL AXX-004]: Upon completion of the three (3)-year reset period, the Contractor shall submit a final, one-time report summarizing the accomplishments, final costs, and overall outcomes of the Facility Reset component. This report shall include a final assertion of all IP generated during the reset and grant the Government Unlimited Rights.

Section D

D-01 PACKAGING REQUIREMENTS PART 1
The following items shall comply with the packaging requirements outlined below:

NOMEN: PAP 7993 for MACS M231 Charge
PN: 12991140
NSN: 1376-01-489-1519

NOMEN: Propellant M31A2 for use in Charge, Propelling,155mm,M232A1
PN: 13010119
NSN: 1376-01-526-6467

NOMEN: Propellant M30A1 for use in Charge, Propelling, 155mm, M232
PN: 12993885
NSN: 1376-01-489-1755

NOMEN: M64 SP
PN: 13015504
NSN: 1376-01-546-3736

NOMEN: M64 MP
PN: 13015503
NSN: 1376-01-546-3733

PACKAGING REQUIREMENTS

(a)Packaging shall be in accordance with 9381477 revision C, dated 20 MAR 2006 for short term storage (less than five years).

(b)When lot numbering is required, no more than one lot shall be packaged in an outer shipping container.

(c)Marking shall be in accordance with 9381477 revision C, dated 20 MAR 2006 for short term storage (less than five years). 2-D barcodes are required in accordance with 12999545, rev K, dated 06 May 2021.

(d)The following shall apply to drawings 9381477 revision C, dated 20 MAR 2006 for short term storage (less than five years):

(e)PERFORMANCE ORIENTED PACKAGING (POP)

(1) Prior to shipment, the manufacturer shall make sure the container has been tested by a government approved Performance Oriented Packaging (POP) Test laboratory for compliance with POP requirements in accordance with Title 49 Code of Federal Regulation. Test will be to a weight at least 10% greater than the actual gross weight to be

marked on the tested container. POP marking shall not be applied to the container until verified by the government. The POP test report shall be generated by the Manufacturer/Laboratory following the test. The report must be kept on file by the contractor and submitted as required by the Contract Data Requirement List. (DI-PACK-81059) For multiyear contracts, the contractor shall re-perform POP testing at a certified test laboratory if: the initial POP test report expires before the end of the contract, or there is a change in container manufacturer or design of the exterior shipping container. No re-test is needed if all packaging was purchased during the period that the POP test was valid.

(f) EXCEPTION TO POP MARKINGS

(1) If the container is manufactured outside the USA, the contractor shall not apply the UN POP certification mark provided in this contract (if applicable). The contractor/container manufacturer (outside the USA) is responsible to perform the UN POP certification tests and apply the marking authorized by the Transportation Competent Authority of the country of manufacture.

(g) POP VERIFICATION

(1) In no case shall a container be shipped if the gross weight marked on the package is greater than the POP certified weight. If the average gross weight of the packed containers (determined by weighing two representative samples and averaging the weight) is greater than the certified weight, container marking operations shall cease and the procuring activity shall be contacted immediately.

(h) HEAT TREAT WOOD QUALITY MARKING

(1) In accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All WPM shall be constructed from heat treated (treated to 56 degrees Celsius -core temperature- for 30 minutes) lumber and certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: http://www.alsc.org). The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment.

(i) MARKING

(1) Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens. Pallet markings shall be applied to the stringer or block on diagonally opposite sides or ends of the pallet and be contrasting

and clearly visible. All dunnage lumber used in configuring and/or securing the load shall also comply with ISPM-15 and be marked with an ALSC approved dunnage stamp on opposite surfaces. Foreign manufacturers shall have the heat treatment and marking of non-manufactured wood products verified in accordance with the ISPM-15 compliance program.

(j) All drums shall be floor loaded in accordance with DAC Drawing 19-48-4174, REV 2, Dated 01 MAR 1989 or palletized in accordance with DAC 19-48-4172, REV 1, Dated 01 MAR 1986. If palletized, marking shall be in accordance with ACV00561, revision H, dated 29 June 2022. Wood Packaging Material (WPM) shall be in accordance with ACV00831, revision A, dated 06 Oct 2022. Palletized load 2-D barcodes are required, only if the drums are palletized.

<u>D-02 PACKAGING REQUIREMENTS PART 2</u>

The following items shall comply with the packaging requirements outlined below:

NOMEN: M1 SP
PN: MIL-DTL-60318
NSN: 1376-00-009-0041

NOMEN: M1 MP
PN: MIL-DTL-60318
NSN: 1376-00-009-0042

NOMEN: M6 for M119A2
PN: MIL-P-63404
NSN: 1376-01-053-9370

NOMEN: M10
PN: MIL-P-48099
NSN: 1376-01-055-8598

NOMEN: JA2
PN: 13053606
NSN: 9999-99-999-9999

NOMEN: DEGN STICK
PN: 13051228
NSN: 1376-01-D01-6160

NOMEN: M2 Propellent
PN: MIL-P-60989
NSN: 1376-01-085-7243

Section D

PACKAGING REQUIREMENTS

(a)Packaging shall be in accordance with 9381477 revision C, dated 20 MAR 2006 for short term storage (less than five years) or 9381476 revision D, dated 15 JUNE 1995 for long term storage (five years or longer).

(b)When lot numbering is required, no more than one lot shall be packaged in an outer shipping container.

(c)Marking shall be in accordance with 9381477 revision C, dated 20 MAR 2006 for short term storage (less than five years) or 9381476 revision D, dated 15 JUNE 1995 for long term storage (five years or longer). 2-D barcodes are required in accordance with 12999545, rev K, dated 06 May 2021.

(d)The following shall apply to drawings 9381477 revision C, dated 20 MAR 2006 for short term storage (less than five years) or 9381476 revision D, dated 15 JUNE 1995 for long term storage (five years or longer):

(e) PERFORMANCE ORIENTED PACKAGING (POP)

(1) Prior to shipment, the manufacturer shall make sure the container has been tested by a government approved Performance Oriented Packaging (POP) Test laboratory for compliance with POP requirements in accordance with Title 49 Code of Federal Regulation. Test will be to a weight at least 10% greater than the actual gross weight to be marked on the tested container. POP marking shall not be applied to the container until verified by the government. The POP test report shall be generated by the Manufacturer/Laboratory following the test. The report must be kept on file by the contractor and submitted as required by the Contract Data Requirement List. (DI-PACK-81059) For multiyear contracts, the contractor shall re-perform POP testing at a certified test laboratory if: the initial POP test report expires before the end of the contract, or there is a change in container manufacturer or design of the exterior shipping container. No re-test is needed if all packaging was purchased during the period that the POP test was valid.

(f) EXCEPTION TO POP MARKINGS

(1) If the container is manufactured outside the USA, the contractor shall not apply the UN POP certification mark provided in this contract (if applicable). The contractor/container manufacturer (outside the USA) is responsible to perform the UN POP certification tests and apply the marking authorized by the Transportation Competent Authority of the country of manufacture.

(g) POP VERIFICATION

Section D

(1) In no case shall a container be shipped if the gross weight marked on the package is greater than the POP certified weight. If the average gross weight of the packed containers (determined by weighing two representative samples and averaging the weight) is greater than the certified weight, container marking operations shall cease and the procuring activity shall be contacted immediately.

(h) HEAT TREAT WOOD QUALITY MARKING

(1) In accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All WPM shall be constructed from heat treated (treated to 56 degrees Celsius -core temperature- for 30 minutes) lumber and certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: http://www.alsc.org). The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment.

(i) MARKING

(1) Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens. Pallet markings shall be applied to the stringer or block on diagonally opposite sides or ends of the pallet and be contrasting and clearly visible. All dunnage lumber used in configuring and/or securing the load shall also comply with ISPM-15 and be marked with an ALSC approved dunnage stamp on opposite surfaces. Foreign manufacturers shall have the heat treatment and marking of non-manufactured wood products verified in accordance with the ISPM-15 compliance program.

(j) All drums shall be floor loaded in accordance with DAC Drawing 19-48-4174, REV 2, Dated 01 MAR 1989 or palletized in accordance with DAC 19-48-4172, REV 1, Dated 01 MAR 1986. If palletized, marking shall be in accordance with ACV00561, revision H, dated 29 June 2022. Wood Packaging Material (WPM) shall be in accordance with ACV00831, revision A, dated 06 Oct 2022. Palletized load 2-D barcodes are required, only if the drums are palletized. Fiberboard drums and steel drums cannot be combined in a unitized load or in a trailer load.

D-03 PACKAGING REQUIREMENTS PART 3

The following items shall comply with the packaging requirements outlined below:

NOMEN: Propellant Slvt DB RDT N-5

Section D

PN: MIL-P-17689
NSN: 1376-01-055-5971

PACKAGING REQUIREMENTS

(a) Packaging shall be in accordance with 9204826, revision A, dated 03 February 1965 (carton, fiberboard) and 9204827, revision A, dated 03 February 1965 (box, wood packing).

(b) When lot numbering is required, no more than one lot shall be packaged in an outer shipping container.

(c) Marking shall be in accordance with 8796522, revision BU, 26 April 2017. 2-D barcodes are required in accordance with 12999545, revision K, dated 06 May 2021.

(d) The following shall apply to drawing 9204826, revision A, dated 03 February 1965 (carton, fiberboard) and 9204827, revision A, dated 03 February 1965 (box, wood packing) and 8796522, revision BU, 26 April 2017 (marking diagram).

(e) PERFORMANCE ORIENTED PACKAGING (POP)

(1) Prior to shipment, the manufacturer shall make sure the container has been tested by a government approved Performance Oriented Packaging (POP) Test laboratory for compliance with POP requirements in accordance with Title 49 Code of Federal Regulation. Test will be to a weight at least 10% greater than the actual gross weight to be marked on the tested container. POP marking shall not be applied to the container until verified by the government. The POP test report shall be generated by the Manufacturer/Laboratory following the test. The report must be kept on file by the contractor and submitted as required by the Contract Data Requirement List. (DI-PACK-81059) For multiyear contracts, the contractor shall re-perform POP testing at a certified test laboratory if: the initial POP test report expires before the end of the contract, or there is a change in container manufacturer or design of the exterior shipping container. No re-test is needed if all packaging was purchased during the period that the POP test was valid.

(f) EXCEPTION TO POP MARKINGS

(1) If the container is manufactured outside the USA, the contractor shall not apply the UN POP certification mark provided in this contract (if applicable). The contractor/container manufacturer (outside the USA) is responsible to perform the UN POP certification tests and apply the marking authorized by the Transportation Competent Authority of the country of manufacture.

(g) POP VERIFICATION

(1) In no case shall a container be shipped if the gross weight marked on the package is greater than the POP certified weight. If the average gross weight of the packed containers (determined by weighing two representative samples and averaging the weight) is greater than the certified weight, container marking operations shall cease, and the procuring activity shall be contacted immediately.

(h) HEAT TREAT WOOD QUALITY MARKING

(1) In accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All WPM shall be constructed from heat treated (treated to 56 degrees Celsius -core temperature- for 30 minutes) lumber and certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: http://www.alsc.org). The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment.

(i) MARKING

(1) Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens. Pallet markings shall be applied to the stringer or block on diagonally opposite sides or ends of the pallet and be contrasting and clearly visible. All dunnage lumber used in configuring and/or securing the load shall also comply with ISPM-15 and be marked with an ALSC approved dunnage stamp on opposite surfaces. Foreign manufacturers shall have the heat treatment and marking of non-manufactured wood products verified in accordance with the ISPM-15 compliance program.

(j) A palletized load shall not exceed 4,000 pounds and should not exceed 52 inches in length or width, or 54 inches in height. When the item being palletized is ammunition/explosive, at least one of the horizontal dimensions must be less than 47 inches. When level A packaging is required, a four-way entry pallet or pallet box, shall be used. All pallet loads shall contain the load in a manner that will permit safe, multiple rehandling during storage and shipment.

D-04 PACKAGING REQUIREMENTS PART 4

The following items shall comply with the packaging requirements outlined below:

NOMEN: PROPELLANT, M9 FLAKE SPECIAL
PN: MIL-DTL-32322

Section D

NSN: 9999-99-999-9999

NOMEN: M9, PROPELLANT
PN: 13021760
NSN: 1376-01-587-6080

PACKAGING REQUIREMENTS

(a)Packaging shall be in accordance with 13021897 revision A, dated 11 FEB 2009 for short term storage (less than five years).

(b)When lot numbering is required, no more than one lot shall be packaged in an outer shipping container.

(c)Marking shall be in accordance with 13021897 revision A, dated 11 FEB 2009 for short term storage (less than five years). 2-D barcodes are required in accordance with 12999545, rev K, dated 06 May 2021.

(d)The following shall apply to 13021897 revision A, dated 11 FEB 2009 for short term storage (less than five years):

(e)PERFORMANCE ORIENTED PACKAGING (POP)

(1) Prior to shipment, the manufacturer shall make sure the container has been tested by a government approved Performance Oriented Packaging (POP) Test laboratory for compliance with POP requirements in accordance with Title 49 Code of Federal Regulation. Test will be to a weight at least 10% greater than the actual gross weight to be marked on the tested container. POP marking shall not be applied to the container until verified by the government. The POP test report shall be generated by the Manufacturer/Laboratory following the test. The report must be kept on file by the contractor and submitted as required by the Contract Data Requirement List. (DI-PACK-81059) For multiyear contracts, the contractor shall re-perform POP testing at a certified test laboratory if: the initial POP test report expires before the end of the contract, or there is a change in container manufacturer or design of the exterior shipping container. No re-test is needed if all packaging was purchased during the period that the POP test was valid.

(f) EXCEPTION TO POP MARKINGS

(1) If the container is manufactured outside the USA, the contractor shall not apply the UN POP certification mark provided in this contract (if applicable). The contractor/container manufacturer (outside the USA) is responsible to perform the UN POP certification tests and apply the marking authorized by the Transportation Competent Authority of the country of manufacture.

Section D

(g) POP VERIFICATION

(1) In no case shall a container be shipped if the gross weight marked on the package is greater than the POP certified weight. If the average gross weight of the packed containers (determined by weighing two representative samples and averaging the weight) is greater than the certified weight, container marking operations shall cease and the procuring activity shall be contacted immediately.

(h) HEAT TREAT WOOD QUALITY MARKING

(1) In accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All WPM shall be constructed from heat treated (treated to 56 degrees Celsius -core temperature- for 30 minutes) lumber and certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: http://www.alsc.org). The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment.

(i) MARKING

(1) Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens. Pallet markings shall be applied to the stringer or block on diagonally opposite sides or ends of the pallet and be contrasting and clearly visible. All dunnage lumber used in configuring and/or securing the load shall also comply with ISPM-15 and be marked with an ALSC approved dunnage stamp on opposite surfaces. Foreign manufacturers shall have the heat treatment and marking of non-manufactured wood products verified in accordance with the ISPM-15 compliance program.

(j) All drums shall be floor loaded in accordance with DAC Drawing 19-48-4174, REV 2, Dated 01 MAR 1989 or palletized in accordance with DAC 19-48-4172, REV 1, Dated 01 MAR 1986. If palletized, marking shall be in accordance with ACV00561, revision H, dated 29 June 2022. Wood Packaging Material (WPM) shall be in accordance with ACV00831, revision A, dated 06 Oct 2022. Palletized load 2-D barcodes are required, only if the drums are palletized.

D-05 PACKAGING REQUIREMENTS PART 5

The following items shall comply with the packaging requirements outlined below:

Section D

NOMEN: M5 PROPELLANT, TYPE II, GRADE C, MIL-STD-652
PN: MIL-P-48089
NSN: 1376-01-053-9368

PACKAGING REQUIREMENTS

(a)Packaging shall be in accordance with 12525172 revision -, dated 17 OCT 1997 for long term storage (five years or longer).

(b)When lot numbering is required, no more than one lot shall be packaged in an outer shipping container.

(c)Marking shall be in accordance with 12525172 revision -, dated 17 OCT 1997 for long term storage (five years or longer). 2-D barcodes are required in accordance with 12999545, rev K, dated 06 May 2021.

(d)The following shall apply to drawings 1255172 revision -, dated 17 OCT 1997 for long term storage (five years or longer):

(e)PERFORMANCE ORIENTED PACKAGING (POP)

(1) Prior to shipment, the manufacturer shall make sure the container has been tested by a government approved Performance Oriented Packaging (POP) Test laboratory for compliance with POP requirements in accordance with Title 49 Code of Federal Regulation. Test will be to a weight at least 10% greater than the actual gross weight to be marked on the tested container. POP marking shall not be applied to the container until verified by the government. The POP test report shall be generated by the Manufacturer/Laboratory following the test. The report must be kept on file by the contractor and submitted as required by the Contract Data Requirement List. (DI-PACK-81059) For multiyear contracts, the contractor shall re-perform POP testing at a certified test laboratory if: the initial POP test report expires before the end of the contract, or there is a change in container manufacturer or design of the exterior shipping container. No re-test is needed if all packaging was purchased during the period that the POP test was valid.

(f) EXCEPTION TO POP MARKINGS

(1) If the container is manufactured outside the USA, the contractor shall not apply the UN POP certification mark provided in this contract (if applicable). The contractor/container manufacturer (outside the USA) is responsible to perform the UN POP certification tests and apply the marking authorized by the Transportation Competent Authority of the country of manufacture.

(g) POP VERIFICATION

(1) In no case shall a container be shipped if the gross weight marked on the package is greater than the POP certified weight. If the average gross weight of the packed containers (determined by weighing two representative samples and averaging the weight) is greater than the certified weight, container marking operations shall cease and the procuring activity shall be contacted immediately.

(h) HEAT TREAT WOOD QUALITY MARKING

(1) In accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All WPM shall be constructed from heat treated (treated to 56 degrees Celsius -core temperature- for 30 minutes) lumber and certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: http://www.alsc.org). The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment.

(i) MARKING

(1) Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens. Pallet markings shall be applied to the stringer or block on diagonally opposite sides or ends of the pallet and be contrasting and clearly visible. All dunnage lumber used in configuring and/or securing the load shall also comply with ISPM-15 and be marked with an ALSC approved dunnage stamp on opposite surfaces. Foreign manufacturers shall have the heat treatment and marking of non-manufactured wood products verified in accordance with the ISPM-15 compliance program.

(j) All drums shall be floor loaded in accordance with DAC Drawing 19-48-4174, REV 2, Dated 01 MAR 1989 or palletized in accordance with DAC 19-48-4172, REV 1, Dated 01 MAR 1986. If palletized, marking shall be in accordance with ACV00561, revision H, dated 29 June 2022. Wood Packaging Material (WPM) shall be in accordance with ACV00831, revision A, dated 06 Oct 2022. Palletized load 2-D barcodes are required, only if the drums are palletized.

<u>D-06 PACKAGING REQUIREMENTS PART 6</u>

The following items shall comply with the packaging requirements outlined below:

Section D

NOMEN: SCDB GRAIN
PN: 13051227
NSN: 1376-01-D01-3479

NOMEN: RDP-596 M1002
PN: 13033596
NSN: 1376-01-725-8540

NOMEN: RDP-596 M865A
PN: 13074472
NSN: 1376-01-725-9406

NOMEN: M14
PN: 12956320-1 with MIL-P-70956
NSN: 1376-01-373-5883

PACKAGING REQUIREMENTS

(a)Packaging shall be in accordance with 9381476 revision D, dated 15 JUNE 1995 for long term storage (five years or longer).

(b)When lot numbering is required, no more than one lot shall be packaged in an outer shipping container.

(c)Marking shall be in accordance with 9381476 revision D, dated 15 JUNE 1995 for long term storage (five years or longer). 2-D barcodes are required in accordance with 12999545, rev K, dated 06 May 2021.

(d)The following shall apply to drawings 9381476 revision D, dated 15 JUNE 1995 for long term storage (five years or longer):

(e)PERFORMANCE ORIENTED PACKAGING (POP)

(1) Prior to shipment, the manufacturer shall make sure the container has been tested by a government approved Performance Oriented Packaging (POP) Test laboratory for compliance with POP requirements in accordance with Title 49 Code of Federal Regulation. Test will be to a weight at least 10% greater than the actual gross weight to be marked on the tested container. POP marking shall not be applied to the container until verified by the government. The POP test report shall be generated by the Manufacturer/Laboratory following the test. The report must be kept on file by the contractor and submitted as required by the Contract Data Requirement List. (DI-PACK-81059) For multiyear contracts, the contractor shall re-perform POP testing at a certified test laboratory if: the initial POP test report expires before the end of the contract, or there

is a change in container manufacturer or design of the exterior shipping container. No re-test is needed if all packaging was purchased during the period that the POP test was valid.

(f) EXCEPTION TO POP MARKINGS

(1) If the container is manufactured outside the USA, the contractor shall not apply the UN POP certification mark provided in this contract (if applicable). The contractor/container manufacturer (outside the USA) is responsible to perform the UN POP certification tests and apply the marking authorized by the Transportation Competent Authority of the country of manufacture.

(g) POP VERIFICATION

(1) In no case shall a container be shipped if the gross weight marked on the package is greater than the POP certified weight. If the average gross weight of the packed containers (determined by weighing two representative samples and averaging the weight) is greater than the certified weight, container marking operations shall cease and the procuring activity shall be contacted immediately.

(h) HEAT TREAT WOOD QUALITY MARKING

(1) In accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All WPM shall be constructed from heat treated (treated to 56 degrees Celsius -core temperature- for 30 minutes) lumber and certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: http://www.alsc.org). The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment.

(i) MARKING

(1) Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens. Pallet markings shall be applied to the stringer or block on diagonally opposite sides or ends of the pallet and be contrasting and clearly visible. All dunnage lumber used in configuring and/or securing the load shall also comply with ISPM-15 and be marked with an ALSC approved dunnage stamp on opposite surfaces. Foreign manufacturers shall have the heat treatment and marking of non-manufactured wood products verified in accordance with the ISPM-15 compliance program.

(j) All drums shall be floor loaded in accordance with DAC Drawing 19-48-4174, REV 2, Dated 01 MAR 1989 or palletized in accordance with DAC 19-48-4172, REV 1, Dated 01 MAR 1986. If palletized, marking shall be in accordance with ACV00561, revision H, dated 29 June 2022. Wood Packaging Material (WPM) shall be in accordance with ACV00831, revision A, dated 06 Oct 2022. Palletized load 2-D barcodes are required, only if the drums are palletized.

D-07 PACKAGING REQUIREMENTS PART 7

The following items shall comply with the packaging requirements outlined below:

NOMEN: Benite
PN: MIL-B-45451
NSN: 1376-00-764-8063

PACKAGING REQUIREMENTS

(a) Packaging shall be in accordance with 8830852, revision D, dated 17 November 1972(carton, fiberboard) and 8830853, revision F, dated 26 December 1985 (box, wood packing).

(b) When lot numbering is required, no more than one lot shall be packaged in an outer shipping container.

(c) Marking shall be in accordance with 8796522, revision BU, 26 April 2017. 2-D barcodes are required in accordance with 12999545, revision K, dated 06 May 2021.

(d) The following shall apply to drawing 8830852, revision D, dated 17 November 1972(carton, fiberboard) and 8830853, revision F, dated 26 December 1985 (box, wood packing) and 8796522, revision BU, 26 April 2017 (marking):

(e) PERFORMANCE ORIENTED PACKAGING (POP)

(1) Prior to shipment, the manufacturer shall make sure the container has been tested by a government approved Performance Oriented Packaging (POP) Test laboratory for compliance with POP requirements in accordance with Title 49 Code of Federal Regulation. Test will be to a weight at least 10% greater than the actual gross weight to be marked on the tested container. POP marking shall not be applied to the container until verified by the government. The POP test report shall be generated by the Manufacturer/Laboratory following the test. The report must be kept on file by the contractor and submitted as required by the Contract Data Requirement List. (DI-PACK-81059) For multiyear contracts, the contractor shall re-perform POP testing at a certified test laboratory if: the initial POP test report expires before the end of the contract, or there

is a change in container manufacturer or design of the exterior shipping container. No re-test is needed if all packaging was purchased during the period that the POP test was valid.

(f) EXCEPTION TO POP MARKINGS

(1) If the container is manufactured outside the USA, the contractor shall not apply the UN POP certification mark provided in this contract (if applicable). The contractor/container manufacturer (outside the USA) is responsible to perform the UN POP certification tests and apply the marking authorized by the Transportation Competent Authority of the country of manufacture.

(g) POP VERIFICATION

(1) In no case shall a container be shipped if the gross weight marked on the package is greater than the POP certified weight. If the average gross weight of the packed containers (determined by weighing two representative samples and averaging the weight) is greater than the certified weight, container marking operations shall cease, and the procuring activity shall be contacted immediately.

(h) HEAT TREAT WOOD QUALITY MARKING

(1) In accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All WPM shall be constructed from heat treated (treated to 56 degrees Celsius -core temperature- for 30 minutes) lumber and certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: http://www.alsc.org). The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment.

(i) MARKING

(1) Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens. Pallet markings shall be applied to the stringer or block on diagonally opposite sides or ends of the pallet and be contrasting and clearly visible. All dunnage lumber used in configuring and/or securing the load shall also comply with ISPM-15 and be marked with an ALSC approved dunnage stamp on opposite surfaces. Foreign manufacturers shall have the heat treatment and marking of non-manufactured wood products verified in accordance with the ISPM-15 compliance program.

Section D

(j) A palletized load shall not exceed 4,000 pounds and should not exceed 52 inches in length or width, or 54 inches in height. When the item being palletized is ammunition/explosive, at least one of the horizontal dimensions must be less than 47 inches. When level A packaging is required, a four-way entry pallet or pallet box, shall be used. All pallet loads shall contain the load in a manner that will permit safe, multiple rehandling during storage and shipment.

D-08 PACKAGING REQUIREMENTS PART 8
The following items shall comply with the packaging requirements outlined below:

NOMEN: EC TAPE
PN: 9240825
NSN: 1340-01-055-2782

COMMERCIAL PACKAGING REQUIREMENTS

(a) Packaging - Preservation, packaging, packing, unitization and marking furnished by the supplier shall provide protection for a minimum of one year, provide for multiple handling, redistribution and shipment by any mode and meet or exceed the following requirements.

(1) Cleanliness - Items shall be free of dirt and other contaminants which would contribute to the deterioration of the item, or which would require cleaning by the customer prior to use. Coatings and preservatives applied to the item for protection are not considered contaminants.

(2) Preservation - Items susceptible to corrosion or deterioration shall be provided protection such as preservative coatings, volatile corrosion inhibitors, desiccants, water-proof and/or water-vapor-proof barriers.

(3) Cushioning - Items requiring protection from physical and mechanical damage (e.g. fragile, sensitive, critical material) or which could cause physical damage to other items, shall be protected by wrapping, cushioning, pack compartmentalization, or other means to mitigate shock and vibration and prevent damage during handling and shipment.

(b)Packing

(1) Unit packages and intermediate packages meeting the requirements for a shipping container may be utilized as shipping containers. All shipping containers shall be the most cost effective and shall be of the minimum cube to contain and protect the items. A unit package shall be so designed and constructed that it will contain the contents with no damage to the item(s), and with minimal damage to the unit pack during shipment and storage in the shipping container and will allow subsequent handling.

(2) Bulk Packaging – Items packaged directly in shipping containers shall be separated with pads, liners, partitions or dividers as required to protect the parts, strengthen the container and to distribute the load.

(3) Unit Package Quantity - Unless otherwise specified, the unit package quantity shall be one each part, set, assembly, kit, etc.

(4) Shipping Containers - The shipping container (including any necessary blocking, bracing, cushioning, or waterproofing) shall comply with the regulations of the carrier used and shall provide safe delivery to the destination at the lowest tariff cost. The shipping container shall be capable of multiple handling, stacking at least ten feet high, and storage under favorable conditions (such as enclosed facilities) for a minimum of one year.

(c) Unitization

(1) Shipments of identical items going to the same destination shall be palletized if they have a total cubic displacement of 50 cubic feet or more unless skids or other forklift handling features are included on the containers. Pallet loads must be stable, and to the greatest extent possible, provide a level top for ease of stacking. A palletized load shall be of a size to allow for placement of two loads high and wide in a conveyance. The weight capacity of the pallet must be adequate for the load. The preferred commercial expendable pallet is a 40 x 48 inch, 4-way entry pallet although variations may be permitted as dictated by the characteristics of the items being unitized. The load shall be contained in a manner that will permit safe handling during shipment and storage.

(d) Marking

(1) All unit packages, intermediate packs, exterior shipping containers, and as applicable, unitized loads shall be marked in accordance with the latest revision of MIL-STD-129, including 2D bar coding on outer shipping container and the unitized load. The contractor is responsible for application of special markings as discussed in the Military Standard regardless of whether specified in the contract or not. Special markings include, but are not limited to, shelf-life markings, structural markings, and transportation special handling markings.

(e)Hazardous Materials

(1) A hazardous material is defined as a substance which has been determined by the Department of Transportation to be capable of posing an unreasonable risk to health, safety, and property when transported in commerce and which has been so designated. (This includes all items listed as hazardous in Title 49 CFR and other applicable modal regulations effective at the time of shipment.) Ammunition and explosives (Hazard Class

Section D

1) are special cases and must be properly hazard classified and registered with the competent authority of the United States (Department of Transportation).

(2) Packaging and marking for hazardous material shall comply with the requirements for the mode of transport and the applicable performance packaging contained in the following document: Code of Federal Regulations (CFR) Title 49.

(f)Heat Treatment and Marking of Wood Packaging Materials

(1) In accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All WPM shall be constructed from heat treated (treated to 56 degrees Celsius -core temperature- for 30 minutes) lumber and certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: ://www.alsc.org). The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment marking. Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens. Pallet markings shall be applied to the stringer or block on diagonally opposite sides or ends of the pallet and be contrasting and clearly visible. All dunnage lumber used in configuring and/or securing the load shall also comply with ISPM-15 and be marked with an ALSC approved dunnage stamp on opposite surfaces. Foreign manufacturers shall have the heat treatment and marking of non-manufactured wood products verified in accordance with the ISPM-15 compliance program.

(g)Quality Assurance

(1) The contractor is responsible for establishing a quality system. Full consideration to examinations, inspections, and tests will be given to ensure the acceptability of the commercial package.

D-09 PACKAGING REQUIREMENTS PART 9

The following items shall comply with the packaging requirements outlined below:

NOMEN: NC, GRADE A, TYPE II
PN: MIL-DTL-244C w/amendment 1
NSN: 9999-99-999-9999

NOMEN: NC, GRADE B, TYPE I

Section D

PN: MIL-DTL-244C w/ amendment 1
NSN: 1376-01-185-5467

NOMEN: NC, GRADE B, TYPE II
PN: MIL-DTL-244C w/amendment 1
NSN: 9999-99-999-9999

NOMEN: NC, GRADE B, TYPE III
PN: MIL-DTL-244C w/amendment 1
NSN: 9999-99-999-9999

NOMEN: NC, GRADE C, TYPE I
PN: MIL-DTL-244C w/amendment 1
NSN: 1376-01-185-5468

NOMEN: NC, GRADE C, TYPE II
PN: MIL-DTL-244C w/amendment 1
NSN: 1376-01-185-5470

NOMEN: NC, GRADE D
PN: MIL-DTL-24C w/amendment 1
NSN: 9999-99-999-9999

NOMEN: NC, GRADE E
PN: MIL-DTL-244C w/amendment 1
NSN: 9999-99-999-9999

NOMEN: NC, GRADE F
PN: MIL-DTL244C w/amendment 1
NSN: 9999-99-999-9999

PACKAGING REQUIREMENTS

(a) Packaging shall be in accordance with MIL-DTL-244 with amendment 1, revision C, dated 20 May 2014 for long-term storage (five years or longer).

(b) When lot numbering is required, no more than one lot shall be packaged in an outer shipping container.

(c) Marking shall be in accordance with MIL-STD-129 revision R, dated 25 February 2023 for long-term storage (five years or longer). 2-D barcodes are required in accordance with 12999545, rev K, dated 06 May 2021.

Section D

(d) The following shall apply to drawings MIL-DTL-244 with amendment 1, revision C, dated 20 May 2014 for long-term storage (five years or longer):

(e) PERFORMANCE ORIENTED PACKAGING (POP)

(1) Prior to shipment, the manufacturer shall make sure the container has been tested by a government approved Performance Oriented Packaging (POP) Test laboratory for compliance with POP requirements in accordance with Title 49 Code of Federal Regulation. Test will be to a weight at least 10% greater than the actual gross weight to be marked on the tested container. POP marking shall not be applied to the container until verified by the government. The POP test report shall be generated by the Manufacturer/Laboratory following the test. The report must be kept on file by the contractor and submitted as required by the Contract Data Requirement List. (DI-PACK-81059) For multiyear contracts, the contractor shall re-perform POP testing at a certified test laboratory if: the initial POP test report expires before the end of the contract, or there is a change in container manufacturer or design of the exterior shipping container. No re-test is needed if all packaging was purchased during the period that the POP test was valid.

(f) EXCEPTION TO POP MARKINGS

(1) If the container is manufactured outside the USA, the contractor shall not apply the UN POP certification mark provided in this contract (if applicable). The contractor/container manufacturer (outside the USA) is responsible to perform the UN POP certification tests and apply the marking authorized by the Transportation Competent Authority of the country of manufacture.

(g) POP VERIFICATION

(1) In no case shall a container be shipped if the gross weight marked on the package is greater than the POP certified weight. If the average gross weight of the packed containers (determined by weighing two representative samples and averaging the weight) is greater than the certified weight, container marking operations shall cease and the procuring activity shall be contacted immediately.

(h) HEAT TREAT WOOD QUALITY MARKING

(1) In accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All WPM shall be constructed from heat treated (treated to 56 degrees Celsius -core temperature- for 30 minutes) lumber and certified by an agency accredited by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL:

http://www.alsc.org). The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment.

(i) MARKING

(1) Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens. Pallet markings shall be applied to the stringer or block on diagonally opposite sides or ends of the pallet and be contrasting and clearly visible. All dunnage lumber used in configuring and/or securing the load shall also comply with ISPM-15 and be marked with an ALSC approved dunnage stamp on opposite surfaces. Foreign manufacturers shall have the heat treatment and marking of non-manufactured wood products verified in accordance with the ISPM-15 compliance program.

(j) All drums shall be floor loaded in accordance with DAC Drawing 19-48-4174, REV 2, Dated 01 MAR 1989. If palletized, marking shall be in accordance with ACV00561, revision H, dated 29 June 2022. Wood Packaging Material (WPM) shall be in accordance with ACV00831, revision A, dated 06 Oct 2022. Palletized load 2-D barcodes are required, only if the drums are palletized.

Section E

E-01 MIL-STD-1916

The Department of Defense (DoD) Preferred Methods for this Acceptance of Product, MIL-STD-1916, shall be used for this procurement action. All references to MIL-STD-105, MIL-STD-414, MIL-STD-1235, and ANSI Z1.4 appearing in the Technical Data Package (TDP) are replaced by MIL-STD-1916. Verification Levels (VL) shall replace AQLs and shall be VL IV for major characteristics and VL II for minor characteristics.

E-02 STATISTICAL PROCESS CONTROL

Part I – General Statistical Process Control Requirements

(a) In addition to the quality requirements of the technical data package, the Contractor shall implement Statistical Process Control (SPC) in accordance with a government accepted SPC Program Plan. Control chart techniques shall be in accordance with the American National Standards Institute (ANSI) B1, B2 and B3. Alternate SPC charting methods may be proposed and submitted to the Government for review.

(b) The SPC Program Plan developed by the contractor shall consist of a general plan and a detailed plan. The plans shall be structured as delineated on the Data Item Description referenced in the DD Form 1423. The general and the detailed plans shall be submitted to the government for review per DD Form 1423 requirements. Notification by the Government of acceptance or nonacceptance of the plans shall be provided in accordance with the timeframes specified on the DD Form 1423. Once a general plan for a facility has been approved by this Command, the approval remains in effect for subsequent contracts as long as the contractual requirements remain substantially unchanged from contract to contract. Therefore, resubmission of a previously accepted general SPC plan is not required if current SPC contract requirements and Data Item Description (DID) requirements are fulfilled.

(c) The contractor is responsible for updating the general plan to current SPC contractual requirements. If errors or omissions are encountered in a previously accepted SPC general plan, opportunities for improvement will be identified by the Government, and corrective action shall be accomplished by the contractor.

(d) A milestone schedule will be submitted for those facilities who do not have, or have never had, a fully implemented SPC program and will not have a fully operational SPC program once production is initiated. The milestones shall provide a time phased schedule of all efforts planned relative to implementation of an SPC program acceptable to the Government. A milestone schedule shall include implementation start and complete dates for those SPC subjects addressed in the Statistical Process Control requirement located in Part II of this section. The milestone schedule shall only include those actions that cannot be accomplished prior to first article or the initiation of production, if a first article is not required. Milestones shall be developed for each commodity identified for SPC application.

Section E

Milestones shall be submitted through the Government Quality Assurance Representative to the Contracting Officer for review and acceptance. Any deviations from the accepted milestones, to include justification for such deviations, shall be resubmitted through the same channels for review. The Government reserves the right to disapprove any changes to the previously accepted milestones. Notification by the Government of the acceptance or nonacceptance of the milestones shall be furnished to the Contractor by the Contracting Officer.

(e) The Contractor shall review all process and operation parameters for possible application of SPC techniques. This review shall include processes and operations under the control of the prime contractor and those under the control of subcontractor or vendor facilities. A written justification shall be included in the detailed plan for each process and operation parameter that controls or influences characteristics identified as critical, special, or major which have been deemed impractical for the application of SPC techniques. A pamphlet on application of SPC for short production runs is available through the Contracting Officer.

(f) Statistical evidence in the form of control charts shall be prepared and maintained for each process or operation parameter identified in the detailed plan. These charts shall identify all corrective actions taken on statistical signal. During production runs, control charts shall be maintained in such a manner to assure product is traceable to the control charts. At the conclusion of the production run, a collection of charts traceable to the product, shall be maintained for a minimum of 3 years. The control charts shall be provided to the Government for review at any time upon request.

(g) When the process or operation parameter under control has demonstrated both stability and capability, the Contractor may request, in writing, through Administrative Contracting Officer (ACO) and Contracting Officer channels to the Product Assurance and Test Directorate, that acceptance inspection or testing performed in accordance with contract requirements be reduced or eliminated. Upon approval by the Contracting Officer, acceptance shall then be based upon the accepted SPC plan, procedures, practices and the control charts.

(h) The Government will not consider requests for reduction or elimination of 100% acceptance inspection and testing of if any one of the following conditions exist:

(1) The existing process currently utilizes a fully automated, cost effective, and sufficiently reliable method of 100% acceptance inspection or testing for an attribute-type critical parameter or characteristic.

(2) The Contractor utilizes attribute SPC control chart methods for the critical parameter or characteristic.

Section E

(3) The critical parameter or characteristic is a first order, single point safety failure mode (nonconformance of the critical parameter or characteristic in and of itself would cause a catastrophic failure).

(i) The Government will only consider reduction or elimination of the 100% acceptance inspection or test requirement for other critical parameters or characteristics if either of the following conditions are met:

(1) The process is in a state of statistical control utilizing variable control chart methods for the critical parameter or characteristic under control and the process performance index (Cpk) is at least 2.0. The Contractor shall maintain objective quality evidence through periodic audits that the process performance index is being maintained for each production delivery.

(2) The critical parameter or characteristic is conclusively shown to be completely controlled by one or more process or operation parameters earlier in the process, and those parameters are in a state of statistical control utilizing variable data, and the product of the probability of the conformance for each earlier parameter associated to the critical characteristic is better than or equal to a value equivalent to that provided by a Cpk of at least 2.0. The Contractor shall maintain objective quality evidence through periodic audits that the process performance indexes are being maintained for each production delivery.

(j) For characteristics other than critical, requests for reduction or elimination of acceptance inspection and testing shall be considered when the process performance index is greater than or equal to a Cpk of 1.33 for variables data. Requests shall be considered for attributes data when the percent beyond the specification limits is less than or equal to .003 (Cpk=1.33).

(k) Process or operation parameters under reduced or eliminated inspection or testing that undergo a break in production less than 6 months in length, may continue to operate under reduced or eliminated inspection or testing provided there has been no degradation below a Cpk of 1.33 (2.0 for criticals). Any break in production greater than 6 months shall require resubmission of the request for reduction or elimination of inspection or testing through the same channels cited in paragraph (g) above.

(1) Not used.

(m) Immediately following a change to a process or operation parameter under reduced or eliminated inspection, the process capability (Cp) or process performance indexes (Cpk) shall be recalculated and documented for variable data; the grand average fraction defective shall be recalculated for attribute data. If any of these values have deteriorated, immediate notification shall be made to the Government along with the associated documentation. Return to original inspection and test requirements may be imposed as stipulated in paragraph n below.

Section E

(n) The Government reserves the right to withdraw authorization to reduce or eliminate final acceptance inspection or testing and direct the Contractor to return to original contract inspection or test procedures at any indication of loss of process control or deterioration of quality.

Part II – Detailed requirements pertaining to plan submittal

In accordance with DD Form 1423 and Part I of this section, the following supplemental information shall be considered and used when designing your general and detailed SPC plans.

1.0 General Management Plan
This section shall define management's SPC responsibilities and involvement and shall include management's commitment to continuous process improvement. The plan shall embrace a total commitment to quality and shall be capable of standing on its own merit.

1.1 Policy/Scope:
Describe the Contractor's policy for applying SPC, including goals and management commitment to SPC.

1.2 Applicable Document:
List documents that are the basis for the contractor's SPC program (i.e., ANSI standard, textbooks, Government documents).

1.3 SPC Management Structure:
Define the SPC management structure within the organization. Identify and include interrelationships of all departments involved in SPC (i.e., Production, Quality, Engineering, Purchasing, etc.) Identify by job title or position all key personnel within departments involved in the application of SPC. Describe which functions are performed by key personnel and when these functions are performed (i.e., include personnel responsible for performing inspections/audits, charting and interpreting data; personnel responsible for determining, initiating and implementing corrective action upon detecting assignable causes, etc.).

1.4 SPC Training:
Identify by job title or position the primary individual responsible for overseeing that SPC training is accomplished. Describe the qualification program required and in use for all personnel utilizing SPC techniques, including the qualification of trainers. Identify who is to be trained and the type, extent and length of such training (i.e., on-the-job, classroom, etc.). Identify when refresher training is required and how personnel using SPC techniques are monitored.

1.5 Manufacturing Controls:

Section E

Identify the criteria for performing SPC gage capability studies and describe how and when these studies are applied. Repeatability and accuracy of gages should be addressed.

1.6 Determination of SPC Use:
Describe how the process/operation parameters are determined appropriate for SPC application and explain what actions are taken if SPC is not deemed appropriate for critical, special and major process/operation parameters (i.e., Pareto analysis; analysis of characteristics with tight tolerances, etc.)

1.7 Process Stability and Capability:
a. Identify the criteria for performing process capability studies and describe how and when these studies are applied. Describe how the process capability index is calculated and include the frequency of these calculations. Describe what actions are taken as a result of each process capability study. Describe the contractor's methodologies when process capability is for variable and attribute data. To determine a capable process, the process/operation parameters shall meet the following requirements:

(1) Variable Data. Process capability (Cp) shall be determined. Process performance index shall be greater than or equal to 1.33 (Cpk). For critical parameters/characteristics, the process performance index shall be greater than or equal to 2.0 (Cpk).

(2) Attribute Data: Process capability/performance shall be the percent beyond the upper/lower specification limit less than or equal to .003 percent (Cpk=1.33).

b. Describe what actions will be taken if process/operation is sub-marginal or marginal. (Cpk less than 1.33 or 2.0 for criticals) or grand average fraction defective is greater than .003 percent).

c. Include analysis of statistical distributions and define all formulas and symbology utilized.

1.8 Control Chart Policy:
a. Type of charts to be used (i.e., x bar/R x bar/S, etc.) and rationale for use; the criteria for selection of sample size, frequency of sampling and rational subgroups.

b. Procedures for establishing and updating control limits, including frequency of adjustments.

c. Criteria for determining out-of-control conditions (i.e., trends, points beyond control limits, etc.) and the corrective action taken; to include failure analysis when the process is unstable or when nonconforming product has resulted from unstable processes. Illustrate out-of-control tests.

Section E

d. Describe the method of recording pertinent facts on control charts such as changes in raw materiel, machines, manufacturing methods and environment, and corrective actions taken and describe how control charts are traceable to the product.

1.9 Vendor/Subcontractor Purchase Controls:
Identify whether suppliers are required to utilize SPC and describe the extent the vendor's policies and procedures are consistent with in-house procedures of the prime contractor. Describe the following: methods utilized to determine that suppliers have adequate controls to assure defective product is not produced and delivered; the system utilized to audit suppliers, what will be audited and how often; what action will be taken when out-of-control conditions exist at subcontractor/vendor facilities.

1.10 SPC Audit System:
At a minimum, the contractor's SPC Audit System shall consist of auditing compliance with the planned arrangements specified in the general and detailed SPC plans followed by a review and analysis of the outcome to include implementation of necessary corrective action.

1.11 SPC Records:
Identify various records to be used in support of SPC and describe their use. Identify retention periods.

2.0 Detailed Plan:
This section shall detail specific manufacturing process/operation parameters under control.

2.1 Control of Process/Operation Parameters or Characteristics:
a. Identify the following for each process/operation by name or characteristic under control:

(1) Identify process/operation by name or characteristic and provide rationale for selection; justification for non-selection if the parameter or characteristic is identified as critical, special and/or major.

(2) Describe how the characteristic is produced; the chain of events, type and number of machines involved, location of manufacturing facility, tolerances maintained, etc.

(3) Production and inspection machinery used. Include the production rate, number of shifts and length of shifts plus whether inspection is fully or semi-automatic or manual. If manual, identify the type of gages in use.

(4) Identify the type of charts to be maintained and whether the process/operation is performed in-house or subcontracted out; identify facility/vendor where process/operation parameters are targeted for SPC.

Section E

2.2 Reduction or Elimination of Inspection/Test: The Contracting Officer will accept submissions of requests for reduction or elimination of final acceptance inspection/testing when the SPC contract requirements are met. Each request shall contain and/or address the following: control charts documenting twenty (20) consecutive production shifts or more for the same process/operation parameter under control; type of control chart utilized; control chart limits and process average or grand average fraction defective (as applicable); definition of out-of-control condition and corrective actions taken during out-of-control conditions; specification and part number.

E-03 REWORK AND REPAIR OF NONCONFORMING MATERIAL

(a) Rework and Repair are defined as follows:

(1) Rework - The reprocessing of nonconforming material to make it conform completely to the drawings, specifications or contract requirements.

(2) Repair - The reprocessing of nonconforming material in accordance with approved written procedures and operations to reduce, but not completely eliminate, the nonconformance. The purpose of repair is to bring nonconforming material into a usable condition. Repair is distinguished from rework in that the item after repair still does not completely conform to all of the applicable drawings, specifications or contract requirements.

(b) Rework procedures along with the associated inspection procedures shall be documented by the Contractor and submitted to the Government Quality Assurance Representative (QAR) for review prior to implementation. Rework procedures are subject to the QAR's disapproval.

(c) Repair procedures shall be documented by the Contractor and submitted on a Request for Deviation/Waiver, DD Form 1694, to the Contracting Officer for review and written approval prior to implementation.

(d) Whenever the Contractor submits a repair or rework procedure for Government review, the submission shall also include a description of the cause for the nonconformances and a description of the action taken or to be taken to prevent recurrence.

(e) The rework or repair procedure shall also contain a provision for reinspection which will take precedence over the Technical Data Package requirements and shall, in addition, provide the Government assurance that the reworked or repaired items have met reprocessing requirements.

(f) Rework and repair is a supply chain flow-down requirement that applies to contractors and their suppliers, vendors or subcontractors.

Section E

E-04 DESTRUCTIVE TESTING

(a) All costs for destructive testing by the Contractor and items destroyed by the Government are considered as being included in the contract unit price.

(b) Where destructive testing of items or components thereof is required by contract or specification, the number of items or components required to be destructively tested, whether destructively tested or not, shall be in addition to the quantity to the delivered to the Government as set forth in the Contract Schedule.

(c) All pieces of the complete First Article shall be considered as destructively tested items unless specifically exempted by other provisions of this contract.

(d) The Contractor shall not reuse any components from items used in a destructive test during First Article, lot acceptance inprocess testing, unless specifically authorized by the Contracting Officer.

(e) The Government reserves the right to take title to all or any items or components described above. The Government may take title to all or any items or components upon notice to the Contractor. The items or components of items to which the Government takes title shall be shipped in accordance with the Contracting Officer's instructions. Those items and components to which the Government does not obtain title shall be rendered inoperable and disposed of as scrap by the Contractor.

E-05 MEASUREMENT SYSTEM EVALUATION

(a) Definitions. This paragraph defines specific terms utilized throughout the rest of this section and in the accompanying Contract Data Requirements List (CDRL) and Data Item Description (DID). This aids in clarifying the MSE requirements to Government and contractor personnel.

(1) Acceptance Inspection Equipment (AIE). All equipment (includes AAIE defined below), special and standard, including dimensional gages, measuring equipment, test fixtures, electronic and physical test equipment, and other test equipment used for examination and test of a product to determine conformance to the Technical Data Package (TDP) which may include drawings and specifications (e.g., Detail, Performance, Weapon specifications, and QAPs).

(2) Automated Acceptance Inspection Equipment (AAIE). AIE in which the inspection and acceptance determination of the product is performed, in whole or in part, in an automatic manner.

(3) Contractor Inspection Equipment. Government-approved equipment utilized by the contractor to perform examination and tests to assure conformance to contract requirements.

(4) Commercial Inspection Equipment. Industry-developed inspection equipment of universal application, without limitations to a specific part or item, which is advertised or cataloged as available to the trade or to the public on an unrestricted basis at an established price. Examples follow:

(i) Standard Test Equipment. Multiusage equipment that is specific to a function rather than to an item. It includes such items as hardness testers, tensile strength testers, meters, weighing devices, standard gear testers, ohmmeters, voltmeters, and oscilloscopes.

(ii) Standard Measuring Equipment (SME). Multipurpose equipment and standards used for performing measurements. It includes such items as micrometers, rulers, tapes, height gages, and protractors, etc. Standards include visual inspection equipment such as scratch and dig standards, surface finish comparator, color standards (FED-STD-595), etc.

(5) Nondestructive Testing. The development and application of technical methods to examine materials or components in ways that do not impair future usefulness and serviceability in order to detect, locate, measure and evaluate flaws; to assess integrity, properties and composition; and to measure geometrical characteristics. NDT includes Radiography/Radioscopic, Ultrasonic, Eddy Current, Magnetic Particle, and Liquid Penetrant.

(6) Measurement System Analysis (MSA). Per ASTM E2782 (Standard Guide for MSA), paragraph 3.1.7, MSA is any of a number of specialized methods useful for studying a measurement system and its properties.

(b) Scope. This section establishes requirements for design, supply, performance, and maintenance of AIE used for product inspection and acceptance. In addition, this section establishes requirements for the preparation, submission, and approval of AIE documentation.

(c) AIE. The contractor shall provide all AIE necessary to ensure conformance of components and end-items to contract requirements. AIE shall include inspection, measuring, and test equipment whether Government furnished or contractor furnished (including commercially acquired) along with the necessary specifications and procedures for their use (see ISO 10012, paragraph 6.2.1). The AIE shall not create or conceal defects on the product being inspected. All AIE documentation shall contain sufficient information to permit evaluation of the AIE's ability to test, verify, and/or measure the applicable characteristics or parameters (see applicable DID referenced in DD Form 1423).

(d) AIE Designs & Government Furnished Gages. AIE designs are of two types – Government designs (see (d)(1)) and contractor designs (see (d)(2)). When applicable, Government designs or Government furnished gages are designated in the TDP/contract; responsibility for all other AIE is assigned to the contractor. The designs, associated inspection procedures, and theory of operation shall have the level of detail to demonstrate capability of the proposed AIE to perform the required inspection.

(1) Government AIE Designs. Government AIE designs may consist of detailed drawings necessary for the fabrication and use of the AIE. Unless otherwise specified, the contractor may submit alternate or modified contractor designs of Government AIE designs.

(2) Contractor AIE Designs. Contractor AIE design drawings shall meet the requirements of ASME Y14.100, ASME Y14.5 and ASME Y14.43 and may include commercial inspection equipment. [“Commercial inspection equipment” is defined as shown in paragraph (a)(4) above. It shall be fully described by catalog listings or other means which provide sufficient information to permit identification and evaluation by the Government and may include illustrations and engineering data.] Designs shall be submitted for any special fixture(s) to be used. Unless otherwise specified, Gage Tolerancing Policy shall be in accordance with ASME Y14.43, “Absolute Tolerancing (Pessimistic Tolerancing).”

(3) Visual Inspection. Visual inspection standards used for the acceptance/rejection of product shall be submitted for approval.

(e) AIE Package Submittals. The contractor shall prepare the AIE package submittal in accordance with the DID referenced in the applicable Contract Data Requirements List (CDRL – DD Form 1423). In addition, the contractor shall adhere to the following requirements:

(1) Designs for Approval. Contractor designs and/or the submission for the use of Government designs shall be approved by the Government. Partial submission of AIE designs is permissible in order to expedite the approval process; however, the response date for design review will be based on the date of the final complete submission of designs.

(2) Correspondence in English. The contractor shall ensure all AIE correspondence and documentation are submitted in English.

(3) Units of Measurement. The units of measurement within the AIE package submittal shall be consistent with the requirements of the Technical Data Package (TDP).

(4) AIE Flow Down. The contractor shall flow down AIE requirements to sub-contractors at any tier who are performing acceptance inspections.

Section E

(f) Characteristics for Inspection. AIE documentation for Critical, Special, and Major characteristic inspections shall be submitted to the Government for approval in accordance with (IAW) the CDRL (see DD Form 1423). AIE for Minor characteristic inspections shall be submitted to the Government for approval IAW CDRL (see DD Form 1423) and as required below:

(1) [X] Listed Minor (characteristics displayed on specifications and/or drawings

(2) [ ] Government selected list (as attached or as provided herein): Click here to enter text.

(3) [ ] Not submitted

(g) Automated Acceptance Inspection Equipment. The AAIE shall accept only conforming material. All characteristics requiring AAIE per the TDP shall utilize inspection equipment with a minimum demonstrated reliability of 99.8% at a 90% confidence level to detect non-conforming material unless otherwise specified below.

(1) Reliability of _____% at a _____% Confidence Level for Critical/Special Characteristics

(2) Reliability of _____% at a _____% Confidence Level for Major Characteristics

(3) For inspection of major and minor characteristics where contractor utilizes AAIE when it is not required by the TDP, the AAIE package shall be submitted to the Government for approval. If the Minor characteristic is not listed in paragraph (f)(2) or not required for submittal in paragraph (f)(3), then the AAIE requirements (e.g., verification, calibration, prove-out, etc.) of the inspection shall still be performed.

(4) All AAIE packages submitted to the Government for approval shall be in accordance with MIL-A-70625 (*Automated Acceptance Inspection Equipment Design, Testing and Approval of*). Furthermore, the contractor shall be responsible for producing the acceptance and rejection verification standards/masters representative of the characteristics the AAIE is designed to inspect. The verification standards and frequency of use require Government approval prior to use. When verification standards are used for the VL-VII "sampling plan" per MIL-STD-1916 paragraph 4.4, verification standards and frequency of use shall require Government approval prior to use.

(5) If the AAIE accepts a critical characteristic "reject" standard the contractor shall notify the Government and act in accordance with paragraph (f) of Critical Characteristic Control. In addition, if the AAIE accepts a major and/or minor characteristic "reject" standard the contractor shall act in accordance with paragraph 8.3 of ISO 10012 or paragraph 5.2.3 of ANSI/NCSL Z540.3.

Section E

(6) All AAIE shall be required to pass a Government-approved Acceptance (Prove-Out) Test. The contractor shall conduct this test per the approved test plan and shall submit a test analysis report for approval. See applicable DD Form 1423. This test shall be performed at the contractor's facilities whose manufacturing system has had the AAIE fully integrated and calibrated as per paragraph (j) of this section. The contractor shall allow Government personnel access to this facility and unobstructed monitoring of this test.

(7) The contractor shall notify the Government prior to a modification and/or relocation of the Government-approved AAIE. The modified AAIE designs shall be submitted for approval. The modified and/or relocated AAIE shall require submission of the acceptance test plan (prove-out) and results for review and approval prior to use. The modified and/or relocated AAIE shall be in accordance with paragraphs (g)(1) – (g)(6).

(h) Measurement System Analysis (MSA). The contractor is responsible to ensure all AIE is, at a minimum, stable, repeatable, and reproducible for all characteristics. Refer to ASTM E2782 and/or AIAG MSA for guidance. The contractor shall provide objective evidence, including the MSA assessment plan, associated data, and analysis, which demonstrates the AIE is, at a minimum, stable, repeatable, and reproducible for the following characteristics (MSA CDRL): N/A

Approval of submitted MSA(s) must be granted before the corresponding AIE can be used or continue to be used for acceptance of product. If at any time following approval of the AIE and MSA the AIE is disapproved, then the MSA shall be disapproved. After the resubmitted AIE is approved, the MSA shall be conducted on the approved AIE and resubmitted for approval.

(i) Robust AIE System**.** The contractor shall ensure the AIE and its use is not negatively affected by any manufacturing/inspection environmental stimuli including, but not limited to production rate, noise, temperature, humidity, and vibration.

(j) AIE Calibration and Verification. The calibration system shall be in accordance with ISO 10012 or ANSI/NCSL Z540.3. All AIE shall be subjected to scheduled calibration intervals to ensure that the equipment will accept only conforming product and reject all non-conforming product for the duration of the approved calibration period. AIE shall be subjected to periodic verification to ensure that the equipment will continue to accept and reject product with the same consistency as it did at the time of its previous calibration.

(k) Non-Destructive Testing (NDT). Contractor shall submit detailed plans for qualifying and certifying NDT personnel and plans for qualification and ongoing use of NDT methods used for inspecting product. If re-qualification of NDT personnel and/or NDT methods is required, then the applicable plans shall be submitted.

(1) Personnel performing NDT examinations shall be qualified and certified in accordance with the standard practices prescribed by NAS 410 (NAS Certification & Qualification of

NDT Personnel), ANSI/ASNT-CP-189 (ASNT Standard for Qualification and Certification of NDT Personnel), or SNT-TC-1A (Recommended Practice for Personnel Qualification and Certification in NDT), and additional procedures that may be identified by the Government. Acceptance of product using NDT shall be performed by personnel at a level of qualification consistent with that defined in the applicable standard.

(2) The NDT method(s) shall be applied in accordance with ASTM E 543 (Standard Specification for Agencies Performing Nondestructive Testing) and the current nationally recognized standard practices appropriate to the NDT method(s) employed, such as ASTM E-1742 (Standard Practice for Radiographic Examination) and SAE-AMS-STD-2154 (Inspection, Ultrasonic, Wrought Metals, Process For). Each application technique shall identify the standard(s) utilized. Non-destructive testing includes, but is not limited to, the following types of testing: Radiography/Radioscopic, Ultrasonic, Eddy Current, Magnetic Particle, and Liquid Penetrant.

(l) Contractor Alternate Inspection Method(s), Modifications and/or Relocation of AIE (Non-Automated) After Government Approval. If the contractor proposes an alternate inspection method and/or modifies the AIE design(s) affecting hardware, software, or procedures after Government approval the intended change(s) shall be submitted to and approved by the Government prior to implementation. If an AIE is relocated and the relocation risks the integrity of the inspection system, notify the Government to determine information needed to assess impact to AIE. See DD Form 1423.

(m) Responsibility for AIE Package Submittal. The contractor shall submit the AIE design documentation package within contractual timeframes per CDRL (See DD Form 1423). The Government will provide approval or disapproval within the timeframe specified in the CDRL. Disapproval of the AIE package will require re-submittal and subsequent Government review in accordance with the CDRL requirements. The AIE package and any required prove-outs must be approved prior to First Article (FA) (if required) or production start-up if FA is not required.

(n) Government's Right to Disapprove AIE. The Government reserves the right to revoke approval of any AIE that is not satisfying the required acceptance criteria at any time during the performance of this contract. See DD Form 1423.

(o) Navy Furnished Gages. When gages are listed in paragraph (o)(9) below, the Navy Special Interface Gage (NSIG) Requirement paragraphs (o)(1) – (o)(8) shall be satisfied.

(1) The NSIG(s) are provided for verification of selected interface dimensions and do not constitute sole acceptance criteria of production items or relieve the contractor of meeting all drawing/specification requirements under the contract.

(2) The contractor is responsible for contacting the Naval Surface Warfare Center (NSWC), Corona Division at least 45 days prior to FAT (if required) or production, for the delivery of NSIG(s).

(3) NSIG(s) will be forwarded to the contractor for joint use by the Government and the contractor. Government furnished NSIG(s) shall not be used by the contractor(s) or subcontractor(s) as in-process or working gage(s).

(4) For production items that fail to be accepted by the applicable NSIG(s), an alternate inspection method may be submitted for approval.

(5) The contractor may substitute contractor designed and built AIE for the NSIG(s) noted in paragraph (o)(9) below. However, the designs require Government (Navy) approval and the contractor AIE hardware requires Government (Navy) certification. AIE designs shall be submitted in accordance with CDRL (see DD Form 1423).

(6) The Government (Navy) shall not be responsible for discrepancies or delays in production items resulting through misuse, damage or excessive wear to the NSIG(s).

(7) Calibration and repair of the NSIG(s) shall only be performed as authorized by the NSWC Corona Division. Repair is at no cost to the contractor unless repair is required due to damage to the gages resulting from contractor fault or negligence. Damaged, worn, or otherwise unserviceable NSIG(s) shall be brought to the immediate attention of the CAO and NSWC Corona Division. The contractor shall not make any adjustments, alterations or add permanent markings to NSIG(s) hardware unless specified by the NSIG operating instructions or authorized by the NSWC Corona Division.

(8) Within 45 calendar days after final acceptance of all production items, the NSIG(s) shall be shipped to NSWC Corona Division, ATTN: Receiving Officer, Bldg 575, Gage Laboratory, 1999 Fourth St., Norco, CA 92860-1915. The following shipping and marking specifications are applicable:

(i) Shipping, MIL-STD-2073, “DOD Standard Practice for Military Packaging”

(ii) Marking, MIL-STD-129, “Marking for Shipment and Storage”.

(9) The following NSIG(s) shall be provided and are mandatory for use except as noted by paragraph (o)(5) above. N/A

<u>E-06 FIRST ARTICLE TEST (GOVERNMENT TESTING)</u>

Section E

(a) The Government first article test shall consist of:
PAP7993 – DTL14000033B w/ AMD 1
DEGN Stick – QAP 13051228
JA2 – QAP 13053606
M1 MP – MIL-DTL-60318D w/ AMD 2 Type I
M1 SP – MIL-DTL-60318D w/ AMD 2 Type II
M6 – MIL-P-63404
M9 60mm & 80mm – MIL-DTL-32322 w/ AMD 2 (N/A)
M14 – QAP 12956320
M30A1 – As specified in delivery order
M31A2 – DTL13008489 w/AMD 4
M64MP – MIL-DTL-32571 w/ AMD 1
M64SP - MIL-DTL-32571 w/ AMD 1
RPD-596(M865)– QAP 13033596, Dwg 13074472, DTL14000022G
RPD-596(M1002)– QAP 13033596, Dwg 13033596, DTL14000022G
SCDB – QAP 13051227, Dwg 13051227
Film, Inhibiting – MIL-F-63463 & Dwg 9240825;

which shall be examined and tested in accordance with contract requirements, the item specification (s), the Quality Assurance Provisions (QAPS) and drawings listed in the Technical Data Package.

(b) The first article shall be delivered to: Yuma Test Center 301 C Street Yuma, Arizona 85365-9498. The first article shall be delivered by the Contractor Free on Board (FOB) destination except when transportation protective service or transportation security is required by other provision of this contract. If such is the case, the first article shall be delivered FOB origin and shipped on Government Bill of Lading.

(c) The first article shall be representative of items to be manufactured using the same processes and procedures as contract production. All parts and materials, including packaging and packing, shall be obtained from the same source of supply as will be used during regular production. All components, subassemblies, and assemblies in the first article sample shall have been produced by the Contractor (including subcontractors) using the technical data package provided by the Government.

(d) Prior to delivery, each of the first article assemblies, subassemblies, and components shall be inspected by the Contractor for all contract, drawing, QAP and specification requirements except for any environmental or destructive tests indicated below: N/A. The Contractor shall provide to the Contracting Officer at least 15 calendar days advance notice of the schedule date for final inspection of the first article. Those inspections which are of a destructive nature shall be performed upon additional sample parts selected from the same lot(s) or batch(es) from which the first article was selected. Results of contractor inspections (including supplier's and Vendor's inspection records when applicable) shall be verified by the Government Quality Assurance Representative (QAR). The QAR shall attach to the contractor's inspection report a completed DD Form 1222. One copy of the contractor's inspection report with the DD Form 1222 shall be forwarded with the first article; two copies shall be provided to the Contracting Officer. Upon delivery to the Government, the first article may be subjected to inspection for all contract, drawing, specification, and QAP requirements.

(e) Notwithstanding the provisions for waiver of first article, an additional first article sample or portion thereof, may be ordered by the Contracting Officer in writing when (i) a major change is made to the technical data, (ii) whenever there is a lapse in production for a period in excess of 90 days, or (iii) whenever a change occurs in the place of performance, manufacturing process, material used, drawing, specification or source supply. When conditions (i), (ii), or (iii) above occurs, the Contractor shall notify the Contracting Officer so that a determination can be made concerning the need for an additional first article sample or portion thereof, and instructions provided concerning the submission, inspection and notification of results. Costs of the first article testing resulting from production process change, change in the place of performance, or material substitution shall be borne by the Contractor.

(f) Rejected first articles or portions thereof not destroyed during inspection and testing will be held at the government first article test site for a period of 30 days following the date of notification of rejection, pending receipt of instructions from the Contractor for the disposition of the rejected material. The Contractor agrees that failure to furnish such instructions within said 30 day period shall constitute abandonment of said material by the Contractor and shall confer upon the Government the right to destroy or otherwise dispose of the rejected items at the discretion of the Government without liability to the Contractor by reason of such destruction or disposition.

E-07 FIRST ARTICLE TEST (CONTRACTOR TESTING)

(a) The first article shall consist of:
PAP7993 – DTL14000033B w/ AMD 1
Benite Strands – MIL-B-45451B w/ AMD 5
DEGN Stick – QAP 1305122
JA2 – QAP 13053606
M1MP – MIL-DTL-60318D w/ AMD 2
M1SP – MIL-DTL-60318D w/ AMD 2
M2 – MIL-P-60989A w/AMD 3
M5 – MIL-P-48089
M6 – MIL-P-63404
M9 40MM – MIL-P-50206 w/AMD 5
M9 60mm & 80mm - MIL-DTL-32322 w/AMD 2
M10 – MIL-P-48099A
M14 – QAP 12956320 and Drawing 12956320
M30A1 – DTL12991223

Section E

M31A2 – DTL13008489 w/AMD 4
M64MP – MIL-DTL-32571 w/ AMD 1
M64SP – MIL-DTL-32571 w/ AMD 1
N-5 – MIL-P-17689
RPD-596 (M865A1)– QAP 13033596 & Dwg 13074472
RPD-596(M1002)– QAP 13033596, Dwg 13033596
SCDB – QAP 13051227, Dwg 13051227
Film, Inhibiting – MIL-F-63463 & Dwg 9240825
Propellant AFP-001 – SP200610304 & Dwg 200610330
Propellant AFP-001 MK44 – 28081855
Propellant Grain for MK126 Rkt Mtr – 87012A1115 & WS-32438
Nosih AA-6 – AS 3028E
Nitrocellulose Grade A, Type I – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade A, Type II – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade B, Type I – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade B, Type II – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade B, Type III – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade C, Type I – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade C, Type II – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade D – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade E – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade F – MIL-DTL-244 w/AMD

which shall be examined and tested in accordance with contract requirements, the item specifications, Quality Assurance Provisions (QAPS) and all drawings listed in the Technical Data Package.

(b) The first article shall be representative of items to be manufactured using the same processes and procedures and at the same facility as contract production. All parts and materials, including packaging and packing, shall be obtained from the same source of supply as will be used during regular production. All components, subassemblies, and assemblies in the first article sample shall have been produced by the Contractor (including subcontractors) using the technical data package provided by the Government.

(c) The first article shall be inspected and tested by the contractor for all requirements of the drawing(s), the QAP(s), and specification(s) referenced thereon, except for:

(1) Inspections and tests contained in material specifications provided that the required inspection and tests have been performed previously and certificates of conformance are submitted with the First Article Test Report.

(2) Inspections and tests for Military Standard (MS) components and parts provided that inspection and tests have been performed previously and certifications for the components and parts are submitted with the First Article Test Report.

(d) Those inspections which are of a destructive nature shall be performed upon additional sample parts selected from the same lot(s) or batch(es) from which the first article was selected.

(e) A First Article Test Report shall be compiled by the contractor documenting the results of all inspections and tests (including supplier's and Vendor's inspection records and certifications, when applicable). The First Article Test Report shall include actual inspection and test results to include all measurements, recorded test data, and certifications (if applicable) keyed to each drawing, specification and QAP requirement and identified by each individual QAP characteristic, drawing/specification characteristic and unlisted characteristic. The Government Quality Assurance Representative's (QAR) findings shall be documented on DD Form 1222, Request for and Results of Tests, and attached to the contractor's test report. Two copies of the First Article Test Report and the DD Form 1222 will be submitted through the Administrative Contracting Officer to the Contracting Officer with an additional information copy furnished to PQM.

(f) Notwithstanding the provisions for waiver of first article, an additional first article sample or portion thereof, may be ordered by the Contracting Officer in writing when (i) a major change is made to the technical data, (ii) whenever there is a lapse in production for a period in excess of 90 days, or (iii) Whenever a change occurs in place of performance, manufacturing process, material used, drawing, specification or source of supply. When conditions (i), (ii), or (iii) above occurs, the Contractor shall notify the Contracting Officer so that a determination can be made concerning the need for the additional first article sample or portion thereof, and instructions provided concerning the submission, inspection, and notification of results. Costs of the first article testing resulting from production process change, change in the place of performance, or material substitution shall be borne by the Contractor.

<u>E-08 SUPPLEMENTAL WARRANTY INFORMATION</u>

(a) Whenever a request for waiver, deviation, or other change to a requirement in the contract is approved, Contractor responsibilities arising out of provisions of this section are relieved only to the extent of the terms and conditions specified in the approval.

(b) For purpose of identifying the warranted material to facilities receiving it, the following instructions will apply:

(1) For a quantity of warranted material which has been accepted at origin by the Government, the pertinent DD Form 250 (and the pertinent Ammunition Data Card if the card is contractually required) shall bear the following annotation: "The warranty period of the quantity stated hereon of (<u>enter the item serial/lot number(s) as applicable</u>) begins on (<u>enter the date of acceptance of the quantity</u>) and ends on (<u>enter the date of the end of the warranty period for the quantity</u>)."

(2) For a quantity of warranted material which has not been accepted at origin by the Government, the pertinent DD Form 250 (and the pertinent Ammunition Data Card if the card is contractually required) shall bear the following annotation: “The warranty period for the quantity stated hereon of (<u>enter item serial/lot number(s) as applicable</u>) begins on the date of the acceptance of the lot and ends (<u>enter the length of the warranty period</u>) days later.”

<u>E-09 AMMUNITION DATA CARDS AND REPORT OF CONTRACTOR BALLISTIC TESTING</u>

(a) Ammunition Data Cards shall be prepared in accordance with MIL-STD-1168 and shall follow the format required by the world wide web application identified as WARP or Worldwide Ammunition-data Repository Program. Information provided in paragraphs 6.7 through 6.16 of MIL-STD-1168 shall be considered mandatory requirements where all instances of the term “should” are considered to be replaced with the word “shall.” This shall also include, if required on the DD Form 1423, a Report of Contractor Lot Acceptance/Ballistic Testing and Acceptance and Description Sheets (for Propellants and Explosives). WARP will reside within the Munitions History Program (MHP). Additional details on these WARP applications are provided below.

(b) MHP-WARP Access Procedures

(1) Government or Contractor employee with CAC and Army Master Identity Directory (AMID) (replaced AKO) account:

(a) Enter the MHP-WARP web address, https://mhpwarp.redstone.army.mil, into the browser

(b) At EAMS-A screen select Login

(c) Select certificate for authentication

(b) Enter CAC PIN when prompted

(c) On the WARP registration page, select JMC for access related to conventional munitions/components (AMCOM is for guided missiles/components only) and follow instructions

(2) Contractor or Government employee without CAC and AMID account: MHP-WARP uses Enterprise Access Management Service – Army (EAMS-A) multi-factor authentication as a security measure to protect the integrity of stored data. PKI/External Certification Authority (ECA) no longer works for accessing MHP-WARP. You are required to use one of the following to access MHP-WARP:

(a) EAMS-A MobileConnect: Download the MobileConnect app to a personal mobile device via Google Play or Apple App Store.

(b) Yubikey: Purchase a Yubikey hardware token that supports FIDO2/WebAuthN (https://www.yubico.com/store/compare/).

(3) Prior to registering either EAMS-A MobileConnect or Yubikey, each user accessing MHP-WARP will require a sponsored EAMS-A account. To request a sponsored account,

email the user's Email Address, First Name, Middle Name and Last Name to the JMC MHP-WARP Administrators at usarmy.ria.jmc.mbx.warp@army.mil.

(4) Once an EAMS-A sponsored account is established, proceed with registering via the chosen method:

(a) EAMS-A MobileConnect: https://mobileconnect.us.army.mil

(b) Yubikey: https://fido2.federation.eams.army.mil/yubikey/register

(c) Contact the Army Enterprise Service Desk (AESD) at 1-866-335-2769 if assistance is required due to failure to register MobileConnect or Yubikey.

(5) Once registered, enter the MHP-WARP web address into the browser: https://mhpwarp.redstone.army.mil

(a) Follow instructions for the multi-factor authentication process

(b) On the WARP registration page, select JMC for access related to conventional munitions/components (AMCOM is for guided missiles/components only) and follow instructions

(c) HELP Points of Contact are as follows:
MHP Access – usarmy.redstone.amcom.mbx.immc-mhp-helpdesk@army.mil

JMC Quality Administrators for WARP issues – usarmy.ria.jmc.mbx.warp@army.mil

(d) Worldwide Ammunition-data Repository Program (WARP)
An online user's manual will provide additional help in the development of an ammunition data card. It is recommended that you download and read the user's manual prior to inputting your initial data card. The user's manual also contains screen shots, which depict what the inputter will see during the ADC input process.

(e) Ammunition Data Card Input
ADC input allows current contractors and government facilities the capability to create, and submit for approval, ADCs which meet the format requirements of MIL-STD-1168. ADCs are automatically forwarded to the respective Government Agency Responsible for Acceptance (GARA). The GARA in most cases is the Defense Contract Management Agency (DCMA) Quality Assurance Representative (QAR), who reviews contractor input for accuracy and completeness, and after updating the disposition code for the specific lot, submits the ADC to the database. The inputter is granted access only to ADCs identified with its specific manufacturing code. The use of previously inputted ADCs through the TEMPLATE option significantly reduces input effort, while increasing accuracy and consistency of data.

(f) Email Notification
WARP provides immediate, automated notification to process participants when actions are required. When the contractor has completed an ADC submission, an email message is routed to the GARA advising that an ADC awaits review and approval. If the GARA

approves the ADC as submitted, the ADC is released to the base and an email, with approved data card, is routed back to the originator. If the ADC requires modification or correction to conform with MIL-STD-1168 and contract requirements, an email is provided to the ADC originator advising that corrective action is required prior to approval.

(g) Information Updates
It is important that the System Administrators are apprised when a contractor receives a new contract. The contractor shall notify usarmy.ria.jmc.mbx.warp@army.mil within 30 days after receipt of a new contract. Information to be included shall be the contract number, item, GARA, Manufacturer's identification symbol and the names of the individuals who will be inputting ADCs into the system. If you are a new contractor and do not have a Manufacturer's identification symbol, you can obtain one by sending an email to usarmy.ria.jmc.mbx.warp@army.mil. The email must contain manufacturer's name, address where performance of the contract will take place, and a point of contact.

(h) Report of Contractor Ballistic/Function Testing Module

(1) In addition to its ADC function, WARP also serves as a repository for reports of contractor ballistic (or functional) testing. Whenever the contract requires contractor performance of ballistic testing, the results of such testing shall be captured by you, the performing contractor, within a specially designed Lot Acceptance Test Report (LATR) module.

(2) Within the LATR module, you are required to provide a report of any contractor ballistic/function testing and to submit the report in electronic format via the WWW. The report must be a .pdf file for the upload process to work.

(i) Acceptance and Description Sheets (for Propellants and Explosives) Module: The WARP application now contains an area for on-screen data entry capturing requirements per MIL-STD-1171 for Acceptance and Description Sheets with respect to contract specified Propellant, Chemical and Explosive constituents.

E-10 AMMUNITION DATA CARDS

Detailed requirements and guidance for the preparation of Ammunition Data Cards (ADCs) and Ammunition Lot Numbers are contained in MIL-STD-1168, the applicable DD Form 1423 and the Worldwide Ammunition-data Repository Program (WARP) online user's manual. Detailed requirements for obtaining and using a manufacturer's identification symbol, which is an integral component of the ammunition lot number, can be found in MIL-STD-1168 and the WARP user's manual. Information provided in paragraphs 6.7 through 6.16 of MIL-STD-1168 shall be considered mandatory requirements where all instances of the term "should" are considered to be replaced with the word "shall."

Section E

(a) The contractor shall develop and submit ADCs in accordance with the requirements of this section, MIL-STD-1168, and the user's manual located on the WARP database. The WARP application is accessed through the Munitions History Program (MHP) website. (Refer to "Ammunition Data Cards and Report of Contractor Ballistic Testing" for more information.) The ADC requirement is a flow-down requirement that applies to contractors and their suppliers, vendors or subcontractors.

(b) The contractor shall prepare an ADC for each lot of item(s) being produced under this contract, regardless of whether or not those lots are accepted or rejected by the Government. The ADC shall comply with MIL-STD-1168 and WARP requirements.

(c) Unless otherwise authorized by the Procuring Contracting Officer, the contractor shall include, in the components sections on the ADC representing the deliverable item, as a minimum; all assemblies, sub-assemblies, components, explosives, and propellants listed below for the item being procured.

End Item Component Listing:

PAP7993
MIL-DTL-244 Type I, Grade C - Nitrocellulose
MIL-DTL-47059 – Acetyl Triethyl Citrate
MIL-DTL-255B – Ethyl Centralite
MIL-P-193A(1) – Potassium Sulfate
MIL-DTL-155 - Graphite

Benite Strands
MIL-DTL-244 Type I, Grade C - Nitrocellulose
MIL-P-156 Class 1 or 2 – Potassium Nitrate
JAN-S-487, Grade A – Sulfur
JAN-C-178, Class D – Charcoal
JAN-E-255, Class 2 – Ethyl Centralite

DEGN Stick
MIL-DTL-244 – Nitrocellulose
DOD-D-64015 – Diethylene Glycol Dinatrate
DOD-M-64040 - Methyl Diphenylurea (Akardit II)
MIL-G-155 – Graphite, Grade III, or IV
MIL-M-51103 – Magnesium Oxide

JA2
MIL-DTL-244 – Nitrocellulose
DOD-D-64015 – Diethylene Glycol Dinatrate
MIL-N-246 – Nitroglycerine Type I
DOD-M-64040 - Methyl Diphenylurea (Akardit II)

Section E

MIL-G-155 – Graphite, Grade II, III, or IV
MIL-M-51103 – Magnesium Oxide
MIL-G-155 – Graphite Glaze (Grade III or IV)

M1MP
MIL-DTL-244 – Nitrocellulose
MIL-D-218 – DIBUTYLPHTHALATE
A-A-59256 - DINITROTOLUENE
MIL-D-98 – DIPHENYLAMINE
MIL-G-155 – GRAPHITE
MIL-P-193 - POTASSIUM SULFATE

M1SP
MIL-DTL-244 – Nitrocellulose
MIL-D-218 – DIBUTYLPHTHALATE
A-A-59256 - DINITROTOLUENE
MIL-D-98 – DIPHENYLAMINE
MIL-P-193 - POTASSIUM SULFATE

M2
MIL-DTL-244 – Nitrocellulose, Grade C, Type I or II
MIL-N-246 – Nitroglycerin
MIL-P-156 – Potassium Nitrate Class 2 or 3
MIL-B-162 – Barium Nitrate Class 3
MIL-E-255 – Ethyl Centralite
MIL-G-155 – Graphite Grade III or IV

M5
MIL-DTL-244 – Nitrocellulose, Grade C, Type II
MIL-N-246 – Nitroglycerin
MIL-P-156 – Potassium Nitrate Class 2
MIL-B-162 – Barium Nitrate Class 3
MIL-E-255 – Ethyl Centralite
MIL-G-155 – Graphite Grade III or IV

M6
MIL-DTL-244 – Nitrocellulose, Grade C, Type I
MIL-P-193 – Potassium Sulfate
MIL-D-98 – DIPHENYLAMINE
A-A-59256 - DINITROTOLUENE
MIL-D-218 – DIBUTYLPHTHALATE

M9 (40MM)
MIL-DTL-244 – Nitrocellulose, Grade C, Type II

Section E

MIL-E-255 – Ethyl Centralite
MIL-P-156 – Potassium Nitrate

M9 (60MM & 80MM)
MIL-DTL-244, Grade C, Type II - Nitrocellulose
MIL-E-255, Class 2 or 3 - Ethyl Centralite
MIL-N-246, Type I - Nitroglycerin
MIL-P-156, Class 2 or 3 - Potassium Nitrate

M10
MIL-DTL-244, Grade C, Type I - Nitrocellulose
MIL-P-193 - POTASSIUM SULFATE
MIL-D-98 – DIPHENYLAMINE
MIL-G-155 – Graphite

M14
MIL-DTL-244, Grade C, Type I – Nitrocellulose
12982933 - Dinitrotoluene
ASTM D-608-90 – Dibutylphthalate
12982932 – Diphenylamine
12982931 – Graphite Grade III or IV

M30A1
As specified on the deliver order

M31A2
MIL-DTL-244, Type I, Grade A - Nitrocellulose
MIL-N-246 - Nitroglycerin
MIL-N-494 - Nitroguanidine
MIL-DTL-255 - Ethyl Centralite
ASTM D608-90 - Dibutylphthalate
MIL-P-193, Type I - Potassium Sulfate

M64MP
MIL-DTL-244 - Nitrocellulose Type I, Grade C
MIL-A-47059 - Acetyl Triethyl Citrate
DOD-M-64040 – Akardite (Methyldiphenylurea)
MIL-P-193 – Potassium Sulfate, Type I
MIL-DTL-155 – Graphite, Glaze Grade III or IV

M64SP
MIL-DTL-244 - Nitrocellulose Type I, Grade C
MIL-A-47059 - Acetyl Triethyl Citrate
DOD-M-64040 – Akardite (Methyldiphenylurea)

Section E

MIL-P-193 – Potassium Sulfate, Type I
MIL-DTL-155 – Graphite, Glaze Grade III or IV

N-5
MIL-DTL-244 – Nitrocellulose
MIL-N-246 – Nitroglycerin
JAN-D-242 – Diethyl Phthalate
JAN-W-181 – Candelilla Wax
MIL-N-3300 – 2-Nitrodiphenylamine
C-MIL-C-17701 – Compound H-101
C-MIL-C-17702 – Compound S-202

RPD-596 (M865)
MIL-DTL-244 – Nitrocellulose Type I, Grade C
MIL-N-246 – Nitroglycerine Type I
MIL-A-47059 – Acetyl Tri-Ethyl Citrate
A-A-59317 – Carbon Black, Grade A or G
DOD-M-64040 – Akardite II (Methyldiphenylurea)
12982931 – Graphite Glaze, Grade III or IV

RPD-596 (M1002)
MIL-DTL-244 – Nitrocellulose Type I, Grade C
MIL-N-246 – Nitroglycerine Type I
MIL-A-47059 – Acetyl Tri-Ethyl Citrate
A-A-59317 – Carbon Black, Grade A or G
DOD-M-64040 – Akardite II (Methyldiphenylurea)
12982931 – Graphite Glaze, Grade III or IV

SCDB
MIL-DTL-244 – Nitrocellulose
MIL-N-246 – Nitroglycerine
DOD-D-64015 – Diethylene Glycol Dinitrate
DOD-M-64040 – Methyl Diphenyl Urea
MIL-M-51103 – Magnesium Oxide
MIL-G-155 – Graphite Grade III or IV

Film, Inhibiting
MIL-P-63462 – Ethyl Cellulose

Propellant (AFP-001)
MIL-DTL-244 - Nitrocellulose Grade C Type I
MIL-D-98 – Diphenylamine
MIL-P-156 – Potassium Nitrate
MIL-P-193 – Potassium Sulfate

Section E

MIL-M-19719 – Methyl Centralite
MIL-G-155 – Graphite

Propellant (AFP-001 MK44)
MIL-DTL-244 – Nitrocellulose Grade C, Type I
MIL-D-98 – Diphenylamine
MIL-P-156 – Potassium Nitrate
MIL-P-193 – Potassium Sulfate
MIL-M-19719 – Methyl Centralite
MIL-G-155 – Graphite Grade III or IV

Propellant Grain (F/MK126 Rkt Mtr)
MIL-DTL-244 - Nitrocellulose
MIL-N-246 - Nitroglycerin
A-A-59314 – Diethyl Phthalate
MIL-W-181 – Candelilla Wax
MIL-L-17699 – Compound H-101
MIL-L-17700 – Compound S-202

NOSIH AA-6
MIL-DTL-244 – Nitrocellulose
MIL-N-246 – Nitroglycerin
MIL-T-301 – Triacetin
MIL-D-22346 – Di-n-propyl adipate
MIL-N-3399 – 2-Nitrodiphenylamine
MIL-B-85735 – LC-12-15
MIL-W-181 – Candelilla wax
A-A-59317 – Carbon Black
OS 12255 – Aluminum

Nitrocellulose Grade A, Type I
MIL-C-206, MIL-C-216, or MIL-C-20330 – Cellulose (Cotton, Woodpulp Sulfite, or Woodpulp Sulfate)
A-A-59342 – Ethyl Alcohol Grade 2

Nitrocellulose Grade A, Type II
MIL-C-206, MIL-C-216, or MIL-C-20330 – Cellulose (Cotton, Woodpulp Sulfite, or Woodpulp Sulfate)
A-A-59342 – Ethyl Alcohol Grade 2

Nitrocellulose Grade B, Type I
MIL-C-206, MIL-C-216, or MIL-C-20330 – Cellulose (Cotton, Woodpulp Sulfite, or Woodpulp Sulfate)
A-A-59342 – Ethyl Alcohol Grade 2

Section E

Nitrocellulose Grade B, Type II
MIL-C-206, MIL-C-216, or MIL-C-20330 – Cellulose (Cotton, Woodpulp Sulfite, or Woodpulp Sulfate)
A-A-59342 – Ethyl Alcohol Grade 2

Nitrocellulose Grade B, Type III
MIL-C-206, MIL-C-216, or MIL-C-20330 – Cellulose (Cotton, Woodpulp Sulfite, or Woodpulp Sulfate)
A-A-59342 – Ethyl Alcohol Grade 2

Nitrocellulose Grade C, Type I
MIL-C-206, MIL-C-216, or MIL-C-20330 – Cellulose (Cotton, Woodpulp Sulfite, or Woodpulp Sulfate)
A-A-59342 – Ethyl Alcohol Grade 2

Nitrocellulose Grade C, Type II
MIL-C-206, MIL-C-216, or MIL-C-20330 – Cellulose (Cotton, Woodpulp Sulfite, or Woodpulp Sulfate)
A-A-59342 – Ethyl Alcohol Grade 2

Nitrocellulose Grade D
MIL-C-206, MIL-C-216, or MIL-C-20330 – Cellulose (Cotton, Woodpulp Sulfite, or Woodpulp Sulfate)
A-A-59342 – Ethyl Alcohol Grade 2

Nitrocellulose Grade E
MIL-C-206, MIL-C-216, or MIL-C-20330 – Cellulose (Cotton, Woodpulp Sulfite, or Woodpulp Sulfate)
A-A-59342 – Ethyl Alcohol Grade 2

Nitrocellulose Grade F
MIL-C-206, MIL-C-216, or MIL-C-20330 – Cellulose (Cotton, Woodpulp Sulfite, or Woodpulp Sulfate)
A-A-59342 – Ethyl Alcohol Grade 2

(d) The component items identified below are from paragraph (c) above and will require their own component ADC in addition to being listed on the end item ADC. The component ADCs shall also comply with MIL-STD-1168 and WARP requirements.
Drawing Number from paragraph (c) above -3-, components as follows: N/A

(e) Lot numbers shall be in accordance with MIL-STD-1168 lot number convention and the technical data package requirements. Lot numbers shall be used for all ammunition end items and their major components, including inert, dummy, or non-energetic items and components. When not required by technical data package and not an end item or major component, the component lot number may be constructed through contractor lot number convention.

(f) The flowdown of the requirement for component ADCs generated via WARP is highly encouraged for other items not identified in paragraph (d) above when the prime contractor is purchasing components, assemblies, and subassemblies from subcontractors or vendors.

(g) All component RFD/ECPs shall be listed on the ADC for the deliverable item, as well as on the component ADC, when that component is identified in paragraph (d) above. The WARP user's manual provides information on the level of detail required.

(h) A sample ADC shall be developed and submitted to the WARP system 30 days prior to First Article testing or 30 days prior to production in the event a first article is not required. The WARP ADC program will not allow the submission of additional ADCs until such time as the sample ADC has been approved in the system.

E-11 MIL-STD-1171B, ENERGETIC MATERIAL DESCRIPTION SHEETS AND PROPELLANT LOADING AUTHORIZATION SHEETS

(a) The contractor shall prepare Energetic Material Description Sheets and Propellant Loading Authorization Sheets in accordance with MIL-STD-1171B when mandated by the Contract Data Requirements List (CDRL). The Worldwide Ammunition-data Repository Program (WARP) shall be utilized to store the data sheets required by MIL-STD-1171B. The Munitions History Program (MHP) network located at https://mhp.redstone.army.mil/ must be used to gain access to WARP.

(b) The requirements of MIL-STD 1171B specified in the CDRL is a flow-down requirement that applies to contractors and their suppliers, vendors or subcontractors.

(c) The contractor is responsible for on-screen entry of the data sheets into the appropriate Description Sheets and Loading Authorizations module located in the WARP system.

(d) The presence of the contractor's typed signature has the same legal effect and consequences of a handwritten signature. The signatory of the data sheets has the authority to sign for the contractor and certifies the information contained on the data sheets is truthful and accurate as evidenced by release of the typed signature.

The propellants requiring Loading Authorizations and Propellant Description Sheets are:

PAP7993 - DTL14000033B w/ AMD 1
Benite Strands - MIL-B-45451B
DEGN Stick - QAP 1305122

Section E

JA2 - QAP 13053606
M1MP - MIL-DTL-60318D w/ AMD 2
M1SP - MIL-DTL-60318D w/ AMD 2
M2 – MIL-P-60989A w/ AMD 3
M5 – MIL-P-48089
M6 – MIL-P-63404
M9 (40MM)- MIL-P-50206
M9 (60MM & 80MM)- MIL-DTL-32322 w/ AMD 2
M14 – MIL-DTL-64159C
M30A1 – DTL 12991223
M31A2 – DTL 13008489 w/ AMD 4
M64MP – MIL-DTL-32571 w/ AMD 1
M64SP - MIL-DTL-32571 w/ AMD 1

N-5 – MIL-P-17689
RPD-596 (M865) – Dwg 13074472
RPD-596 (M1002) – Dwg 13033596
SCDB – QAP 13051227 & Dwg 13051227
Film, Inhibiting – MIL-F-63463 & Dwg 9240825
Propellant (AFP-001) – SP200610304 & Dwg 200610330
Propellant (AFP-001 MK44)- Dwg 28081855
Propellant Grain for MK126 Rkt Mtr – 87012A1115

The explosives/chemicals requiring Description Sheets for Explosives, Chemicals are:

Nitrocellulose Grade A, Type I – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade A, Type II – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade B, Type I – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade B, Type II – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade B, Type III – MIL-DTL-244 w/AMD1
Nitrocellulose Grade C, Type I – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade C, Type II – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade D – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade E – MIL-DTL-244 w/AMD 1
Nitrocellulose Grade F – MIL-DTL-244 w/AMD 1

E-12 2-D BAR CODING

(a) As a logistics measure to improve inventory, accountability, security and control, the supplier is required to provide 2-D Bar Codes in accordance with MIL-STD-129 and MIL-PRF-61002 and as further detailed in Section D of the contract.

(b) An approval of the supplier's 2-D Bar Code Label is required before each product with a unique national stock number (NSN) or federally recognized number (FRN) shall be presented for acceptance to the Government Quality Assurance Representative. Prior to formal submission of product to the Government for acceptance, a first time sample of the supplier's initial 2-D Bar Coding Label, comprising of two (2) each of the exterior pack label and two (2) each of the pallet label, shall be submitted for approval to HQ, US Army Joint Munitions Command, 2695 Rodman Avenue, ATTN: AMJM-QAP, Rock Island, IL 61299-6000 to be read by a High Performance Bar Code Verification system.

(c) Within fifteen calendar days, the supplier will be notified electronically of the approval, conditional approval, or disapproval of the submitted 2-D Bar Code Label. A notice of conditional approval shall state any further actions required of the supplier. A notice of disapproval shall cite reasons for the disapproval.

(d) Once approval of the 2-D Bar Code Label is received, the supplier may begin presenting product to the Government for acceptance.

(e) During life cycle management of the product, the Government may randomly perform checks of the integrity and conformity of the 2-D Bar Code labeling that is affixed to the supplier's product.

(f) The supplier is responsible for all costs associated with correcting 2-D Bar Code labels that do not meet contractual requirements.

E-13 FAAT WAIVERS

The Government would consider waiving part or all of a product's or product line's First Article Test (FAT) based on the circumstances presented by the offeror. Examples of circumstances that may allow the Government to consider a waiver are: Continuous production, same sources of raw materials, same processing (even with a break in production if normally a batch operation or operation is shut down for short periods), proportion of the retained production line workers remaining in place (from prior production), etc.

The extent to which the Government will waive FAT will be based on the evaluation of all the circumstances presented by the offeror for a product or product line and the Government's assessment of the Government's risk based on any waiver granted. The Program Manager for the item will individually review the circumstances for their particular product and the Contracting Officer will notify the Operator of the decision.

E-14 INSPECTION

a. The Government reserves the right to perform quality assurance inspections at the Contractor's office or place of performance identified in this contract. The Government also reserves the right to inspect Operator's submissions (deliverables) and services/

products, as required. To accomplish these inspections authorized by the clauses incorporated herein, the Contracting Officer appoints at the contractor's place of performance the Administrative Contracting Officer, who will, in turn, appoint Quality Assurance Representatives (QARs). With regards to contract inspection and administration responsibilities, the terms ACO and QAR are synonymous with the term "Contracting Officer's Representative" used in DFARS 252.201-7000.

b. Inspection of the services performed under this contract shall be accomplished by the QAR and/or ACO at the site. Acceptance shall be accomplished by the ACO or Contracting Officer.

c. Data Items will be inspected during contract performance by the applicable technical office specified in the Contract Data Requirements List (CDRLs).

d. The Contracting Officer may conduct such inspection and surveillance of the Operator's performance under this contract as determined appropriate and necessary. The Contracting Officer shall exercise these responsibilities through his or her staff and in connection with the appropriate inspection and acceptance clauses and/or agencies necessary to insure that the standards set forth herein are met. The standards set forth in the requirements shall be the criteria by which the Contractor's performance shall be inspected. US Government inspection personnel may monitor the Operator's performance by physical inspection of services and/or supplies, review of reports and documentation as well as validated customer complaints. Corrective action for deficiencies shall be at the US Government's discretion.

e. Appointed QARs from the functional area receiving the contract services will participate in the administration of this contract specifically to evaluate Operator performance, inspect the services for the Government, and provide a report of inspection to the Contracting Officer, as required. The QAR shall represent the ACO/Contracting Officer in the "technical phases" of the work, BUT SHALL NOT BE AUTHORIZED nor has been given the AUTHORITY to direct and/or authorize the Operator to make changes in the scope or terms of this contract or any other companion contracts. The Operator will be notified in writing by the Contracting Officer of the names duties, and limitations of the QARs.

f. The Operator's inspection system shall contain measures for prompt detection of any condition that fails to conform to the contract requirements. Corrective action procedures shall include, as a minimum, action to correct the deficiency and necessary measures to prevent recurrence of such deficiencies.

g. Performance Evaluation Meetings will be attended by the parties and shall be conducted by the Contracting Officer/ACO or an appointed representative as determined necessary. A mutual effort shall be made by the parties to resolve any and all problems identified.

h. The Operator will make every attempt to be "responsive to the Government's needs".

Section F

F-01 REQUIRED DELIVERY SCHEDULE

(a) All production orders placed under the RFAAP contract will be identified on individual delivery orders. Exceptions to the delivery schedule requirements may only be authorized upon written approval by the Contracting Officer.

(b) In the event of a national emergency, including engagement in conflict or declaration of war, the Government reserves the right to establish expedited delivery schedule requirements at no cost to the Government, and the Government shall not be held liable for any effect resulting from schedule revisions associated with the conditions described herein.

(c) Any delinquencies or delays in delivery caused by the Contractor's failure to successfully complete First Article Testing will be deemed contractor fault and will not constitute an excusable delay. Government denial of the Contractor's First Article Test plans and/or denial of the Contractor's request to waive First Article Testing is also not be considered an excusable delay for any delinquencies in delivery.

(d) Disputes and controversies of any nature whatsoever between the Government and Contractor regarding this narrative will be settled via determination by the Contracting Officer. The Contracting Officer's determination shall be final and binding on the Government and Contractor.

Section H

<u>H-01 OWNERSHIP OF PROPERTY AND RIGHTS TO INTELLECTUAL PROPERTY</u> **<u>(NOTE TO INDUSTRY: THE USG IS WORKING TO REVISE THIS CLAUSE AND WILL POST A SEPARATE ANNOUNCEMENT FOR INDUSTRY FEEDBACK AT A LATER DATE)</u>**

(a) Ownership of Personal Property:

Government property provided under this contract includes the personal property outlined in Attachment 0024 - Government Furnished Property and all real property. This property is furnished to the contractor in an "as is, where is" condition. The Government makes no warranty regarding the suitability for use of the Government property specified in this contract.

In accordance with, FAR 52.245-1, Government Property, and PWS 4 – Government Property, the Government will retain title and ownership to all Government-furnished property and modifications to Government furnished property provided under the contract. In addition, the Government will establish title and ownership in all property acquired and/or utilized by the Contractor in the performance of the contract as provided for in FAR 52.245-1. Pursuant to FAR 52.245-1, paragraph (e)(2), this narrative establishes specific requirements for passage of title, wherein title to property acquired, fabricated, or utilized by the Contractor for use on fixed price contracts or fixed price line items will vest with the Government, rather than be retained by the Contractor. This requirement for passage of title to the Government for property acquired and/or utilized by the Contractor under fixed price efforts applies to acquisitions under the contract resulting from solicitation W519TC-26-R-0003, as well as third party contracts authorized by the Government under the contract. The requirement for Government title includes, but is not limited to, plant equipment required to produce nitrocellulose and propellants, including the processes and procedures necessary to maintain those capabilities as determined by the Government throughout the life of the contract, at RFAAP. The Government will retain title and ownership of all personal property that is maintained, upgraded, replaced, or added, to include replacement of property that is lost or no longer usable, as necessary, to sustain existing, new, or additional capabilities as may be determined by the Government throughout the life of the contract. No separate funding will be provided, except in the case of direct funded PWSs. Title to any property, including special tooling and test equipment, will vest to the Government in accordance with FAR 52.245-1, PWS 4, and the provisions of this narrative, whether provided or acquired and/or utilized under fixed-priced, or cost reimbursable contract efforts, and whether as a direct, or indirect cost item. In clarification, this provision applies only to the Contractor and does not apply to the property of Contractor's subcontractors or ARMS tenants, unless that property was purchased with ARMS funds or is part of the Army's capability; it does not apply to the Contractor's property acquired or used solely for commercial production unless that property is part of the Army's capability . Commercial Production includes any business activity not undertaken pursuant to the performance of the production, facility or 3rd party contracts. For property acquired and/or utilized by the Contractor under fixed price efforts, where absent the provisions of this narrative, title would have vested in the Contractor, title will vest with the Government at the end of the final contract performance period, whether or not the contract is extended.

Once acquired/utilized by the Contractor in performance of the contract, the property shall not be removed from RFAAP without approval of the Contracting Officer except for repair/modification with subsequent return to RFAAP. Prior to passage of title, the Contractor shall manage and maintain the property in accordance with PWS 4 - Government Property and PWS 7 - Maintenance; and plans and procedures associated with those PWSs. The Contractor shall provide a Transferable Property List of all tagged property acquired in performance of the contract, including investment projects, wherein title is vested with the Contractor until transfer to the Government at the end of the contract as outlined herein and in accordance with Exhibit B, CDRL xx-xxx, Transferable Property List.

(b) Technical Data Rights:
Through the contract resulting from solicitation W519TC-26-R-0003, the Government will establish rights in all technical data required or used to produce nitrocellulose, nitroglycerine and other nitrated esters, and propellants at RFAAP, as well as operate and maintain RFAAP, including the processes and procedures used to maintain those capabilities as determined by the Government throughout the life of the contract; as well as technical data used in the performance of prime and third party contracts for other than nitrocellulose, nitroglycerine and other nitrated esters, and propellants. The Contractor will ensure that the Government obtains right to IP regardless of the source (i.e., IP obtained from a public domain, purchased/licensed from the incumbent/a previous operator, or developed at private expense). For the purpose of this narrative, technical data includes, but is not limited to, all manufacturing instructions, standard operating procedures, process records, descriptions of manufacture, operating and inspection procedures, quality performance and test procedures, maintenance procedures, maintenance schedules and records, operating manuals, nitrocellulose and propellants production scheduling, planning, and utilization models, management manuals, training manuals, drawings, product specifications, shipping classifications, maintenance job aids, material and material purchase descriptions, software, software applications, software source code, and any other recorded information (regardless of the form or method of recording) of a scientific or technical nature (including computer databases and computer software documentation). Technical data does not include administrative or management data incidental to contract administration.

Technical data rights for non-commercial software and software applications encompass, but are not limited to, system design and architecture, program source code, interfaces, and associated system and user documentation. Data rights for commercial off the shelf (COTS) software applications encompass features of tailoring necessary for software implementation/functionality at RFAAP, including but not limited to customized scripts, database parameters, screens, reports, interfaces and user documentation.

Section H

Technical data rights in software and software applications include all features necessary to enable a successor to continue use, maintain, or modify the software systems in place should the successor choose to use the same non-commercial software and/or license the same COTS software. While technical data rights are established by DFARS 252.227-7013, Rights in Technical Data Noncommercial Items, and DFARS 252.227-7014, Rights in Noncommercial Computer Software and Noncommercial Computer Software Documentation, the Government requires as a result of this contract, nothing less than Government purpose rights in technical data as defined by DFARS 252.227-7013, DFARS 252.227-7014, and this narrative. Accordingly, irrespective of the source of funds, the Contractor grants nothing less than Government purpose rights in all technical data used in the execution of any contract awarded under solicitation W519TC-26-R-0003, as well as third party contracts under the contract. In clarification, this grant (of nothing less than Government purpose rights) applies only to the technical data of the Contractor; it does not apply to the technical data of the Contractor's subcontractors or ARMS tenants, or technical data associated solely with commercial production, with the exception of technical data of a subcontractor(s) or ARMS tenant(s) used to operate and/or maintain Government property, modifications to Government property, or property whose title to will vest with the Government under the provisions of the preceding paragraph. In these instances, the Government will receive no less than Government purpose rights to that technical data. No separate funding will be provided for these rights in technical data. Any costs associated with the rights granted to the Government must be included in the unit prices proposed. Additionally, the Government will receive Unlimited Rights to all technical data developed as a result of direct funded modernization or other projects, to include any technical data created (developed) as a result of integrating modernization projects at the facility, and/or technical data developed to operate modernized equipment and facilities and the procedures to produce product on modernized equipment and facilities.

Unless otherwise approved in advance by the Contracting Officer, the Government shall receive Government purpose rights at that point in time when the technical data is implemented in performance of this contract and/or third party contracts. Where technical data is associated with property acquired/utilized by the Contractor under fixed price efforts, Government purpose rights to technical data will be established upon implementation, per this paragraph, regardless of the later (end of contract) transfer of title to the property itself defined in the preceding paragraph. Government purpose rights will convert to unlimited rights according to DFARS 252.227-7013 and DFARS 252.227-7014, or at the end of this contract (i.e. at the end of the base period or upon expiration of the final option period if exercised), whichever occurs earlier. Technical data will be provided to the Government at the end of the contract performance period in its most current form; i.e., current as of the last date of its use.

The Contractor shall provide access to technical data to the Contracting Officer and representatives designated by the Contracting Officer during the course of this contract. The Contractor must deliver all applicable technical data to the Government on an annual basis by no later than 31 December of each year and certify that it is free of all proprietary information. After the initial full transfer to the Government, subsequent transfers on the one-year cycle shall only be updated or new documents. Technical data shall be delivered in its current form as of the date of submission. The form/media to be used for technical data delivery (e.g., electronic, flat file) will be specified by the Contracting Officer at that time and must facilitate its transfer to, and use by, the Government (CDRL XXXXX). The Contractors support and performance of the IP deliverables will be provided at no additional cost to the Government and requests for IP pursuant to the terms of this clause will not be subject to the changes clause.

For the purposes of this narrative, utilized by the Contractor means required or used to produce nitrocellulose, nitroglycerine and other nitrated esters, and propellants at RFAAP, as well as operate and maintain the facility, to include any activity executed at the facility to meet Government requirements. Third party refers to the Contractors sale of products or services where the end product will be delivered to the U.S. Government.

H-02 RESTRICTION OF CRITICAL ITEMS AND COMPONENTS

(a) All propellant and ingredients which RFAAP is capable of producing shall be produced within RFAAP.

(b) The failure of the contractor or subcontractor(s) to comply with the terms of this clause shall be a material breach of the contract.

(c) The contractor shall insert the substance of this narrative, including this paragraph (d), in every subcontract for items or components identified above.

H-03 CONGRESSIONAL VISITS

GOCO installations must comply with AR 1-20. The contractor shall notify the Installation Commander of any visits, including those by Members of Congress, at least one business day in advance of the visit. The contractor may work with the Government staff in developing an agenda, if requested by the Installation Commander. A Government representative is required to be present at all meetings with a Member of Congress held on the installation. The contractor will follow all Army election year guidance concerning conduct during Congressional visits (see AR 360-1). Members of Congress and their staff are also subject to applicable laws, Executive Orders, and ARs pertaining to access to classified and personnel information (AR 380-5 and AR 340-21). For purposes of this section, the term "Member of Congress" includes not only U.S. Senators and Representatives, but also anyone from the district staff of a Member, the DC staff of a Member, or the professional staff of a Congressional committee.

H-04 CONTRACTOR PERFORMANCE INFORMATION

Section H

The successful offeror under this solicitation is advised that after contract award its performance under this contract will be subject to an assessment(s) in accordance with FAR 42.15 and AFARS 5142.1503-90. The DoD Contractors Performance Assessment Reporting System (CPARS) will be used to maintain the performance report(s) generated on this contract.

H-05 NEGOTIATION OF LABOR AND INDIRECT RATES FOR DIRECT FUNDED PROJECTS

The Government reserves the right to include a labor rate and indirect rate reopener in all projects that are negotiated during which time the operating contractor does not have a direct and/or indirect Forward Pricing Rate Agreement (FPRA) in place or if the Government cannot determine proposed rates fair and reasonable. All labor rate and indirect rates will be subject to a net downward adjustment only, exclusively for application of the negotiated FPRA or negotiated rates/actuals. In the event the rate reopener results in a reduction in contract costs, a corresponding profit/fee adjustment will also be made. Should a FPRA be finalized prior to closing of negotiations, the rates will be incorporated and no reopener will be necessary. Such adjustments will not represent a change to the contract and will not be subject to a request for equitable adjustment.

H-06 CONTRACTOR RESPONSIBILITY FOR SAFETY

The contractor is responsible for safety in accordance with DFARS 252.223-7002, Safety Precautions for Ammunition and Explosives, and all other applicable safety requirements within this solicitation. The contractor and its employees are responsible for the safety of contractor operations and for the safety of all persons and property involved with or affected by contractor operations. Subject to all contract requirements, the contractor shall exercise its own independent judgment concerning the safety of its employees and its operations. The Government does not direct or control the manner of the contractor's operations; however, in the interest of preserving required mission capabilities and facilities, the Government has the right to conduct surveillance of the contractor's operations and take appropriate action to ensure that the contractor remedies any and all contract or safety violations. The contractor shall cooperate and provide all requested information necessary for the Government to perform surveillance of safety at RFAAP. The presence of Government officials and safety personnel on the installation and the fact that the Government conducts or provides inspections, investigations, surveys, oversight, concurrences, approvals, advice or recommendations concerning the safety of contractor operations shall not affect the contractor's responsibility for safety. The purpose of any Army investigation at the installation is to ensure there are no conditions that adversely affect mission capability or combat readiness. Ensuring the safety of contractor employees is not the purpose of an Army investigation since this is the contractor's responsibility.

H-07 INSTALLATION COMMANDER'S AUTHORITY

Section H

Notwithstanding the contractor's responsibility for the safety of its employees and operations, as well as the requirements in the contract, the Installation Commander and the Commander's Representative have the authority to stop operations or practices that, if allowed to continue, could reasonably be expected to result in death or serious physical harm to personnel, generate major system damage, or endanger the installation's ability to accomplish its mission. This authority allows for shutdown of a suspect operation or practice prior to the elimination of the perceived danger through regular channels, including an immediate shutdown in those situations to which the Installation Commander or the Commander's Representative determine that an activity presents as imminent hazard to life or property that threatens the mission of the Government. The Contractor shall cease operations immediately upon formal direction from the Installation Commander or the Commanders Representative. The Contractor shall not resume operations for a directed shut down until formal approval is granted by the Contracting Officer.

H-08 EARNED VALUE MANAGEMENT SYSTEMS

Clauses 252.234-7001 - Notice of Earned Value Management System (Deviation 2015-O0017) and 252.234-7002 - Earned Value Management System (Deviation 2015-O0017) are not applicable to the initial contract award resulting from this solicitation. EVMS will only apply to modernization efforts solicited after award for which the Contracting Officer has determined EVMS necessary.

H-09 FACILITY USE REQUIREMENTS (APPROVAL OF OUTSIDE ORDERS)

The Contractor shall request approval from the Contracting Officer prior to accepting outside orders for the production of nitrocellulose, nitroglycerine and other nitrate estares, and propellants at RFAAP, whether performed by the contractor or by a third party. Statements made by other Agencies allowing RFAAP facility use are not valid. The Contractor shall comply with all applicable provisions of the contract and any additional conditions placed on the individual third party facilities use approval. Failure to comply with the conditions of the facilities use approval will result in revocation of the approval to use the facilities for commercial or third party work. In no case will a Request/Approval for Facilities Use extend beyond the award contract period.

At the beginning of each Government fiscal year (NLT 15 OCT), the Operating Contractor shall provide the Government a listing, to include customers, nitrocellulose and propellants constituents and energetic materials, quantities and utilization spreadsheet, of all orders that require use of government property, inclusive of services and production, anticipated for the year (CDRL XXXXX). The Government will review and grant Facility Use approval/disapproval based on this listing submitted. If new orders are received throughout the year, notification to the Government shall be made via a designated tab on the Production Schedule (CDRL XXXXX), which tracks all orders.

Section H

The contractor is required to meet all applicable Army/DOD safety, security, and environmental, regulations as called out in the Document Summary List, to include, but not limited to 27 CFR Regulation 555, when and if facility use for commercial explosives production by the contractor is authorized by the Government.

H-10 USE OF GSA VEHICLES

The contractor shall be authorized to use those GSA vehicles on-site to perform work under this contract which supports related and other contracts and subcontracts at RFAAP to the extent permitted under GSA regulations.

H-11 SUBMISSION REQUIREMENTS

The contractor shall provide to the Government, annually or at such other times as the Government may request, at no additional charge or cost, the following:

a. Copies of the most recent version of all Collective Bargaining Agreements (CBAs) covering its employees at the facility throughout the term of the contract, to include any options. The contractor understands and agrees that at such time as the Government solicits or begins the process for solicitation of a new or subsequent contract for all or part of the work covered by this contract, the Government shall have the right to make the most recent copies of the CBAs available through such means or media as it deems most appropriate for review by prospective offerors.

b. Current copies or versions of work schedules, workload projections, and employment and/or layoff projections for each year of the contract. The contractor understands and agrees that the Government may be required to provide such information in response to Congressional or higher headquarters inquiries or requests. The contractor further understands and agrees that at such time as the Government solicits or begins the process for solicitation of a new or subsequent contract for all or part of the work covered by this contract, the Government shall have the right to make the most recent copies or versions of such work schedules, workload projections, and employment and/or layoff projections available through such means or media as it deems most appropriate for review by prospective offerors.

H-12 STATUTORY OR REGULATORY CHANGES

If, after award of the facility use contract, new laws or regulations are enacted that impact performance or cost, the contracting officer will, upon request, review those impacts on a case-by-case basis with respect to any request to modify the contract terms.

Section I

I-01 AUTHORITY OF GOVERNMENT REPRESENTATIVE

The contractor is advised that contract changes, such as engineering changes, will be authorized only by the Contracting Officer or its representative in accordance with the terms of the contract. No other Government representative, whether in the act of technical supervision or administration, is authorized to make any commitment to the contractor or to instruct the contractor to perform or terminate any work, or to incur any obligation. Project Engineers, Technical Supervisors, and other groups are not authorized to make or otherwise direct changes which in any way affect the contractual relationship of the Government and the contractor.

I-02 ECONOMIC PRICE ADJUSTMENT - NATURAL GAS

(a) In accordance with FAR 16.203-4(d), in lieu of FAR 52.216-4, EPA - Labor & Material, the following EPA applies to the RFAAP solicitation. The EPA baseline and method for adjustments will be calculated in accordance with the narrative described herein.

(1) Natural Gas: $XX.XX

(2) Offerors are cautioned that the aforementioned Natural Gas price is a baseline prices only and shall not be utilized for any other procurements.

(b) No later than 31 October of each year the contractor shall provide its proposal for EPA to the Contracting Officer. The proposal shall include:

(1) Documentation to support the proposed unit price increase/decrease for natural gas.

(2) Adjustments to the unit price of all production items subject to EPA.

(c) Promptly after the Contracting Officer receives the proposal under paragraph (a) of this narrative, but no later than 30 November of each year, the Contracting Officer and the contractor shall complete execution of unit price adjustments associated with the upcoming ordering period. Price adjustments will be derived from the change in Natural Gas price and the content factor identified in Attachment XXXX. Any EPA, including revised contract unit prices, will be incorporated into the contract.

(d) EPA adjustments will apply to all future quantities ordered under the subsequent ordering period. A firm price commitment from the contractor is required for Natural Gas.

(1) The contractor is obligated to hold the agreed to unit prices for the remainder of the ordering period.

(2) The contractor or subcontractor/supplier agrees not to include any risk adjustment or additional profit in the EPA proposal.

Section I

(e) Any price adjustment under this clause is subject to the following limitations:

(1) Any adjustment shall be limited to the effect on the product unit price resulting from the actual fluctuation in Natural Gas. There shall be no adjustment for:

(i) Projects and other nitrocellulose and propellants items wherein the materials are based on current market prices;

(ii) Changes in product unit prices based on material other than Natural Gas.

(iii) Changes in the material content of Natural Gas, as identified in Attachment XXXX, unless otherwise negotiated as the result of a TDP change and incorporated into Attachment XXXX.

(iv) Associated indirect costs (burden, overhead, G&A, etc.) or profit of the contractor or subcontractor/supplier.

(2) The EPA will only apply if there is a change of at least +/- 2.5 percent in the cost of Natural Gas.

(3) Cumulative EPA adjustments, to include both adjustments for natural gas and escalation (narrative I-04) together, shall not exceed 10 percent of product unit price. After final execution of unit price adjustments for an ordering period, no further adjustment to the unit prices will be made. There is no percentage limitation on the amount of decreases that may be made under this narrative.

(f) The Contracting Officer may examine the contractor's books, records, and other supporting data relevant to the cost of materials shown below until three years after the date of final payment under this contract.

(g) All matrix items are subject to EPA.

(h) EPA Basis of Adjustment:

(1) The basis for each EPA adjustment will be the NYMEX 12 month forward looking average price for Natural Gas at the time of EPA adjustment.

(2) The Natural Gas content factors for each item is listed in Attachment XXXX.

(i) In the event the NYMEX is substantially altered or discontinued, the parties shall mutually agree upon an appropriate substitute to be effective as of the date of NYMEX discontinuance or alternation. Failure to reach an agreement shall be subject to the "Disputes" clause of the contract.

Section I

(j) Computation of EPA will be in accordance with the following methodology and the EPA Calculation Table:

(1) The price used for adjustments will be in accordance with paragraph (h) above.

(2) The difference, whether (+) or (-), between the adjusted NYMEX price in Column (5) and the base price provided by the Government in Column (4) will be entered in Column (6).

(3) The difference, whether (+) or (-), in Column (6) shall be divided by the applicable base price in Column (4) (see paragraph (h) above). The resulting rate of change shall be entered in Column (7).

(4) The material content factor in Column (3) will be multiplied by the material price difference (+) or (-) in Column (6), with the resulting amount entered in Column (8).

(5) The adjustment amount in Column (8) shall be the basis for adjusting the contract unit price for the item in column (2).

(6) The contract unit price adjustment will be computed for each eligible item and applied, when Natural Gas price changes meet the threshold criteria.

EPA (Natural Gas) Calculation Table

(1) Adjustment Period	(2) Item	(3) Material Content Factor	(4) Base Price	(5) Adjusted Material Price	(6) Price Difference	(7) Percent Change	(8) EPA Adjustment

TABLE
(a) Column (1) is the DO for which EPA adjustment is being made
(b) Column (2) is the item
(c) Column (3) is the material content factor for the specific item (Attachment 00XX)
(d) Column (4) is the base year material unit price as defined in this narrative
(e) Column (5) is the adjusted Natural Gas price
(f) The remaining columns are for calculation of the EPA unit price adjustment for a given item; and to determine if the change in
natural gas price meets the threshold criteria for EPA adjustment in paragraph (e) above.

Examples

An example of an upward adjustment is as follows (numbers are for illustrative purposes only):

(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)
OP2	CLIN 0001	0.10	$4.00	$4.50	$0.50	12.5%	$0.05

Result: Since the change in Natural Gas (12.5%) is more than +/- 2.5%, the adjustment would increase the unit price by $0.05.

An example of a downward adjustment is as follows (numbers are for illustrative purposes only):

(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)
OP2	CLIN 0001	0.10	$4.00	$2.75	-$1.25	-31.25%	-$0.13

Result: Since the change in Natural Gas (-31.25%) is more than +/- 2.5%, the adjustment would decrease the unit price by $0.13.

An example of no adjustment is as follows (numbers are for illustrative purposes only):

(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)
OP2	CLIN 0001	0.10	$4.00	$3.95	-$0.05	-1.25%	-

Result: Since the change in Natural Gas (-1.25%) is less than +/- 2.5%, the adjustment would not change the unit price.

End of examples

<u>I-03 REQUIRED INSURANCE</u>

Pursuant to paragraph (a) of FAR Clause 52.228-5, Insurance-Work on a Government Installation, or FAR Clause 52.228-7, Insurance-Liability to Third Persons, the contractor shall procure and maintain the following insurance during the entire period of performance under this contract:

(a) Workers Compensation: As required by Law

(b) Employers Liability: Minimum liability limit $100,000

(c) General Liability: Minimum bodily injury limits, $500,000 per occurrence

(d) Automobile Liability: Minimum liability of $200,000 per person, $500,000 per occurrence for bodily injury, and $20,000 per occurrence for property damage.

<u>I-04 ECONOMIC PRICE ADJUSTMENT – ESCALATION</u>

Section I

(a) In accordance with FAR 16.203-4(d), the following EPA applies to the RFAAP solicitation. The EPA baseline and method for adjustments will be calculated in accordance with the narrative described herein.

(1) EPA Baseline: 3.0%

(2) Annual Index: Producer Price Index Commodity Code: FD-49107, Final Demand Less Energy, Unadjusted 12-Month Percent Change (located within PPI Detailed Report for September of each year, table 1).

(3) Prior to the start of each ordering period, in accordance with paragraphs (b) and (c) below, the baseline rate identified in (a)(1) will be compared to the most updated rate identified in the index identified at (a)(2) to determine whether an adjustment will be made for the upcoming ordering period.

(4) The EPA will only apply if there is a change of at least +/- 1.0 percent in the annual escalation rate found at the index (a)(2) from the baseline (a)(1).

(i) To further clarify, if the rate found at (a)(2) for a given year exceeds the baseline established at (a)(1) by more than 1.0%, an upward adjustment will be executed for the upcoming ordering period. Should the rate found at (a)(2) for a given year fall below the baseline established at (a)(1) by more than 1.0%, a downward adjustment will be executed for the upcoming ordering period. Should the rate found at (a)(2) fall within +/- 1.0% of the baseline established at (a)(1), no adjustment will be made.

(5) Offerors are cautioned that the aforementioned escalation rate is a baseline rate only and shall not be utilized for any other procurements.

(6) The baseline rate found at (a)(1) will remain unchanged throughout the life of the contract unless determined otherwise by the Contracting Officer.

(b) No later than 31 October of each year the contractor shall provide its proposal for EPA to the Contracting Officer. The proposal shall include:

(1) Documentation to support the proposed percentage increase/decrease for the index

(2) Adjustments to the unit price of all production items subject to EPA

(c) Promptly after the Contracting Officer receives the proposal under paragraph (a) of this narrative, but no later than 30 November of each year, the Contracting Officer and the contractor shall execute unit price adjustments associated with the upcoming ordering period. Price adjustments will be derived from the change in the escalation rate identified in paragraph (a)(1). Any EPA, including revised contract unit prices, will be incorporated into the contract.

Section I

(d) EPA adjustments will apply to all future quantities ordered under the subsequent ordering period.

(1) The contractor is obligated to hold the agreed to unit prices for the entire ordering period.

(2) The contractor or subcontractor/supplier agrees not to include any risk adjustment or additional profit in the EPA proposal.

(e) Any price adjustment under this clause is subject to the following limitations:

(1) Any adjustment shall be limited to the effect on the product unit price resulting from the actual fluctuation in the index identified in paragraph (a). There shall be no adjustment for:

(i) Projects and other nitrocellulose and propellant items wherein the materials are based on current market prices;

(ii) Changes in product unit prices based on factors other than escalation

(iii) Associated indirect costs (burden, overhead, G&A, etc.) or profit of the contractor or subcontractor/supplier.

(2) The EPA will only apply if there is a change of at least +/- 1.0 percent in the annual escalation rate from the baseline.

(3) Cumulative EPA adjustments, to include both adjustments for natural gas (narrative I-02) and escalation, shall not exceed 10 percent of product unit price. After final execution of unit price adjustments for an ordering period, no further adjustment to the unit prices will be made. There is no percentage limitation on the amount of decreases that may be made under this narrative.

(f) The Contracting Officer may examine the contractor's books, records, and other supporting data relevant to the cost of materials shown below until three years after the date of final payment under this contract.

(g) All matrix items are subject to EPA.

(h) EPA Basis of Adjustment:

(1) The basis for each EPA adjustment will be the index rate found at (a)(2) at the time of EPA adjustment minus the baseline escalation rate found at (a)(1). This net percentage must be +/- 1.0%. This net percentage will be multiplied to the product unit price to calculate the total adjustment.

Section I

Examples

An example of an upward adjustment is as follows:

Unit price: $10.00
Baseline escalation rate: 3.0%
Escalation rate at time of EPA execution: 10.0%
Percentage change: (10% - 3.0%) 7.0%
Unit price adjustment amount: ($10.00 x 7.0%) $ 0.70
Adjusted unit price: ($10.00 + $0.70) $10.70

An example of a downward adjustment is as follows:

Unit price: $10.00
Baseline escalation rate: 3.0%
Escalation rate at time of EPA execution: 1.5%
Percentage change: (1.5% - 3.0%) -1.5%
Unit price adjustment amount: ($10.00 x -1.5%) ($ 0.15)
Adjusted unit price: ($10.00 + ($0.15)) $ 9.85

An example of a non-adjustment is as follows:

Unit price: $10.00
Baseline escalation rate: 3.0%
Escalation rate at time of EPA execution: 2.1%
Percentage change: (2.1% - 3.0%) -0.9%
Since 0.9% is less than 1.0%, no adjustment is made.

*** End of examples***

(i) In the event the baseline index is substantially altered or discontinued, the parties shall mutually agree upon an appropriate substitute to be effective as of the date of discontinuance or alternation. Failure to reach an agreement shall be subject to the "Disputes" clause of the contract.

I-05 CENTRALLY REPORTABLE INDUSTRIAL PLANT EQUIPMENT

(a) The Contractor shall prepare a DD Form 1342 (Appendix F, F200.1342) for each item of equipment identified as industrial plant equipment (IPE), including items which are a part of a manufacturing system or components of special test equipment. The forms will be prepared in accordance with instructions contained in AR 700 43/NAVSUP PUB 5009/AFM 78 1/DSAM 4214 1. The DD Form 1342 prepared at the time IPE is no longer required for the purpose authorized or provided shall reflect all changes in data not previously reported to the Defense General Supply Center (DGSC). The Contractor shall retain the original of each DD Form 1342 which may be used as the official property record. Copies of the DD Form 1342 shall be forwarded directly to DGSC through the property administrator. Each DD Form 1342 will be prepared and forwarded within 15 days after the event which created the need for its preparation and forwarding. AR 700 43/NAVSUP PUB 5009/AFM 78 1/DSAM 4315.1 is available from the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402.

(b) IPE is identified by noun name in joint DOD IPE handbooks as listed in 12 312. Additional handbooks and page changes to existing handbooks, with asterisks denoting additions to the IPE scope, shall be published as required. Reporting of newly listed items which are in the possession of the contractor shall be accomplished within 180 days following the date of the new handbook or the page change.

I-06 USE OF FACILITIES - TERMS AND CONDITIONS

(a) No storage or maintenance charges shall be payable by the Government under this contract with respect to facilities, equipment, or any part of same for the period or periods their use is authorized.

(b) The Government is not obligated to repair, replace, rehabilitate, modernize, or acquire new equipment simply because the need for such work has been disclosed.

(c) The Contractor shall, within 90 days after award of this contract, submit to the Procuring Contracting Officer for approval a copy of his proposed normal maintenance program as required under the Government Property clause of this contract. This plan shall be submitted through the Administrative Contracting Officer who shall review the plan for technical adequacy and provide comments/recommendations to the Procuring Contracting Officer.

(d) Neither the Administrative Contracting Officer nor the Contractor shall allow any property to be transferred from any contract to this contract without the express written permission of the Procuring Contracting Officer. This restriction includes all IOC facilities contracts.

I-07 REQUEST FOR USE OF ACCOUNTABLE PROPERTY

(a) The Contractor agrees that any request for use of accountable property is at no direct cost to the Government.

(b) Any request for use of accountable property must identify the prime solicitation or contract number (if you are a subcontractor then include your subcontract number and the prime contractor's name, address and prime solicitation or prime contract number), the item, quantity, period of use and the agency, the Contracting Officer's name, address and phone number of the prime solicitation or prime contract for which use is requested. If you are a subcontractor then you should obtain this information from your prime contractor well in advance of any request for use of accountable property.

I-08 INDEMNIFICATION

NOTE: If indemnification is requested, FAR Clause 52.250-1, "Indemnification Under Public Law 85-804", will be added to the resulting contract(s) upon the approval of the Secretary of the Army.

Section J

Exhibits:

A. CDRLs
B. PWS 7 RFAAP Maintenance FI&E
C. PWS 7 Att B JMC BUILDER Sustainment Guide

Attachments

1. PWS 1 - Environmental
2. PWS 2 – Facility Planning
3. PWS 3 – Fire Protection & ES
4. PWS 4 – Government Property
5. PWS 5 – Occupational Health
6. PWS 6 – Security & AT
7. PWS 7 - Maintenance
8. PWS 8 – Transition In – to be provided at a later date
9. PWS 9 - Safety
10. PWS 10 – Energy & Utilities
11. PWS 11 – Facility Ops & Production Reporting
12. PWS 12 – ARMS
13. PWS 13 – Technology & Cybersecurity
14. PWS 14 – DELETED
15. PWS 15 – ALTESS
16. PWS 16 – DELETED
17. PWS 17 – Transition Out
18. PWS 18 – Ground Water Monitoring & Industrial Restoration
19. Price Matrix – in progress
20. TDP Section C exceptions - REDACTED
21. OPSEC SOW
22. Sample OPSEC Plan
23. DD254
24. GFP list – to be provided at a later date
25. CDRL Instructions
26. Hazardous Material Classification Specification
27. ARMS Tenant Use Agreements – to be provided at a later date
28. COCO Security Statement of Work 2025
29. NDA Azimuth
30. NDA NEPSCO
31. Final FY25 Ammo Plant Mod
32. POM Budget – to be provided at a later date
33. Wage Determinations – to be provided at a later date
34. Mission Essential Contractor Services – to be provided at a later date
35. Small Business Participation Plan – to be provided at a later date
36. PPQ

Section L

L01 – PROPOSAL SUBMISSION INSTRUCTIONS

For purposes of evaluation, the term Offeror is defined as the entity submitting the proposal as identified on the SF33. All references to subcontractors and parent or affiliated companies within the proposal shall be clearly identified, to include its CAGE code. Proposal shall be submitted in accordance with this section. Offeror should thoroughly review Sections L and M prior to submitting a proposal. Section L identifies the factors to be evaluated in accordance with Section M.

A. PROPOSAL SUBMISSION

1. Proposals shall be submitted electronically through the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module (https://piee.eb.mil/) by the date and time specified on the solicitation. Offerors must obtain appropriate access to the PIEE system in advance of proposal submission.

2. Offeror is responsible for submitting the virus-scanned electronic submission (PIEE) of its proposal to the designated location by the date and time specified in Block 9 of the SF33. Failure to do so will result in the proposal being considered late and treated in accordance with FAR 15.208. Offerors are responsible for confirming with the Procuring Contracting Officer (PCO) and/or Contract Specialist(s) that the proposal submitted has, in fact, been received by the PCO and/or Contract Specialist(s). This must be done by the date/time set forth in the solicitation for receipt of proposals.

3. The Offeror's proposal shall be made valid for the number of days identified in Section A of the solicitation

4. All questions concerning this procurement, either technical or contractual, must be submitted in writing to the PCO and/or Contract Specialist(s). No direct discussion between the U.S. Government (USG) technical representative and a prospective Offeror will be conducted. Questions shall be sent to the following points of contact:

   E-mail: anna.e.whitcomb2.civ@army.mil
   E-mail: amanda.l.carlson25.civ@army.mil
   E-mail: derek.s.rooks.civ@army.mil

5. Offeror shall not propose any assumptions that take exception to the solicitation. Any exceptions/assumptions proposed that contradict the terms of the solicitation will be considered a deficiency and render an offeror ineligible for award.

6. A complete proposal shall include the following: cover letter, a table of contents, and separate volumes as indicated below. Volumes, and Subfactors within Volumes, shall be submitted separately from other Volumes and Subfactors (for example, Volume 1 Subfactor 1 shall be submitted separately from Volume 1 Subfactor 2):

Volume 1 - Production (Oral Presentation)
Subfactor 1 - Production Processes (Oral Presentation)
Subfactor 2 - Technical and Production Capability (Oral Presentation)

Volume 2 – Operations (Oral Presentation)
Subfactor 1 - Facility Investment and Modernization (Oral Presentation)
Subfactor 2 - Maintenance, Utilities and Safety (Oral Presentation)

Volume 3 - Past Performance

Volume 4 - Price

Volume 5 - Small Business Participation (Oral Presentation)

Volume 6 - Indemnification Request Package (if being requested)

Volume 7 - Executed copy of solicitation, including certifications and representations, JV agreements, small business subcontracting plan, cover letter, and master table of contents, and any solicitation amendments, signed by an individual authorized to bind the company.

7. Offeror shall submit its proposal in Adobe PDF (Portable Document Format) with the exception of the price matrices. Scanned PDF files must be legible and shall have the ability to be viewed in Adobe Acrobat. The Offeror shall not lock or password protect any file. The USG shall be able to open and view all electronic files, and they shall be virus-free and searchable. Bookmarks must be utilized to easily locate sections of the proposal. Offeror shall submit the following:

   Volume 1 - electronic submission (PIEE)
   Volume 2 - electronic submission (PIEE)
   Volume 3 - electronic submission (PIEE)
   Volume 4 - electronic submission (PIEE)
   Volume 5 - electronic submission (PIEE)
   Volume 6 - electronic submission (PIEE)
   Volume 7 - electronic submission (PIEE)

8. All volumes are due as indicated in Block 9 of the solicitation.

9. Each volume shall contain a table of contents and a matrix cross-referencing the proposal and the solicitation to allow the USG to ascertain that all required sections of the proposal are fully addressed. Each Volume stands on its own for evaluation purposes and must include all information necessary for evaluation (e.g., if it is to be evaluated in response to a Section L, Volume 1 requirement, the information must be included in the Offeror's Volume 1 proposal for it to be considered). Offerors are also required to provide all required information for each subfactor independently. When rating a subfactor, the USG will only evaluate the information

provided in the section of the proposal addressing that particular subfactor. When rating a factor that does not have subfactors, the USG will only evaluate the information provided in that volume, unless specifically noted otherwise within that evaluation factor. The USG will not supplement the information found in one subfactor or volume with information found in another as part of its evaluation of the proposed approach; however, any inconsistencies found in the proposed approach under one volume or subsection which call into question the veracity, credibility, or reliability of statements made in other sections or volumes may be taken into consideration.

10. For Written submissions, pages shall be 8.5 inches x 11 inches; however, graphs, charts, tables, spreadsheets, and diagrams may use oversized paper of 8.5 inches x 14 inches or 11 inches x 17 inches. Any other page sizes are not permitted. Text size shall be no less than 12-point font; however, graphs, charts, tables, spreadsheets, and diagrams may use text size no less than 8-point font and readable without magnification. All pages shall be numbered, contain at least a one-inch margin, and utilize Times New Roman font for paragraphs of text and either Times New Roman or Arial (except for Arial Narrow) for paragraph headings, graphs, charts, tables, spreadsheets, and diagrams.

11. For Oral Presentations, the Offeror's slides shall meet the following requirements. Oral Presentations shall be conducted using Adobe PDF formatted slides. Text size shall be no less than 12-point Arial font. Black and white or color is permitted, and graphics are permitted. Slides shall be sequentially numbered. The Offeror may use embedded videos in oral presentations. However, videos shall be played during the presentation in order to be used for evaluation purposes and will be included in the allotted time limit for presentations. All designated briefers must attend in person.

    Transcriptions of oral presentations will supplement, not replace, the slide presentations. All materials—oral presentation transcripts and slide presentations—will be evaluated comprehensively against the applicable evaluation factors and subfactors.

12. Page/Slide and Time Limitations: The USG will not read nor evaluate pages/slides exceeding the below prescribed page/slide limitations. The Offeror shall only include page/slide numbers on those pages/slide it intends to be evaluated. Excess pages/slides will be removed from the proposals. Page/slide limitations do not include table of contents, cross reference matrices, list of figures, lists of acronyms, section bookmarks/dividers, or indices. Cover letters, proposal introductions, and executive summaries will be included in the overall page/slide and time limitations. No material may be incorporated in the proposal by reference, attachment, appendix, videotape, audiotape, or other electronic media as a means to circumvent the page/slide limitation. No separately submitted electronic video or audio material will be reviewed or considered in the evaluation. Videos in Oral Presentations are allowed as stated above. Files shall not contain classified data. The use of hyperlinks in proposals is prohibited. The time limits for Oral

Presentations are firm, and the USG evaluation team will not evaluate any slides not covered during the Offeror's Oral Presentation allotted timeframe. Page/slide and time limits are as follows:

a. Volume 1, Subfactor 1 - Production Processes (Oral Presentation)
   - Oral Presentation not to exceed (NTE) 25 slides and a one (1) hour oral presentation

b. Volume 1, Subfactor 2 - Technical and Production Capability (Oral Presentation)
   - Oral Presentation NTE 50 slides and a two (2) hour oral presentation

c. Volume 2, Subfactor 1 - Facility Investment and Modernization (Oral Presentation)
   - Oral Presentation NTE 50 slides and a two (2) hour oral presentation

d. Volume 2, Subfactor 2 - Maintenance, Utilities and Safety (Oral Presentation)
   - Oral Presentation NTE 25 slides and a one (1) hour oral presentation

e. Volume 3, Past Performance, Relevant Delivery and Quality Performance Narratives shall not exceed five (5) pages for each reference. Adverse Contract Performance narratives have no page limitations. In addition to narratives for Contract References that utilize a Past Performance Questionnaire (PPQ), these shall be provided using PPQ forms attached to this solicitation which will not count against page limitations. Safety has no page limitation.

f. Volume 4, Price – Submission of a completed Price Matrix Attachment 0019 only

g. Volume 5, Small Business Participation (Oral Presentation)
   - Oral Presentation NTE 10 slides and a 30-minute oral presentation
   - Standard Form (SF) 294, "Subcontracting Report for Individual Contracts", Individual Subcontracting Report (ISR), or Summary Subcontract Reports (SSRs) from the Electronic Subcontracting Reporting System (eSRS), and commercial plans associated with the SSRs are excluded from the slide count limit.

h. Volume 6, Indemnification Request and Volume 7, Executed Solicitation do not contain a page limitation.

13. Oral Presentations

a. In lieu of written proposals for Volumes 1, 2, and 5, Offerors will be required to submit slides and give oral presentations. Oral presentations will be limited IAW paragraph 12 of this section.

b. The Procuring Contracting Officer (PCO) will schedule the oral presentations and will notify each Offeror of the date, time and location of its oral presentation after the USG receives the proposals in response to this Solicitation. The order in which Offerors will make their presentations will be determined by random assignment by the PCO. Oral presentations will be scheduled no sooner than five (5) working days after solicitation closing. Each Offeror will be notified, in writing with acknowledgement requested, of the scheduled date and time for the presentations. The USG reserves the right to reschedule presentations at the sole discretion of the PCO.

c. At the conclusion of each Offeror's oral presentation, the USG personnel will briefly caucus for up to an hour to determine if any clarifications of the Offeror's presentation are required. If the USG determines there is a need for clarifications, the Offeror will be provided with a written list of the USG's clarification requests. The Offeror will then be given up to one hour to meet internally and formulate responses to the clarification requests, followed by up to one hour to present their responses directly to USG personnel.

d. All clarifications will be provided to the Offeror in writing after Offerors' proposals have been fully evaluated. The Offerors will have the opportunity to respond to any USG clarifications and discussions not addressed during the oral portion in written format. The oral presentations will be recorded. Participants may take notes, but no official transcript of the oral presentations will be made. Recording will be limited to the USG only, and the Offeror may not record the oral presentations.

e. It is recommended that the Offeror's personnel who will perform or personally direct the work being described conduct their relevant portions of the presentations. These personnel include project managers, task leaders, and other in-house staff of the Offeror. Subcontractors can be utilized as presenters at the Offeror's discretion. Offerors shall list the presenters' names, companies, and email addresses on the Title Slide for each Volume. Offerors are permitted to have up to two (2) non-presenters in the room during the presentation.

f. If there are any inconsistencies between the slides and oral presentations, the USG will attempt to address those issues during the clarification period held after the oral presentation. Offerors shall ensure that all key factual information (such as dates, quantities, product numbers, etc.) are included in the slides to reduce the chances that information will be missed during the oral presentation.

g. The facilities available for use by Offerors are limited to a conference room and overhead images (slides) via electronic projection. The USG will provide all facilities.

h. The oral presentation's specific location will be determined after the closing of the solicitation. Presentations will be conducted at Rock Island Arsenal in Rock Island, IL.

i. The USG will not pay for or reimburse Offerors for any costs associated with oral presentations.

14. The USG presumes the Offeror’s proposal represents its best effort to respond to the solicitation. The Offeror’s submission shall therefore be thorough, specific and complete. The Offeror is expected to provide sufficient detail in a clear and concise manner to completely and logically address each evaluation factor and subfactor. The USG will not assume the Offeror possesses any capability, understanding, or commitment not specified in the proposal. The Offeror is responsible for including sufficient details to permit a complete and accurate evaluation of the proposal without the need for additional clarifications. The USG does not desire excess verbiage, unnecessary and elaborate brochures, lengthy, repetitious, disorganized presentations, or any information beyond that sufficient to present and complete an effective offer. Failure to provide the required information/documentation in response to these instructions may result in a proposal being eliminated from the competitive range and/or rejected. Unsupported promises to comply with the contractual requirements are not sufficient. Proposal shall not merely reiterate the contractual specifications but rather shall provide convincing documentary evidence of how contract requirements will be met.

15. The successful proposal may be incorporated into the resultant contract in whole or in part. Any approach that the Offeror provides shall be in a format that when incorporated into the contract is sufficient to track execution performance against schedule and performance requirements. Any approach proposed shall be worded sufficiently to extract into contract performance language.

B. VOLUME 1 – PRODUCTION (Oral Presentation)

Subfactor 1: Production Processes (Oral Presentation)

1. Offeror shall provide a detailed description of the unit operations and manufacturing required to safely produce the products listed below. The Offeror’s process description shall include, but not be limited to, the following: key process parameters and process conditions, required process safety information, process and quality control, in-process and final inspection and testing. The Offeror’s process description shall assume each product is produced with all necessary raw materials in accordance with the applicable end item's MIL SPEC.

a) Single Base: AFP001
b) Double-Base: RPD 596
c) Triple Base: M31A2 or alternate triple base propellant
d) Nitrocellulose: Grade C, Grade D
e) Solventless: MK90

f) Nitroglycerin

Subfactor 2: Technical and Production Capability (Oral Presentation)

1. Workload and Facility Utilization Plan: The Offeror shall provide a comprehensive Workload and Facility Utilization Plan that details the Offeror's strategy to optimize facility utilization and enhance its operational capabilities over a period of no less than 10 years. The plan must be a cohesive document that integrates the Offeror's management strategy with its operational and performance measurement plans. The submittal shall consist of the following components:

a. Management Approach: The Offeror shall describe the management approach for executing the Workload and Facility Utilization Plan. This narrative must detail the organizational structure and processes that will ensure the successful implementation of the proposed workload and investments. At a minimum, this section shall include:

  i. Organizational Structure: A description of the management and administrative organization responsible for the plan's execution, including an organizational chart that clearly delineates lines of authority and responsibility for all key personnel involved.
  ii. Management Systems and Controls: A description of the corporate management systems, controls, and procedures (e.g., project management, financial management, quality control) that will be used to manage and control the work outlined in the schedule and narrative.
  iii. Decision-Making and Communication: An explanation of the decision-making process and communication plan for ensuring effective and timely information flow regarding the plan's progress to the Government.

b. Integrated Workload Schedule: The Offeror shall provide a detailed integrated workload schedule covering a minimum of 10 years. This schedule must serve as a timeline illustrating the Offeror's long-term operational and investment strategy, and it shall clearly delineate:

  i. Projected Workload: The allocation of both legacy and new product manufacturing over the minimum 10-year period.
  ii. Capacity Growth: Timelines for planned increases in production capacity for specific lines or products.
  iii. New Capability Integration: Key milestones indicating when new production capabilities or technologies are projected to come online.
  iv. Investment and Modernization Realization: The schedule for implementing self-funded investments and major modernization projects, showing when they are expected to be completed and contribute to operational capabilities.

c. Workload Plan Narrative: The Offeror shall provide a supporting narrative that explains the strategy and assumptions behind the Minimum 10-Year Integrated

Workload Schedule. This narrative must directly correspond to the schedule and provide, at a minimum, the following:

i. Market Analysis and Risk Mitigation: The Offeror shall provide a thorough analysis of the entire energetics market, encompassing both direct and indirect requirements of the U.S. Government. This analysis must inform a detailed risk mitigation strategy designed to address potential fluctuations in U.S. Government workload, ensuring the long-term viability and stability of facility operations.
ii. Legacy, New Products, and Diversification: A description of the legacy and new products the Offeror proposes to produce. This shall include a diversification strategy detailing the target markets the Offeror will pursue to secure the proposed workload.
iii. Production Line Utilization: Identification of the specific production lines to be utilized and a description of any proposed modifications or enhancements required to meet the workload schedule.
iv. Supply Chain Management:
v. Business Capture Plan: A clear and actionable plan for business capture efforts that will supplement and stabilize the workload shown in the schedule.
vi. Enhancement of Operations: A summary demonstrating how the proposed workload and investments will enhance the overall operational efficiency, stability, and modernization of the facility.

d. Performance Evaluation Methodology: The Offeror shall describe its internal Performance Evaluation Methodology for monitoring and measuring the successful execution of the Workload and Facility Utilization Plan. This section shall detail:

i. Performance Metrics: Proposed Key Performance Indicators (KPIs) and other metrics that will be used to measure performance against the technical, schedule, and investment objectives outlined in the plan.
ii. Data Collection and Analysis: The methodology for collecting, analyzing, and using performance data from the workload plan to drive continuous improvement and proactive management.
iii. Corrective Action Process: A description of the process for identifying deviations from the plan, determining root causes, and implementing timely corrective actions to ensure objectives are met.

2. Integrated Waste Stream Management Plan: The Offeror shall provide a comprehensive Integrated Waste Stream Management Plan (IWSMP) for RFAAP. The plan must demonstrate a forward-thinking approach to operational efficiency and environmental stewardship. The IWSMP shall include, but is not limited to, an approach to the following four areas, considering clarity, feasibility, and innovation of the strategies proposed:

a. Waste Minimization and Monetization Strategy: The Offeror shall describe a detailed strategy to minimize waste generation through process optimization and byproduct reuse. The proposal shall identify specific commercial outlets for byproducts and out-of-specification products, including a methodology to track and report on the projected revenue and cost savings.

b. Hazardous and Nonhazardous Material Storage: The Offeror shall describe its time-bound process to ensure no propellant, materials, production by-products, chemicals, intermediates, off-specification materials, NC Fines, residual materials, residual products, and production materials generated or acquired during the performance of this contract are stored for longer than two years and disposed of IAW all applicable federal, state, and local regulations and permits. The Offeror's approach shall include specific inventory tracking, aging analysis, and disposition-triggering procedures.

c. Legacy Waste Elimination Plan: The Offeror shall submit a detailed plan for all materials listed in Attachment XX, Legacy Waste Inventory. The Offeror's plan shall include, but is not limited to, the following three components:

   i. Reduction Schedule: The Offeror shall provide a schedule detailing the annual reduction of legacy waste. The schedule must demonstrate, at a minimum, a 10% reduction of the initial inventory volume per year.
   ii. Technical Approach: The Offeror shall describe the specific methodologies, technologies, and disposition pathways it will use to execute the proposed schedule. The Offeror shall discuss waste characterization, packaging, transportation, and disposal.
   iii. Progress Reporting: The Offeror shall describe its methodology for tracking and reporting progress to the Government. This Offeror shall include a sample format of the Annual Reduction Report that will be used to document performance against the proposed schedule.

d. Key Performance Indicators (KPIs): The Offeror shall propose and justify at least three distinct KPIs to quantitatively measure the success of the IWSMP. For each KPI, define the measurement methodology, data sources, and performance targets that will be used to drive continuous improvement over the life of the contract.

C. VOLUME 2 – OPERATIONS (Oral Presentation)

Subfactor 1: Facility Investment and Modernization (Oral Presentation)

1. Facility Investment and Modernization Plan: The Offeror shall submit a comprehensive Facility Investment and Modernization Plan as part of its proposal. This plan must be organized into the following four sections, addressing each category of investment as detailed below.

   a. Strategic Facility Self-Investment Approach

i. The Offeror shall describe its strategy for executing 100% Offeror-funded investments that establish new capabilities or production capacities not currently present at the facility.

ii. The Offeror is encouraged to describe the potential use of mechanisms such as Tenant Use Agreements under ARMS legislative authorities to meet these investment goals.

b. Short-Term Facility Upgrade Approach

i. The Offeror shall describe its approach for executing co-funded facility upgrades (projects less than 3 years in duration) to include a description of projects that upgrade, automate, or replace existing production lines, utilities, and support systems to current industrial standards without fundamentally changing the facility's mission.

ii. The Offeror shall describe its methodology for developing project proposals and justifying the proposed Government matching fund ratio (not to exceed 1:5 (Contractor:Government)), with the Government co-investment not to exceed $250M.

c. Facility Reset Plan

i. The Offeror shall submit a comprehensive Facility Reset Plan that is fully executable within three (3) years of operational control. The Plan shall describe actions that restore existing facilities, equipment, and infrastructure to a baseline acceptable condition (e.g., repair, replacement in kind, code compliance), including the replacement of management and software systems. The Plan must, at a minimum, detail the Offeror's approach and prioritized plan to:

1. Modernize safety equipment, processes, and management systems (e.g., control system interlocks, machine guarding, training systems, employee protection, vehicles, communication systems).

2. Perform extensive minor and major maintenance across the facility above the PWS baseline, including the transformation of the maintenance management system and associated support areas (e.g., spare part storage, technician vehicles).

3. Upgrade production facilities and management systems, including control systems, automation, material handling, labor structures, and material traceability systems.

4. Implement energy conservation and resiliency improvements.

5. Address all Explosive Site Safety requirements to include but not limited to DoDM 4145.26, DoD Contractor's Safety Manual for Ammunition and Explosives, Chapters 5 and 7 and describe how the strategy will be considered and implemented as part of the Facility Reset Plan.

ii. The Offeror shall describe its methodology for developing project proposals and justifying the proposed Government matching fund ratio (not to exceed 1:10 (Contractor:Government)), with the Government co-investment not to exceed $500M.

d. Long-Term Modernization Plan

i. The Offeror shall submit a Long-Term Modernization Plan. This plan must present a 10+ year strategic vision for RFAAP, based on the notional Government modernization budget of $3.5B - $4.5B over 10 years. The Plan shall detail the Offeror's vision, specific goals, and implementation strategy. Specifically, the Offeror shall:

1. Provide a RFAAP Modernization Roadmap detailing the Offeror's 10-year vision. The roadmap must address design/build and design/bid/build acquisition approaches, show dependencies between projects, and for each project, provide a Class 5 Rough Order of Magnitude (ROM) cost estimate (+/- 100%/50%) with its basis. The roadmap shall also detail how the Offeror will leverage its expertise to drive R&D efforts for low technical maturity projects.

2. Identify any planned private investment it will commit to RFAAP modernization beyond the USG-funded scope, describing its timing, purpose, and how it supports Army objectives. The Offeror shall provide evidence of financial capability to execute this investment.

3. Address all Explosive Site Safety requirements to include but not limited to DoDM 4145.26, DoD Contractor's Safety Manual for Ammunition and Explosives, Chapters 5 and 7 and describe how the strategy will be considered and implemented as part of the Facility Reset Plan.

Subfactor 2: Maintenance, Utilities, and Safety (Oral Presentation)

1. Maintenance Program and Performance Management: The Offeror shall provide a comprehensive approach to establishing and executing a modern, data-driven maintenance program at RFAAP. The proposal must address the following key areas:

   a. Integrated Maintenance Framework: The Offeror shall detail a maintenance framework which must integrate preventive, predictive, and corrective maintenance functions. The proposal must include:

i. A specific Maintenance Optimization Strategy that considers the current condition and reliability of RFAAP assets. This strategy shall explain how the Offeror will balance competing priorities such as asset lifecycle extension, production availability, and cost-effectiveness.

ii. A description of the Tools, Technologies, and Methodologies that will be employed. This includes, but is not limited to, the Offeror's approach to spare parts strategy, predictive modeling, data analytics, and the use of intelligent business systems to drive decision-making.

iii. A proactive approach to preventative maintenance that covers, at a minimum, strategies and procedure for all preventative maintenance activities, preventative maintenance scheduling, and making time-based or usage-based preventative maintenance decisions.

b. Resource and Work Order Management: The Offeror shall detail its system and methodology for managing maintenance resources and work orders to ensure timely execution and prevent asset degradation. The proposal must describe:

i. The Resource Planning and Allocation System for integrating and deconflicting maintenance efforts between all stakeholders (e.g., facilities, production, engineering, safety, environmental, and procurement).

ii. A proactive Work Order Management Approach that details how the Offeror will manage the entire work order lifecycle. This approach must specifically address how complex repairs will be prioritized and managed to prevent backlogs, mitigate further deterioration of facilities, and support all production delivery schedules.

c. Major Maintenance Program: The Offeror shall provide its comprehensive plan for the management and execution of the Major Maintenance Program. The proposal must detail the Offeror's strategy to effectively utilize the specified annual funding to improve facility conditions and support mission readiness. The proposal shall address the following:

i. Project Identification and Prioritization Strategy: The Offeror shall describe its methodology for identifying, validating, and prioritizing potential Major Maintenance projects. This description must include:

1. The proactive methods and data sources (e.g., condition assessments, reliability data, lifecycle cost analysis) used to identify candidate projects.

2. The rationale and scoring/weighting criteria that will be used to develop and maintain the prioritized 1-N project list. The Offeror shall explain how the factors such as risk mitigation, production impact, return on investment, and strategic alignment are considered when determining project sequencing.

ii. Program Execution and Management Plan: The Offeror shall detail its management plan for executing the full annual value of the Major Maintenance program ($5M for years 1-5; $6M for year 6 and onward). This plan must describe:

1. The end-to-end process for managing a project from initial approval to completion, including how projects will be scheduled to minimize production impacts.

2. The approach to managing the 1-N list and collaborating with the Government within the Major Maintenance Committee to ensure alignment and transparent reporting.

iii. Cost and Financial Management: The Offeror shall describe its financial management approach for the Major Maintenance program to include, but not limited to, the following:

1. The process for developing robust, independent cost estimates and ensuring all proposed project costs are allowable, allocable, fair, and reasonable.

2. The methodology for tracking actual costs against estimates, managing cost variances, and administering the carry-over or deduction of funds from one year to the next.

d. Performance Management and Improvement: The Offeror shall propose a dynamic, KPI-based performance management system to measure the success of the maintenance program and drive continuous improvement. This Offeror's approach must detail the process for:

i. How the KPI-based performance management system will be used to establish, measure, and report on the KPIs identified in PWS 7.

ii. How KPI data will be used to implement a Continuous Improvement Process.

iii. Collaboratively reviewing, adding, or retiring KPIs with the Government over the life of the contract to ensure focus remains on the most relevant performance indicators.

iv. Identification of additional KPIs

1. The Offeror shall identify, at a minimum, three (3) additional KPIs that will be implemented upon operational control IAW PWS 7. The Offeror shall include details on why each KPI will was chosen, how each will be measured, and reported on, and how each will drive continuous improvement.

e. Innovation and Predictive Maintenance: The Offeror shall describe its approach to innovation, to include but not limited to proposed processes, improvements, or capabilities which would provide quantifiable savings to the Government. Innovation is defined as providing efficiencies in cost, schedule, and/or quality while still meeting all requirements in PWS 7. The Offeror shall describe planned predictive maintenance capabilities and include the tools and techniques that will be implemented.

2. Utilities and Energy Management Plan: The Offeror shall submit a comprehensive Utilities and Energy Management Plan that details its approach to meeting the requirements of PWS 10. The plan must be organized into the following sections:

   a. Overall Management and Operational Approach

      i. Energy Management System (EnMS): The Offeror shall describe its proposed EnMS and its approach to developing and submitting the annual Energy Management Execution Plan. This section shall also describe the plan for staffing the utilities program with appropriately trained and certified professionals.

      ii. Utilities Operations: For each major utility (Electricity, Steam, Natural Gas, Water/Wastewater, Compressed Air), the Offeror shall describe its operational approach to ensure safe, reliable, and compliant generation and distribution. The description must specifically address:

         1. The strategy for natural gas procurement to ensure Primary Firm reservation contracts are prioritized.
         2. The approach to developing and maintaining the installation's electrical load-shedding plan.
         3. The plan for operating and maintaining the three wastewater treatment facilities and the potable water treatment plants in accordance with all permits and regulations.

   b. Performance, Conservation, and Improvement

      i. Performance Indicators: The Offeror shall describe its methodology for establishing, tracking, and reporting Key Performance Indicators (KPIs) and Energy Performance Indicators (EnPIs) for all utilities and Significant Energy Users (SEUs). The Offeror must detail its strategy for achieving the goal of at least a 5% annual improvement for each EnPI.
      ii. Metering Plan: The Offeror shall describe its plan and timeline to achieve the Army's metering compliance goals (75% within one year, 100% within two years) for all applicable utilities and its approach to ensuring >95% meter data availability.
      iii. Continuous Improvement: The Offeror shall describe its process for identifying and executing the required two (2) annual energy-focused Continuous

Improvement (CI) projects.

iv. Energy and Water Evaluations: The Offeror shall detail its process for conducting Comprehensive Energy and Water Evaluations (CEWEs) on 25% of facility square footage each year and how the results will be used to identify conservation projects.

3. Safety Program Management: The Offeror shall submit a comprehensive Safety Program Plan that details its corporate approach and methodologies for ensuring a safe working environment at RFAAP. The plan must be organized to address the following key areas:

   a. Compliance and Program Management: The Offeror shall describe its comprehensive methodology for ensuring all operations (including those of subcontractors and tenants) comply with all applicable safety requirements, specifically including OSHA regulations and the requirements of DODM 4145.26. The plan shall include at a minimum:

      i. A dedicated section detailing the implementation and management of the Process Safety Management (PSM) program in accordance with 29 CFR 1910.119. This PSM section must, at a minimum, detail the Offeror's specific approach for each of the 14 PSM elements (employee participation, process safety information, process hazard analysis, operating procedures, training, contractors, pre-startup safety review, mechanical integrity, hot work permit, management of change, incident investigation, emergency planning and response, compliance audits, trade secrets).

      ii. An approach to ensuring safety associated with the aged infrastructure and equipment at RFAAP that currently does not meet OSHA regulatory requirements (examples include but are not limited to: lightning protection, arc flash, and surge protection).

   b. Hazard and Non-Compliance Tracking: The Offeror shall describe its proposed electronic system and process for tracking all non-compliant conditions and hazards from discovery through abatement. The description must demonstrate how the system will capture all required data points and permit effective tracking and management oversight.

      i. Key Performance Indicators: The Offeror shall propose a KPI-based evaluation system that shall be used for the term of the contract to measure success of the safety program. The USG expects such a system to allow for the inclusion and deletion of KPIs over time to best focus on most relevant KPIs.

      ii. The Offeror shall propose a minimum of three (3) additional safety-related Key Performance Indicators (KPIs) not already specified in the PWS. For each proposed KPI, the Offeror shall provide the calculation method, its justification, and explain how it will be used to measure and drive continuous safety performance improvement.

D. VOLUME 3 – PAST PERFORMANCE
Offeror shall submit a Past Performance volume with its proposal containing past performance information in accordance with the format prescribed below:

a. Cover Page: Volume 3 - Past Performance, Program, Solicitation Number, Offeror Name, CAGE, and Unique Entity Identification (UEI)
b. Table of Contents
c. Section A: Contract References – Eight (8) total references maximum using Past Performance Questionnaire (PPQ) Form attached to this solicitation plus an additional five (5) for major subcontractors.
d. Section B: Relevant Delivery and Quality Performance Narratives
e. Section C: Adverse Contract Performance - No page limitations
f. Section D: Safety – No page limitations

Section A - Contract References:

1. The prime Offeror may submit with its proposal up to eight (8) contract references based on its own performance that are recent and relevant to the solicitation requirement. Contract references may include U.S. Government (USG) contracts, foreign government contracts (non-United States), or commercial contracts for the provision of supplies and/or services. For the purposes of this solicitation, a commercial contract is defined as an agreement with a non-government entity. Contract references provided on Classified contracts cannot be verified and will not be evaluated. For other than USG contracts, Offerors must provide detailed POC information to allow the USG the opportunity to verify.

   a. If the prime Offeror is a new corporate entity, it may submit contract references for prior recent and relevant contracts involving its predecessor companies (if applicable). Such references must be provided with documentation that demonstrates that the predecessor company was acquired, absorbed and replaced by the prime Offeror as its successor. Contract references for predecessor companies will count against the eight (8) contract references authorized under this section.

   b. If the Offeror is a Joint Venture (JV), it may submit contract references for recent and relevant contracts performed by the JV itself. If the JV does not have eight (8) recent or relevant contract references, it may submit references for contracts performed by one or more of the entities comprising the JV. Contract references for JVs and JV partners will count against the eight (8) contract references authorized under this section. The Offeror shall provide an outline of how the effort required by the solicitation will be assigned to each entity comprising the JV.

   c. Contract references for parent or affiliated companies of the prime Offeror (to include parent or affiliated companies of new corporate entities or JV partners) may be submitted as part of the eight (8) contract references in this section; however, these references shall be provided with an explanation of what resources the parent or affiliated company will provide or be relied upon which will affect the contract performance of the Offeror and demonstrates that the parent or affiliate will have meaningful involvement in contract performance--mere affiliation, alone, will not be sufficient for consideration of such past performance.

2. In addition to the eight (8) contract references allowed for the prime Offeror under Section A.1., the Offeror may submit contract references for up to five (5) major subcontractors. For each major subcontractor identified, the Offeror may submit up to three (3) contract references in which the major subcontractor performed as a prime contractor or first tier subcontractor. Contract references for parent or affiliated companies of major subcontractors may be submitted as part of the three (3) contract references; however, these references shall be provided with an explanation of what resources the parent or affiliated company will provide or be relied upon which will affect the contract performance of the major subcontractor and demonstrates that the parent or affiliate will have meaningful involvement in contract performance – mere affiliation, alone, will not be sufficient for consideration of such past performance.

    a. Major subcontractors are defined as those subcontractors who will perform major or critical aspects of the requirement. Major or critical aspects of the requirement are defined for the purposes of this solicitation to be those subcontractors that the Offeror determines to have a significant role in the successful performance of its proposed approach under Volume 1 and Volume 2.

    b. Offeror shall provide an outline of how the effort required by the solicitation will be assigned within the Offeror's corporate entity and among the proposed major subcontractors. Offerors shall not provide major subcontractor information for USG-directed sources.

    c. Letters of commitment may be required with final proposal revisions, as necessary.

    d. Each major subcontractor shall include a written consent permitting the USG the authority to discuss that company’s past performance evaluation with the Offeror during discussions, if applicable.

3. Recency. Recency is defined as any supply contract under which any performance, delivery, or corrective action has occurred within 10 years of this final solicitation issuance, any services contract for operations and maintenance under which any performance, delivery, or corrective action has occurred within 10 years of this final solicitation issuance, and any services contract for modernization under which any performance, delivery, or corrective action has occurred within 10 years

of this final solicitation issuance . The USG reserves the right to consider any past performance after the solicitation closing date and prior to award.

4. Relevancy. Relevancy, as it pertains to past performance information, is a measure of the extent of similarity between the past performance reference and the solicitation requirements. If a contract reference contains both supply and service elements, such a reference will receive relevancy ratings for the service elements and a relevancy rating for supply elements based on the criteria below.

    a. Determining relevancy for the Offeror service past performance reference: The USG will consider the similarity of the services provided to the services required. Service references with a maximum contract value of less than $15M will not be considered relevant. Relevant service contracts are defined as contracts that demonstrate:

        i. The Offeror has provided facility support services associated with operation and maintenance of a chemical and/or energetic production facility.

        ii. The Offeror has provided facility services associated with modernization.

    b. Determining relevancy for the Offeror supply past performance reference: The USG will consider the degree to which the reference is comparable with regard to the complexity of the processes, the variability of products, and the volume of products to the solicitation requirements. The USG will consider whether the Offeror manufactured or performed chemical and/or energetic manufacturing. Supply references with a maximum contract value of less than $5M will not be considered relevant.

5. Past Performance Questionnaire (PPQ) for Commercial Contracts: Offeror shall submit a PPQ at Attachment 0036, for each commercial past performance reference included in the proposal. The Offeror shall complete Section II, General Information. The Offeror shall send the PPQ to the POC identified in Section II-A requesting the POC to complete the remaining portions of the PPQ. The Offeror shall encourage the PPQ respondent to return the completed questionnaire directly to the USG POC cited on the questionnaire on or before the proposal submission date. All questionnaires completed by the respondents shall be sent from the respondent's email address directly to the USG POC; not to the Offeror for forwarding to the USG. The PCO reserves the right to request revised PPQs as necessary.

6. Offeror shall submit the following for each USG and Commercial past performance reference included in the proposal, including references submitted as part of the adverse past performance requirement:

a. Contract number, award date, dollars awarded, place of performance, CAGE Code and UEI.
b. PCO (in support of USG contracts) or project point of contact (for commercial contracts), current address, email address, and telephone number.
c. USG's technical representative/COR name, current email address, and telephone number.
d. USG contract administration activity and the Administrative Contracting Officer's name, current email address, and telephone numbers.
e. Type of Instrument (Contract/Order/Other), Contract Type (Fixed price, Cost Reimbursement, Time and Materials, etc.).
f. Period of performance of the contract.
g. NSN, Part Number, or supply/service description

Section B - Relevant Delivery and Quality Performance Narratives: For supplies and services, the Offeror shall provide a descriptive narrative of each submitted contract reference that describes the contracted work effort detailing how the requirements are relevant to the requirements of this solicitation as defined in Section A, paragraph 4.

Section C - Adverse Contract Performance:

1. In addition to the contract references afforded in response to Section A, the Offeror shall identify adverse past performance for every recent and relevant contract that was awarded to those companies for which contract references were provided under Section A.1. and A.2. Adverse past performance includes any recent and relevant contract awarded to those contractors referenced in section A.1. and A.2. that experienced any performance problems identified below; as well as every recent and relevant contract that was terminated for cause or default. Each adverse past performance reference shall include the information required in Section A and Section B. The number of adverse past performance contract references allowed under this section is unlimited. If there are no contracts that meet this criteria, the Offeror must state such. The Offeror’s proposal shall also certify that all recent and relevant adverse past performance has been submitted with its proposal. Offerors are advised that this is the single opportunity to address any adverse past performance on contract references submitted in response to the solicitation; the USG will not give Offerors an opportunity to address adverse past performance information contained in the proposal during evaluations.

    a. For all recent and relevant USG and commercial contract(s) for supplies and/or services that did not meet the original schedule, provide a brief explanation of the reason(s) for the shortcomings and any corrective action(s) taken to avoid reoccurrence, to include, but not limited to:

        i. Each time the delivery schedule or project schedule was not met;
        ii. The original completion date agreed to in the contract, final completion date, and any contractually revised dates in between (as applicable);

iii. Provide an explanation of why the schedule was missed;
iv. When explaining the corrective action, Offeror shall note whether a contract modification was issued as a result of the schedule delay and include the modification number.

b. For all recent and relevant USG and commercial contract(s), for supplies and/or services the Offeror shall provide data on any quality or technical performance problems, including, but not limited to:

i. Unsuccessful First Article Tests (FATs);
ii. Lot Acceptance Test (LAT) failures;
iii. Revoked International Organization for Standardization (ISO) status (including dates);
iv. Audit findings classified as major;
v. Warranty claims (include dates, defect or failure mode, resolution, and resolution date(s));
vi. Product Quality Deficiency Reports (PQDRs); and
vii. Level III or higher Corrective Action Reports (CARs) or reoccurring corrective action requests for a single issue.

c. For all recent and relevant USG contract(s), the Offeror shall provide a copy of any cure notices, show cause letters, ACO/PCO letters of concern received, and contract modifications or official correspondence from the ACO/PCO decrementing, withholding, or suspending contract payment or financing as a result of contractor performance. The Offeror shall indicate if any of the contracts listed were terminated for cause or default, in whole or in part, and the type and reasons for the termination.

d. For all recent and relevant USG and commercial contract(s), the Offeror shall provide a description of any corrective action implemented by the Offeror. Describe the extent to which the corrective actions have been successful and identify a point of contact to confirm the success of the corrective measures.

Section D – Safety: Offeror shall provide accident data for all recent and relevant contracts submitted for evaluation. This data shall be taken from its OSHA 300 log (or foreign equivalent). The Offeror shall also identify correlating corrective action(s), and the result of the corrective action(s).

E. VOLUME 4 – PRICE (*Note to Industry: Attachment 0019 is still in development and open for feedback)

1. The Offeror shall submit its proposed prices within the Price Matrix (Attachment 0019).

   a. The specific cells within each respective matrix that require entry of information by the Offeror are highlighted in orange. Other than the information required as annotated in orange, no other information is to be added to the price matrices, nor shall the Offeror make any changes to the price matrices.

b. All proposed unit prices shall be stated in U.S. dollars and be limited to two decimal places.

c. All prices are binding.

d. Failure to fully complete each price matrix may render the Offeror's proposal ineligible for award.

2. Instruction Specific to the completion of the Product Price Matrix (Attachment 0019):

    a. The Offeror shall propose a firm-fixed price for all CLINs for each ordering period as identified in the price matrices.

    b. The Offeror shall propose separate pricing under two plant-wide volume ranges. These ranges have been expressed on an Equivalent Unit (EU) basis and correspond to the EU's associated with each product. During contract execution and prior to the start of every ordering period, the plant-wide volume range will be established on a forward-looking basis by multiplying the forecast quantities of USG and commercial product by each item's respective ordering period EU factor.

    c. The EU factor for a given product during contract execution will be defined as the Offeror's proposed weighted unit price for that item in the respective ordering period. The weighted unit price for purposes of establishing each product's EU will be quantified as follows under each ordering period:

        (Offeror plant-wide range 1 unit price X weighting factor) + (Offeror plant-wide range 2 unit price X weighting factor) = ordering period product EU per unit

    d. EU's for commercial products or other USG products not included on the matrix will be determined based on contractual or forecast unit prices applicable to the orders. The calculation is intended to encompass all production activity performed by the operator or it. The ordering period total will then be assigned to a range according to the range minimum and maximum quantities established in the price matrix. Unless otherwise noted in this solicitation, all orders placed within the ordering period will be priced at the selected plant-wide range, with no retroactive adjustments to prices.

    e. Within each plant-wide volume range matrix, the Offeror shall enter a single unit price for each CLIN that will be applicable to all orders greater than the minimum order size, but less than or equal to the stated maximum order size. The USG is not requesting pricing for separate CLIN-level order size ranges.

This unit price will be multiplied by the evaluated quantity to calculate the total ordering period production price.

f. Plant-wide ranges are as follows:

Range 1: 1 to 35,000,000 EU's
Range 2: 35,000,000 EU's and above

g. The Offeror shall enter the total ordering period production prices for all 10 priced ordering periods for Ranges 1 and Range 2 into its corresponding cells within the Summary Production Price Matrix tab. Each ordering period's weighted production price will be calculated as follows:

(range 1 total ordering period production price X weighting factor) +
(range 2 total ordering period production price X weighting factor) =
Total Ordering Period Weighted Production Price

3. The Offeror shall enter each Total Ordering Period Weighted Production Price into the corresponding cells in the Summary TEP tab.

4. Instructions specific to the completion of the PWS Matrix (Attachment 0019):

a. The Offeror shall propose firm fixed prices for each identified direct funded PWS for Ordering Periods 1 through 10. Direct funded PWS's to be priced are listed below:

PWS 1 – Environmental
PWS 2 – Facility Planning
PWS 3 – Fire Protection and Emergency Services
PWS 4 – USG Property in Possession of Contractor
PWS 5 – Occupational Health
PWS 6 – Installation Security and Antiterrorism
PWS 7 – Maintenance of Facilities
PWS 8 – Transition In – to be provided at a later date
PWS 9 – Safety Operations Management
PWS 10 – Energy and Utility Service Management (excluding purchased energy)
PWS 11 – Facility Operations and Production Reporting
PWS 13 – Cyber Security
PWS 15 – ALTESS
PWS 17 – Transition Out
PWS 18 – Ground Water Monitoring & Installation Restoration

*PWS's 14 ACO Staff Support and PWS 16 Ammunition Material Management are removed from the Direct funded PWS list.
**PWS 12 is funded utilizing tenant revenue.

5. The Offeror shall demonstrate the beneficial impact of increased business base throughout the PoP by entering a negative value in the “Contractor Challenge” row as an offset to the USG’s PWS price for each ordering period. The contractor challenge entry represents a reduction to the solicitation PWS price as a result of additional business base that would absorb fixed overhead. This entry is not required and will only be evaluated as a component of the total ordering period PWS Price.

6. The Offeror shall enter each ordering period’s evaluated PWS cost into the corresponding cells in the Summary TEP tab.

7. Instructions specific to NC Fines Pricing (Attachment 0019) **(*Note to Industry: The USG is still reviewing this with regard to the TEP. The USG is accepting industry feedback on incorporation of NC Fines pricing into PWS pricing or as a separate individual project as part of the TEP.)**

8. The USG anticipates receiving adequate price competition under this solicitation; therefore, cost or pricing data is not required to be submitted with the proposal. However, in the event the Contracting Officer determines that adequate competition does not exist (i.e. single Offeror), the USG reserves the right to require certified cost or pricing data be submitted. Additionally, the USG reserves the right to request data other than certified cost or pricing data in the event such data is necessary to establish a fair and reasonable price.

9. Should the USG identify an Offeror’s proposed pricing as potentially unbalanced and the Offeror subsequently confirms its pricing to the USG, the Offeror shall then provide rationale and/or supporting documentation to validate any questioned pricing and demonstrate that said pricing is not unbalanced or that any unbalanced pricing does not present unacceptable risk to performance and also will not result in unreasonably high prices for contract performance.

F. VOLUME 5 – SMALL BUSINESS PARTICIPATION (Oral Presentation Only)

1. Other Than Small Business (OTSB) Offerors must demonstrate a commitment to providing maximum practicable opportunities for small business participation by addressing the requirements in this factor. In accordance with 13 CFR 125.3(g), Small Business Offerors are not required to submit any information in connection with this factor. An Offeror is considered a Small Business if it can certify its Small Business status under NAICS 561210. Each OTSB Offeror shall also provide a separate Small Business Subcontracting Plan that contains all the elements required by FAR 52.219-9 and is also consistent with the small business participation proposed in Attachment 0035. Small Business Subcontracting Plans are not evaluated as part of the Small Business Participation Factor and are excluded from the Small Business Participation Factor slide count limit. An OTSB must submit an acceptable Small Business Subcontracting Plan in order to be eligible for award, as the Small Business Subcontracting Plan of the apparent awardee will be reviewed as part of the responsibility determination.

2. The Offeror shall provide its proposed overall Small Business goal along with proposed goals for each of the five socioeconomic categories that include Small Disadvantaged Businesses, Women-Owned Small Businesses, HUBZone Certified Small Businesses, Veteran-Owned Small Businesses, and Service-Disabled Veteran-Owned Small Businesses by using solicitation Attachment 0035, Small Business Participation Commitment Document. The proposed goals shall be based on total contract value to include all Ordering and Option Periods. Attachment 0035 is excluded from the Small Business Participation Factor slide count limit.

    a. Please note that the proposed overall Small Business goal and the proposed socioeconomic category goals will ultimately be incorporated into the resultant contract to include all applicable Ordering and Option Periods. Performance of these goals will then contribute to the determination of the awardee’s Contractor Performance Assessment Rating (CPAR) rating for Small Business during contract execution.

    b. If an Offeror plans to submit a Commercial Small Business Subcontracting Plan in lieu of an individual Small Business Subcontracting Plan, the Offeror shall submit goals that can be supported with its Commercial Plan in contract execution. The USG may consider the performance of the aforementioned proposed goals, and the performance of the goals contained within the Commercial Small Business Subcontracting Plan when developing the CPAR rating for Small Business.

3. Small Business Participation Commitment: The Small Business Participation Commitment is separate and distinct from a Small Business Subcontracting Plan required by FAR 52.219-9. The Offeror shall describe its approach and ability to team with small business companies commensurate with efficient contract performance to meet or exceed the overall Small Business goal and to support the proposed socioeconomic category goals. The Offeror shall specifically address the following elements to support its Small Business Participation Commitment Document:

NOTE: Offerors shall use the following to formulate a Table of Contents to create a uniform document. This will assist evaluators in conducting an efficient evaluation process.

    a. Small Business Participation Commitment Methodology: Describe the most effective and efficient methods for establishing its proposed goals to include business techniques (e.g., interviews, outreach, small business onboarding website(s)…etc.); use of specific data sources/systems (both USG and internal); and relevant data elements (e.g., contract value, subcontracting data, NAICS, etc.) used to create an informed, reasonable, and achievable goal. The Offeror shall identify any risks associated with the requirements (e.g., labor market, performance location(s), socioeconomic marketplace, etc.) and actions the Offeror will take to mitigate the potential risks.

b. Industrial Base Growth Initiatives: Describe, if any, methods to maximize small business participation during execution and enhance industrial base resiliency such as, but not limited to: Mentor Protege relationships (formal DoD/SBA or informal), complexity and variety of small business work portion, providing facility clearance sponsorship to small business(es), leveraging new entrant small businesses, use of regional/local small business subcontractors, or providing performance assessment to small business teaming partners whether it be through JVs or first tier subcontractors to facilitate 13 CFR 125.11 on future procurements. Offerors should not limit themselves to the aforementioned example and are encouraged to identify and describe out of the box methods and techniques that can support industrial base growth.

c. Binding Agreements: Describe the extent to which binding agreements are in place with small business team members/subcontractors and method(s) of substitution should relationships/marketplace change during execution while sustaining proposed goals.

d. Demonstrated Small Business Participation History: Describe, if any, recent procurement history of demonstrated success or good faith efforts in meeting or exceeding small business participation goals on similar work/contracts. The Offeror shall submit subcontracting reports (Individual or Summary Subcontracting Reports) or DCMA audits of subcontracting plans for their recent contracts that required a subcontracting plan. Offerors are limited to submitting one report for each contract and an aggregate maximum of three (3) (any combination of reports/audits). Offerors who do not have subcontracting past performance shall indicate so.

G. VOLUME 6 – INDEMNIFICATION REQUEST PACKAGE

1. Requests for Indemnification under Public Law 85-804 will be considered for this solicitation to cover unusually hazardous risks associated with this requirement.

2. If the Offeror wishes to seek indemnification, it must submit an Indemnification Request Package in accordance with FAR 50.104-3 and the provisions of this solicitation. Indemnification Request Packages shall contain sufficient and compelling justification as required per FAR and Section L.

    a. It is essential that the Offeror’s Indemnification Request Package include all necessary information as requested by FAR 50.104-3, to include, information regarding the availability, cost, and terms of additional insurance or other forms of financial protection necessary.

b. Prices submitted in response to this solicitation are binding, and therefore, the Offeror will assume full liability of the RFAAP facility. With its indemnification request, the Offeror shall explain how it intends to fund incidents that exceed its stated insurance coverages if indemnification is not granted.

c. If proposing the use of an umbrella insurance policy to cover the Offeror's global business activities, it shall clearly identify the portion of the umbrella insurance premium it proposes to be absorbed under the RFAAP contract.

d. If the Offeror believes additional coverage to address unusually hazardous risks is cost prohibitive, it must clearly identify each specific risk and the associated cost in order to assist the USG in making a determination relative to the insurance being cost prohibitive.

3. In order to allow the USG to award on a with or without indemnification basis, pending receipt of a Memorandum of Decision from the Secretary of the Army, Offerors seeking indemnification are required to propose production unit prices with and without indemnification. If the Offeror requests indemnification, the Offeror shall submit a completed the Product Price Matrix – Indemnified and/or PWS Price Matrix - Indemnified (Attachment 0019). Prices in Attachment 0019 shall reflect the Offeror's prices as if indemnification is approved by the Secretary of the Army (i.e. those portions of insurance costs which become unnecessary if indemnification is approved should be removed from the product unit prices). Note: If indemnification is approved by the Secretary of the Army, it will only apply to unusually hazardous risks which will be defined by the Secretary of the Army in the approval memorandum; it will not relieve the contractor of its responsibility to obtain insurance for those risks not identified in the approval memorandum. A breakout of the Indemnification Total Cost Application figures per ordering periods presented in the PWS Price Matrix (Attachment 0019), shall also be submitted. If the Offeror is not requesting Indemnification, the Offeror does not need to complete the Indemnified tab of Price Matrix (Attachment 0019).

4. The PCO, with assistance from legal counsel and cognizant program office personnel, will review the indemnification request and ascertain whether it contains all required information. If the PCO, after considering the facts and evidence, denies the request, notification will be provided to the contractor promptly with the reasons for the denial. If recommending approval, the indemnification requests from the applicable Offeror(s) will be submitted to the Secretary of the Army for approval.

5. If approved, the indemnification clause will be included; however, there is no guarantee that indemnification will be approved and should not be assumed. The USG cannot state in advance what efforts under the contract will be indemnified. Offerors should be aware that indemnification will only apply to unusually hazardous risks, which are defined by the Secretary of the Army in the approval memorandum, and does not relieve the contractor of its responsibility to obtain insurance for those risks not identified in the approval memorandum.

H. VOLUME 7 – SOLICITATION, OFFER AND AWARD DOCUMENTS AND CERTIFICATIONS/REPRESENTATIONS

1. Certifications and Representations: Offeror shall complete (fill-in and signatures) the solicitation sections indicated below. An authorized official of the firm shall sign the required documents.

    a. Section A – Standard Form 33 (SF33), Solicitation, Offer and Award and any solicitation amendments
    b. Section K – Representations, Certification and Other Statements of Offerors

2. Offerors shall fill in information on all appropriate clauses as stated in the solicitation. For any fill-ins that are not applicable (N/A), the Offeror must acknowledge by indicating N/A.

3. Offerors shall provide signed JV agreements.

4. Offerors shall provide small business subcontracting plans.

5. Offerors shall provide a master table of contents and cover letter.

6. This information shall be addressed separately from Volumes 1-6.

<u>L02 - DISCLOSURE OF UNIT PRICES</u>
Unless the offeror notifies the Contracting Officer, prior to submission of its initial proposal, of an objection to disclosure of its unit price, it is the USG's intent to publicly release (which would include, but is not limited to, a public award synopsis, contractor debrief, procurement history web posting, or Freedom of Information Act (FOIA) request) the unit price(s) stated in the contract awarded under this solicitation. Any objection must be submitted in writing, providing a detailed explanation of how release of the awarded unit price would result in a substantial competitive harm to the contractor. Objections will be reviewed to determine whether harm has been substantiated. Failure to timely notify the Contracting Officer waives any objection to disclosure of the unit price. A "unit price" is defined as the specified amount to be paid by the USG for the goods or services stated per unit, contract line item, or separately identified contract deliverable. The term "unit price" does not include any information on how the unit price was determined. This constitutes notification pursuant to Executive Order 12600.

<u>L03 - AMC-LEVEL PROTEST PROGRAM</u>
If you have complaints about this procurement, it is preferable that you first attempt to resolve those concerns with the responsible Contracting Officer. However, you can also protest to Headquarters, AMC. The HQ, AMC-Level Protest Program is intended to encourage interested parties to seek resolution of their concerns within AMC as an Alternative Dispute Resolution forum, rather than filing a protest with General

Accounting Office or other external forum. Contract award or performance is suspended during the protest to the same extent, and within the same time periods, as if filed at the GAO. To be timely, protests must be filed within the periods specified in FAR 33.103. Send protests (other than protests to the Contracting Officer) to:

Headquarters, U.S. Army Materiel Command
Office of Command Counsel-Deputy Command Counsel
4400 Martin Road
Rm: A6SE040.001
Redstone Arsenal, AL 35898-5000
Fax: (256) 450-8840
e-mail: usarmy.redstone.usamc.mbx.protests@army.mil

The AMC-level protest procedures are found at: https://www.amc.army.mil/Contact-Us/AMC-Protest-Program/

If Internet access is not available, contact the Contracting Officer or HQ, AMC Office of Command Counsel to obtain the AMC-Level Protest Procedures.

Section M

<u>M01 – PROPOSAL EVALUATION</u>

A. PROPOSAL EVALUATION

1. Proposals submitted in accordance with Section L of the solicitation will be evaluated by the U.S. Government (USG), and the USG will make an award determination utilizing the evaluation criteria outlined in this section.

2. The USG intends to award one (1) contract to a single Offeror as a result of the solicitation. The USG's award determination will be based on the following non-price and price factors:

   Volume 1 - Production (Oral Presentation)
   - Subfactor 1 - Production Processes (Oral Presentation)
   - Subfactor 2 - Technical and Production Capability (Oral Presentation)

   Volume 2 – Operations (Oral Presentation)
   - Subfactor 1 - Facility Investment and Modernization (Oral Presentation)
   - Subfactor 2 - Maintenance, Utilities and Safety (Oral Presentation)

   Volume 3 - Past Performance

   Volume 4 - Price

   Volume 5 - Small Business Participation (Oral Presentation)

3. Best Value Factor Relative Order of Importance:

   a. Production is more important than Operations.
      - Production Subfactor 2 is significantly more important than Production Subfactor 1.

   b. Operations is more important than Past Performance.
      - Operations Subfactor 1 is significantly more important than Operations Subfactor 2.

   c. Past Performance is more important than Price.

   d. Price is significantly more important than Small Business.

   e. All non-price evaluation factors, when combined, are significantly more important than Price.

4. To receive consideration for award, a rating of no less than "Acceptable" must be achieved for all non-Price factors (including subfactors). Additionally, any Other than

Small Business Offeror must have an acceptable Small Business Subcontracting Plan to receive an award in accordance with FAR 19.702(a).

5. The Production, Operations, Past Performance, and Small Business Participation factors will be rated in an adjectival and narrative manner. The following definitions apply.

   a. Production Factor and Operations Factor: The ratings given for the Production Factor and the Operations Factor will reflect the degree to which the proposed approach meets or does not meet the requirements as identified under the Production Factor and Operations Factor through an assessment of the strengths, significant strengths, weaknesses, significant weaknesses, and deficiencies as defined below. Accordingly, Volume 1 – Production and Volume 2 – Operations will be evaluated utilizing the following adjectival ratings:

Color	Rating	Description
Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation, and thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

      i. The adjectival and color rating from the table above has an assessment of technical risk, which is manifested by the identification of weakness(es), considers potential for disruption of schedule, increased costs, degradation of performance, the need for increased USG oversight, and/or the likelihood of unsuccessful contract performance. The evaluation will not assign separate risk ratings; however, the definitions for risk are below for informational purposes.

Low Risk - Proposal may contain weakness(es) which have low potential to cause disruption of schedule, increased cost or degradation of performance. Normal contractor effort and normal USG monitoring will likely be able to overcome any difficulties.

Moderate Risk - Proposal contains a significant weakness or combination of weaknesses which may potentially cause disruption of schedule, increased cost or degradation of performance. Special contractor emphasis and close USG monitoring will likely be able to overcome difficulties.

High Risk - Proposal contains a significant weakness or combination of weaknesses which is likely to cause significant disruption of schedule, increased cost or degradation of performance. Special contractor emphasis and close USG monitoring will unlikely be able to overcome any difficulties.

Unacceptable Risk - Proposal contains a deficiency or a combination of significant weaknesses that cause an unacceptable level of risk of unsuccessful performance.

ii. The following definitions apply:

Strength - An aspect of an Offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the USG during contract performance.

Significant Strength - An aspect of an Offeror’s proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the USG during contract performance.

Weakness - A flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Weakness - A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance.

Deficiency - A material failure of a proposal to meet a USG requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Uncertainty - any aspect of a non-cost/price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).

iii. Each Subfactor within Volume 1 – Production and Volume 2 - Operations will be evaluated utilizing the same adjectival ratings and then combined to result in one overall factor rating based upon the order of importance.

b. Past Performance - Past Performance will be evaluated to assess an overall confidence rating for each Offeror utilizing the rating criteria identified in Volume 3 – Past Performance below.

c. Price - Price will be evaluated but not rated. See Volume 4 - Price below, and corresponding price matrices, for details on how the USG will determine the total evaluated price of each proposal.

d. Small Business – Small Business Participation will be evaluated to develop one overall rating for each Offeror utilizing the adjectival ratings identified in Volume 5 – Small Business below.

6. The USG reserves the right to make award to other than the lowest priced Offeror, or other than the highest-rated Offeror for any non-price factor.

7. The USG will evaluate each proposal strictly in accordance with its content and will not assume that performance will include areas not specified in the Offeror's proposal.

8. Use of Artificial Intelligence (AI) tools in Proposal Evaluation

   a. Use of AI tools in Support of Evaluations: The USG will employ AI as a tool to assist in the analysis and review of Offeror proposals. AI tools may be used to support tasks such as summarizing proposal content, identifying compliance with request for task order proposal / solicitation requirements, and highlighting areas of potential strength, weakness, or risk.

   b. Maintaining Inherently Governmental Functions: Notwithstanding the use of AI tools to support the evaluation process, all final evaluation judgements, including the assignment or assessment of adjectival ratings, best value determinations, and source selection decisions, will be made exclusively by duly appointed USG personnel. The USG retains sole responsibility for all inherently Governmental functions and will not delegate decision making authority to any AI tool.

   c. Offeror Confidentiality and Data Protection: The AI tools utilized by the USG will be employed in a manner consistent with applicable regulations that govern the protection of proprietary and source selection sensitive information. The AI tool will be an output-only system. Any generated report data is not saved. No proposal data will be transmitted to or processed by external, non-USG systems without appropriate safeguards and authorizations in place.

9. The Offeror's proposal should contain its best terms. The USG intends to evaluate proposals and award a contract without conducting discussions (except for clarification as described in FAR 15.306(a)), as permitted by FAR 15.306(a)(3) and FAR 52.215-1; however, the USG reserves the right to conduct discussions with Offerors whose proposals have been determined to be within the competitive range, if necessary. If the PCO determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the PCO may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals. If the PCO determines discussions are necessary, they will be held IAW FAR 15.306.

10. When rating a subfactor, the USG will only evaluate the information provided in the section of the proposal addressing that particular subfactor. When rating a factor that does not have subfactors, the USG will only evaluate the information provided in that volume. The USG will not supplement the information found in one subfactor or volume with information found in another as part of its evaluation; however, any inconsistencies found in the proposed approach under one volume or subsection which call into question the veracity, credibility, or reliability of statements made in other sections or volumes may be taken into consideration.

11. If an Offeror takes exception to any of the terms and conditions of the solicitation, the offer may not be considered for contract award. All Offerors are urged to ensure that their initial proposals are submitted with the most favorable terms in order to reflect their best possible potential.

12. Pursuant to FAR 9.103, a contract will only be awarded to an Offeror that the PCO determines to be responsible. Separate from the source selection criteria, the Offeror must be able to demonstrate that it meets the standards of responsibility set forth in FAR 9.104. The USG may conduct a pre-award survey on any Offerors considered for award, to assist in the PCO's determination of Contractor Responsibility.

B. VOLUME 1 – PRODUCTION (Oral Presentation)

The USG will evaluate the Production Factor based on the following:

Subfactor 1: Production Processes (Oral Presentation)

1. The USG will evaluate the Offeror’s proposal focusing on the technical merits of the Offeror’s production methodology, adherence to safety standards, and compliance to military specifications.

    a. **Technical Approach and Production Process Description**

i. Evaluation of Unit Operations: The Offeror adequately provided a detailed description of the unit operations involved in the production of each product, including but not limited to:
   1. **Single Base (AFP001)**: Outlined the specific processes for the production of single-base propellants, including mixing, granulation, and drying. Any NC-specific details can be addressed with 4. below.
   2. **Double Base (RPD 596)**: Described the unique steps involved in producing double-base propellants and how they differ from single-base processes. Any NC and NG-specific details can be addressed with 4. and 6. below.
   3. **Triple Base (M31A2 or alternate)**: Detailed the additional complexities involved in producing triple-base propellants, including the integration of nitrocellulose, nitroglycerin, and stabilizers. Any NC and NG-specific details can be addressed with 4. and 6. below.
   4. **Nitrocellulose (NC) (Grade C and Grade D)**: Provided a comprehensive overview of the manufacturing processes for nitrocellulose, including the nitration process, purification, and drying stages.
   5. **Solventless (MK90)**: Explained the solventless production techniques, emphasizing any unique equipment or methodologies used to ensure product integrity without solvents. Any NC and NG-specific details can be addressed with 4. above and 6. below.
   6. **Nitroglycerin (NG)**: Outlined the synthesis of nitroglycerin, focusing on the nitration process, safety measures, and the handling of reactive chemicals.

b. **Key Process Parameters and Conditions**

i. The Offeror adequately identified and described critical process parameters (e.g., temperature, pressure, humidity) for each product. The evaluation will consider:
   1. The adequacy of monitoring and control systems in place to maintain these parameters.
   2. The rationale behind the selection of specific conditions to ensure product quality and safety.

c. **Process Safety Information**

i. The Offeror provided comprehensive safety information relevant to each production process, including:
   1. Hazard analysis and risk assessments conducted for each product.
   2. Safety protocols for handling hazardous materials and emergency response plans.
   3. Description of safety equipment and measures implemented during the production process.

d. **Process and Quality Control**

i. The Offeror adequately identified and detailed quality control measures, focusing on:
    1. Methods for monitoring process stability and product quality throughout production.
    2. Procedures for ensuring compliance with MIL SPEC requirements.
    3. Documentation and traceability of quality control activities.

e. **Inspection and Testing Protocols**

i. The Offeror outlined its in-process and final inspection and testing procedures, including:
    1. Description of in-process checks and criteria for product acceptance.
    2. Final product testing methodologies and compliance verification with specifications.
    3. Any certifications or third-party validations obtained to ensure quality and safety.

Subfactor 2: Technical and Production Capability (Oral Presentation)

1. Workload and Facility Utilization Plan: The Government will evaluate the Offeror's Workload and Facility Utilization Plan to assess the degree to which it presents a convincing, comprehensive, and well-integrated long-term strategy for optimizing facility utilization and enhancing operational capabilities. The evaluation will focus on the clarity, feasibility, and thoroughness of the Offeror's approach.

   a. Management Approach

      i. The Offeror's described management approach will be evaluated on its clarity, logic, and level of detail in defining the proposed organizational structure that clearly delineates lines of authority and roles and responsibilities for all key personnel.
      ii. The Government will assess the robustness and maturity level of the corporate management systems, controls, and procedures and how those are directly applicable to the Offeror’s plan.
      iii. The Government will assess the decision-making process and communication plan for proactiveness, transparency, and timely information flow to the Government.

   b. Integrated Workload Schedule: The Government will conduct a comprehensive evaluation of the Offeror's detailed Integrated Workload Schedule to assess the extent to which it presents a credible, strategically sound, and fully integrated 10-year operational and investment plan. The evaluation will focus on the clarity, realism, and coherence of the schedule as a single, cohesive document that demonstrates the Offeror's long-term vision and capability to execute it.

i. Integration and Coherence: The schedule will be evaluated on how effectively it integrates the four required elements (Projected Workload, Capacity Growth, New Capability Integration, and Investment/Modernization Realization). The Government will assess the logical and causal links between these elements. A key consideration will be whether the schedule clearly demonstrates the interdependencies, for example, how a specific investment in Year 2 leads to the integration of a new technology in Year 3, resulting in increased production capacity for a new product starting in Year 4. The Government will assess the level of detail regarding clear dependencies and critical path elements outlined in the schedule.

ii. Realism and Detail: The Government will assess the realism and achievability of the proposed timelines, milestones, and projections. The level of detail will be a critical consideration to include specific, quantifiable milestones, realistic ramp-up periods for new production, and well-defined project timelines. The evaluation will assess whether the schedule represents a workable plan versus a mere aspirational goal.

iii. Strategic Soundness: The schedule will be evaluated on the soundness of the underlying long-term strategy it represents. The Government will assess the proposed allocation and transition between legacy and new product manufacturing, the strategic timing of capacity growth to meet projected demand, and the logic for when and how new capabilities and modernization efforts are brought online to enhance operational efficiency and competitiveness. The schedule should tell a coherent story of the facility's evolution over the next decade.

c. Workload Plan Narrative: The Government will conduct a detailed evaluation of the Workload Plan Narrative to assess the strength, credibility, and thoroughness of the strategy and assumptions that underpin the Offeror’s 10-Year Integrated Workload Schedule. The evaluation will focus on how well the narrative explains the "why" behind the schedule, demonstrating a deep understanding of the market, a viable plan for securing workload, and a clear vision for enhancing facility operations. A critical element of this evaluation will be the direct and explicit correspondence between the narrative's claims and the milestones presented in the schedule.

i. Market Analysis and Risk Mitigation: The Government will evaluate the depth and thoroughness of the Offeror's analysis of the entire energetics market, including both direct and indirect U.S. Government requirements. The assessment will focus on how effectively this analysis informs a detailed, specific, and credible risk mitigation strategy. The strategy will be evaluated on its ability to realistically address potential fluctuations in U.S. Government workload and ensure the long-term viability and stability of the facility. A key discriminator will be the clear, logical line drawn from market data to specific risk mitigation actions.

ii. Strategic Planning (Diversification and Business Capture): The evaluation will assess the clarity and viability of the Offeror's description of its product strategy (legacy and new) and its associated diversification efforts. The diversification strategy will be rated on the level of detail provided for target markets. The Business Capture Plan will be evaluated on its clarity and, most importantly, its actionability. The Government will assess whether the plan contains specific, measurable, and realistic steps to supplement and stabilize the workload shown in the schedule, as opposed to being merely aspirational.

iii. Implementation Feasibility: The Government will evaluate the feasibility of executing the proposed workload by examining the Offeror's plan for Production Line Utilization. The assessment will focus on the specificity of the identified production lines and the clarity and completeness of the description of any proposed modifications or enhancements.

iv. Demonstration of Value: The evaluation will assess the quality of the summary demonstrating how the proposed workload and investments enhance the facility. The narrative will be assessed on how convincingly it argues that the integrated plan will lead to tangible improvements in overall operational efficiency, long-term stability, and modernization.

d. Performance Evaluation Methodology: The Government will evaluate the Offeror's described internal Performance Evaluation Methodology to assess the robustness and credibility of the Offeror's approach to self-monitoring, performance measurement, and continuous improvement. The evaluation will determine the extent to which the proposed methodology provides a comprehensive and integrated system for ensuring the successful execution of the Workload and Facility Utilization Plan. The focus will be on how well the methodology enables proactive management, data-driven decision-making, and timely course correction. The methodology will be evaluated as a single, integrated system encompassing metrics, data analysis, and corrective actions.

i. Relevance and Quality of Performance Metrics: The Government will evaluate the quality, relevance, and comprehensiveness of the proposed Key Performance Indicators (KPIs) and other metrics. The assessment will focus on whether the proposed metrics are specific, measurable, and directly tied to the technical, schedule, and investment objectives outlined in the Workload and Facility Utilization Plan.

ii. Data Collection and Analysis Methodology: The evaluation will assess the Offeror's described methodology for data collection and analysis. This includes the clarity of the data collection processes (what data, from where, how often) and the sophistication of the analysis used to turn raw data into meaningful information. The Government will evaluate how the Offeror plans to use the analyzed data to include methodologies that clearly describe how performance data will be translated into actionable insights to drive continuous improvement and proactive management.

iii. Corrective Action Process: The Government will evaluate the Offeror’s described Corrective Action Process for its clarity, rigor, and timeliness. The assessment will review the process for identifying performance deviations from the plan, the thoroughness of the methodology for conducting root cause analysis, the effectiveness of the process for developing and implementing timely corrective actions and the assurance that issues are not only resolved but that lessons learned are fed back into planning to prevent recurrence.

2. Integrated Waste Stream Management Plan: The Government will conduct a comprehensive evaluation of the Offeror's Integrated Waste Stream Management Plan (IWSMP) to assess its clarity, feasibility, and innovation. The evaluation will focus on the extent to which the plan demonstrates a forward-thinking, holistic approach that integrates operational efficiency with a strong commitment to environmental stewardship. The IWSMP will be assessed as a single, cohesive plan where all four required components work together to present a credible and advantageous solution for the Government.

   a. Waste Minimization and Monetization Strategy: The Government will evaluate the detail and credibility of the Offeror's strategy to minimize waste and generate revenue. The assessment will focus on the specificity of the proposed process optimizations and the identification of named, specific commercial outlets for byproducts and out-of-specification products. A key discriminator will be the robustness and clarity of the methodology to track and report on projected revenue and cost savings, as this demonstrates a tangible financial benefit to the Government. Innovative approaches that go beyond standard industry practice will be assessed.

   b. Hazardous and Nonhazardous Material Storage: The evaluation will assess the rigor and proactiveness of the Offeror’s described time-bound process to prevent material storage beyond two years. The Government will focus on the level of detail provided for the inventory tracking, aging analysis, and disposition-triggering procedure to include the integration of automated, proactive systems. The evaluation will assess the degree to which the proposed process ensures consistent compliance with all applicable regulations.

   c. Legacy Waste Elimination Plan:

      i. Reduction Schedule: The Government will evaluate the Offeror’s proposed schedule for its commitment to reducing the legacy waste inventory. The Government will assess the level of detail and creditability of schedules that credibly demonstrate an annual reduction significantly exceeding the 10% minimum.

ii. Technical Approach: The Government will assess the soundness and detail of the technical approach, focusing on the specificity of the described methodologies, technologies (e.g., treatment, recycling, disposal), and disposition pathways for waste characterization, packaging, transportation, and final disposal.

iii. Progress Reporting: The Government will evaluate the proposed methodology and sample Annual Reduction Report for its clarity and thoroughness, assessing how effectively it provides transparent and comprehensive insight into performance against the proposed schedule.

d. Key Performance Indicators (KPIs): The Government will evaluate the quality, relevance, and justification of the distinct KPIs proposed. The evaluation will assess how well each KPI quantitatively measures the success of the IWSMP. A key discriminator will be the clarity of the defined measurement methodology, data sources, and performance targets, and how these are explicitly linked to driving continuous improvement over the life of the contract.

C. VOLUME 2 – OPERATIONS (Oral Presentation)

Subfactor 1: Facility Investment and Modernization (Oral Presentation)

1. Facility Investment and Modernization Plan: The Government will evaluate the Offeror's proposed Facility Investment and Modernization Plan to assess its overall quality, credibility, and strategic value. The evaluation will discriminate between proposals based on the degree to which the Offeror presents a specific, comprehensive, and integrated strategy versus a generic or superficial response. The four components of the plan will be evaluated as follows:

   a. Evaluation of Strategic Facility Self-Investment Approach

      i. The Government will evaluate the credibility and strategic value of the Offeror's approach to self-investment. The evaluation will assess the degree to which the proposed strategy for establishing new capabilities demonstrates a clear understanding of RFAAP's potential and a commitment to enhancing its long-term viability.

      ii. The Government will evaluate the level of specific, high-impact investment areas targeted and the Offeror's approach to leveraging mechanisms like Tenant Use Agreements to realize and bring new capabilities to RFAAP.

   b. Evaluation of Short-Term Facility Upgrade Approach

      i. The Government will conduct a comprehensive evaluation of the Offeror's Facility Reset Plan based on its feasibility, level of detail, and the soundness of its prioritization. The evaluation will focus on:

1. Comprehensiveness and Prioritization: The degree to which the plan presents a convincing, integrated, and prioritized strategy that addresses the required elements in Section L XXXX. The level of detail and compelling logic utilized to support the Offeror's proposed prioritization will also be assessed.

2. The evaluation will also assess the value proposition of the proposed co-investment, including the justification for the Government matching fund ratio.

c. Evaluation of the Facility Reset Plan

i. The Government will conduct a comprehensive evaluation of the Offeror's Facility Reset Plan based on its feasibility, level of detail, and the soundness of its prioritization. The evaluation will assess:

1. Comprehensiveness and Prioritization: The degree to which the plan presents a convincing, integrated, and prioritized strategy that addresses all required elements in Section L XXX to include clear logic for their prioritization and a credible timeline for achieving significant improvements within the first six months.

2. Specific Strategies: The credibility and thoroughness of the specific strategies for critical elements, including the plan to achieve full independence for the Modernized NC Facility and the plan for the disposition of non-conforming materials. A specific, actionable plan for the NC fines will be considered more favorable than a simple acknowledgment of responsibility.

3. Explosive Site Safety Strategy: The extent to which the explosive site safety strategy is thoughtfully integrated into the entire reset plan, rather than being addressed as a separate or ancillary requirement.

d. Long-Term Modernization Plan

i. The Government will evaluate the Offeror's Long-Term Modernization Plan based on the quality of its strategic vision and the credibility of its execution roadmap. The evaluation will focus on:

1. Modernization Roadmap: The quality, credibility, and level of detail provided in the 10-year roadmap. The evaluation will assess the logic of the project sequencing and the defensibility of the Class 5 ROM estimates.

2. Commitment to Private Investment: A key discriminator will be the specificity and significance of any planned private investment. The evaluation will assess the purpose and timing of the investment, its alignment with Army objectives, and the strength of the evidence provided to demonstrate financial capability.

3. Integration of Explosive Site Safety: The degree to which the Explosive Site Safety Strategy is demonstrated to be a foundational component of the modernization vision and roadmap.

Subfactor 2: Maintenance, Utilities and Safety (Oral Presentation)

1. Maintenance Program and Performance Management: The Government will evaluate the Offeror's oral presentation to assess the degree to which its proposed approach to maintenance demonstrates a thorough understanding of the requirements and presents a comprehensive, integrated, and credible solution for RFAAP. The evaluation will focus on the quality and feasibility of the Offeror's plan to optimize asset lifecycle, ensure mission readiness, and drive continuous improvement. The evaluation will discriminate between proposals based on the degree to which the Offeror provides specific, evidence-based, and integrated approaches versus generic or superficial restatements of the PWS requirements.

    a. Integrated Maintenance Framework: The Government will evaluate the degree to which the Offeror's proposed framework is specifically tailored to RFAAP's operational environment and current condition.

        i. The evaluation will assess the sophistication of the Maintenance Optimization Strategy, focusing on how the Offeror uses a defensible, data-driven model to justify trade-off decisions between competing priorities like asset lifecycle, production availability, and cost.

        ii. The assessment will consider the integration of the proposed tools, technologies, and methodologies, looking for a seamless, predictive system rather than a disconnected list of capabilities.

    b. Resource and Work Order Management: The Government will evaluate the credibility and proactivity of the Offeror's proposed system for managing resources and work orders.

        i. The Government will assess the Work Order Management Approach based on the details provided, including the use of a multi-factor prioritization algorithm to manage workflows.

        ii. The Government will evaluate the Offeror's specific, metric-based plan to actively manage and reduce any inherited work order backlog and provide real-time visibility to all stakeholders.

c. Major Maintenance Program: The Government will evaluate the Offeror's plan based on the strategic forethought and financial acumen demonstrated.

   i. The evaluation of the Project Identification and Prioritization Strategy will be based on the sophistication and defensibility of the proposed model for creating the 1-N list.

   ii. The Government will evaluate the extent to which proposals illustrate a model with credible project scenarios and demonstrate a focus on optimizing the strategic impact of the annual investment, rather than simply expending funds.

   iii. The evaluation will also assess the rigor of the financial management plan, including the Offeror's approach to cost estimation, variance tracking, and risk management.

d. Performance Management and Improvement: The Government will evaluate the Offeror's proposed performance system for its potential to drive meaningful, continuous improvement.

   i. The Government will assess the structure and detail of the proposed closed-loop continuous improvement process, including defined triggers for action when a KPI trends negative.

   ii. The evaluation will assess the insightfulness of the Offeror's proposed additional KPIs, focusing on whether the KPIs provide predictive insight or identify root causes of inefficiency.

   iii. The Government will evaluate the extent to which the Offeror justifies and assigns clear ownership for each proposed KPI.

e. Innovation and Predictive Maintenance (PdM): The Government will evaluate the Offeror's approach to innovation and PdM based on its credibility and specificity.

   i. The evaluation will discriminate based on the Offeror's ability to substantiate claims of quantifiable savings with clear methodologies and projected return on investment.

   ii. For PdM, the evaluation will assess the realism of the proposed implementation plan, focusing on whether the Offeror presents a phased approach that targets specific asset classes based on a clear risk and return analysis, and demonstrates how PdM outputs will be integrated into the overall maintenance system.

2. Utilities and Energy Management Plan: The Government will evaluate the Offeror's proposed Utilities and Energy Management Plan to assess the degree to which it presents a comprehensive, credible, and data-driven approach to ensure safe, reliable, and efficient utility operations at RFAAP. The evaluation will discriminate between proposals that provide specific, integrated strategies versus those that offer generic or superficial restatements of the PWS requirements.

   a. Evaluation of Overall Management and Operational Approach

      i. Energy Management System (EnMS) and Staffing

         1. The Government will evaluate the credibility and maturity of the proposed EnMS to include the level of detail provided to support a proactive, data-centric system for managing utilities rather than a plan that simply meets the minimum requirements.

         2. The evaluation will also assess the Offeror's staffing plan for its ability to provide appropriately certified professionals to manage the complexity of RFAAP’s utility systems.

      ii. Utilities Operations

         1. The Government will evaluate the Offeror's operational approach for each utility based on the depth of understanding demonstrated and the presence of clear, risk-mitigating operational strategies specifically tailored to RFAAP’s unique systems (e.g., co-generation powerhouse, multi-source natural gas procurement, complex water/wastewater treatment plants).

   b. Evaluation of Performance, Conservation, and Improvement

      i. Performance Indicators and Improvement Strategy

         1. The evaluation will focus on the feasibility and ambition of the Offeror's strategy to achieve the 5% annual EnPI improvement goal.

         2. The Government will assess the level of detail provided to substantiate the plan with specific, credible projects and process changes.

      ii. Metering Plan

         1. The Government will assess the credibility and detail of the Offeror's plan to meet the Army's metering compliance goals (75% within one year; 100% within two years).

2. The Government will evaluate the Offeror’s approach and supporting narrative to justify the proposed timeline and the potential challenges identified and how each will be mitigated.

iii. Continuous Improvement and Evaluations

1. The Government will evaluate the Offeror’s proposed process for executing continuous improvement projects and evaluations, considering how the outputs from evaluations directly feed the selection and execution of high-impact continuous improvement projects.

3. Safety Program Management: The Government will evaluate the Offeror’s proposed Safety Program Plan to assess its comprehensiveness, credibility, and the degree to which it demonstrates a proactive, data-driven safety culture. The evaluation will discriminate between proposals that provide specific, integrated, and mature processes versus those that offer generic restatements of the PWS requirements.

a. Evaluation of Compliance and Program Management: The Government will evaluate the depth and credibility of the Offeror's overall compliance methodology.

i. Process Safety Management (PSM): A key discriminator will be the quality and integration of the PSM plan. Proposals will be evaluated for a mature, interconnected program where the 14 PSM elements function as a cohesive system to proactively manage risk.

ii. Aged Infrastructure Strategy: The Government will evaluate the specificity and feasibility of the Offeror's approach to managing risks associated with aged infrastructure. Proposals will be evaluated for a clear, risk-based methodology for identifying, prioritizing, and mitigating known deficiencies (e.g., lightning protection, arc flash).

b. Evaluation of Hazard and Non-Compliance Tracking: The Government will evaluate the effectiveness of the proposed electronic tracking system. A key discriminator will be the system's described functionality. Proposals will be evaluated for a proactive management tool designed to facilitate root cause analysis, trend analysis, and predictive risk identification.

c. Evaluation of Key Performance Indicators (KPIs): The Government will evaluate the quality, relevance, and insightfulness of the Offeror-proposed KPI system and the specific KPIs within it.

i. Quality of KPIs: The evaluation will discriminate based on the quality of the three (3) proposed additional KPIs. Proposals that include meaningful leading indicators (e.g., "Percentage of Near-Miss Reports with Completed Corrective

Actions," "Average Time to Abate High-Risk Hazards") that can help predict and prevent future incidents.

ii. Justification and Impact: The clarity of the justification for each KPI and the description of how it will be used to drive specific, continuous improvement actions will be a key factor in the evaluation.

D. VOLUME 3 – PAST PERFORMANCE

1. The USG evaluates past performance information as a predictor of future contract performance. The USG will assess the degree of confidence it has in the expectation that the Offeror will successfully complete the solicitation requirements based on the Offeror's past performance, inclusive of JV partners, New Corporate Entities, Parent or Affiliated Companies, and Major Subcontractors' demonstrated record of recent and relevant performance.

2. It is the responsibility of the Offeror to provide complete past performance information and thorough explanations as required by Section L. The USG may use any of the following information as it evaluates an Offeror's past performance:

    a. Past performance information provided by the Offeror in its proposal for all companies identified in Section A – Contract References;

    b. Past performance information obtained from Past Performance Questionnaires; and

    c. Past performance information obtained from any other sources available to the USG for all companies identified in Section A – Contract References, to include, but not limited to, Contractor Performance Assessment Reporting System (CPARS), Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), or other databases; the Defense Contract Management Agency; and interviews with Program Managers, Contracting Officers, and Award Fee/Award Term Determining Officials.

3. The USG is not obligated to interview all points of contact identified by an Offeror nor is the USG limited to the points of contact provided.

4. The USG will first evaluate each reference to determine whether or not it is recent. Recency is defined as any supply contract under which any performance, delivery, or corrective action has occurred within 10 years of this final solicitation issuance, any services contract for operations and maintenance under which any performance, delivery, or corrective action has occurred within 10 years of this final solicitation issuance, and any services contract for modernization under which any performance, delivery, or corrective action has occurred within 10 years of this final

solicitation issuance . The USG reserves the right to consider any past performance after the solicitation closing date and prior to award.

5. The USG will evaluate each recent reference to determine the level of relevancy. Relevancy, as it pertains to past performance information, is a measure of the extent of similarity between the past performance reference and the solicitation requirements. If a contract reference contains both supply and service elements, such a reference will receive relevancy ratings for the service elements and a relevancy rating for supply elements based on the criteria below.

    a. Determining relevancy for the Offeror service past performance reference: The USG will consider the similarity of the services provided to the services required. Service references with a maximum contract value of less than $15M will not be considered relevant. Relevant service contracts are defined as contracts that demonstrate:

        i. The Offeror has provided facility support services associated with operation and maintenance of a chemical and/or energetic production facility.

        ii. The Offeror has provided facility services associated with modernization.

    b. Determining relevancy for the Offeror supply past performance reference: The USG will consider the degree to which the reference is comparable with regard to the complexity of the processes, the variability of products, and the volume of products to the solicitation requirements. The USG will consider whether the Offeror manufactured or performed chemical and/or energetic manufacturing. Supply references with a maximum contract value of less than $5M will not be considered relevant.

    c. The relevancy of the past performance information will be evaluated as follows:

Past Performance Relevancy Ratings	
Rating:	Definition:
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.

Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

6. The USG will review past performance information collected on the recent and relevant contracts to determine the quality of the Offeror's performance. The USG may consider the recency, relevancy, source, context of the past performance information it evaluates, general trends in performance, safety information, and demonstrated corrective actions. With respect to relevancy, past performance of greater relevancy will typically be a stronger predictor of future performance, or future inadequate performance, and have more influence on the past performance confidence assessment than past performance of lesser relevance. If the Offeror is a new entity and has provided contract references for a predecessor company, the USG will determine whether documentation has been provided that sufficiently demonstrates that the predecessor company was acquired, absorbed, and replaced by the prime Offeror as its successor. If contract references for parent or affiliated companies of the prime Offeror, individual JV members or major subcontractors are provided, the USG will determine whether the information submitted adequately demonstrates that the resources of the parent or affiliate will be relied upon and will affect the contract performance and demonstrates that the parent or affiliate will have meaningful involvement in contract performance. If an Offeror provided contract references for entities comprising of a JV, the USG will take into consideration how the effort required by the solicitation will be assigned to each entity comprising of the JV. Contracts for the JV itself may carry more weight than contracts references submitted for independent entities comprising the JV. In addition, the USG may give favorable consideration to JV relationships in the execution of the RFAAP contract as compared to Prime/Subcontractor relationships.

7. If an Offeror proposes the use of major subcontractors, the Offeror's past performance record will be assessed in its totality to determine the Offeror's overall past performance rating. The USG will take the type of work the Offeror proposes the major subcontractor(s) to perform into consideration when determining an Offeror's past performance confidence rating, as well as the resources parent or affiliated companies of major subcontractors that will be provided or relied upon which will affect the contract performance and demonstrates that the parent or affiliate will have meaningful involvement in contract performance. Relevancy for major subcontractors' parent or affiliated companies will be reviewed only in relation to the specific area(s) the major subcontractor is proposed to perform. Recent and relevant contract references for parent or affiliated companies of the prime Offeror or JV members will be considered in the USG's confidence rating based on an assessment of the resources that will be relied upon for contract performance and the parent or affiliate's areas of meaningful involvement. The relevancy definitions from Section L, Volume 3 will be applied to this limited relevancy review. In evaluating performance history, the USG may review the Offeror's and/or its major subcontractors' current and prior performance record of complying with all aspects of its contractual agreement.

8. Performance Confidence Assessment: Based on an assessment of the recent and relevant past performance information identified, the USG will determine an overall confidence rating for the Offeror in accordance with the definitions below. In the tradeoff analysis, greater value may be given to past performance ratings that are higher and lower than neutral ratings.

Performance Confidence Assessment	
Rating:	**Definition:**
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the USG has a high expectation that the Offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the USG has a reasonable expectation that the Offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available, or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the USG has a low expectation that the Offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the USG has no expectation that the Offeror will be able to successfully perform the required effort.

E. VOLUME 4 – PRICE

1. The USG will evaluate the price proposal submitted in response to the solicitation, but a rating will not be assigned. The USG will derive the Total Evaluated Price (TEP) from the Offeror's Price Matrix Attachment 0019 as follows:

   a. For the Production Price Matrix tabs (Volume Range 1 and Volume Range 2):

      i. For each production item in the Volume Range 1 and 2 tabs (Attachment 0019) the Offeror will propose a unit price. The unit price will be an Evaluated CLIN Price. The Evaluated CLIN prices and First Article Test prices for each ordering period will be summed to arrive at a Total Evaluated CLIN Price. Total evaluated CLIN prices will be summed and added to the Summary Evaluation Matrix and multiplied by the Facility Volume Weight to arrive at a weighted TEP. The weighted TEP for each range will be summed to arrive at a Total Production TEP.

ii. Given that indemnification cannot be assumed and the request for indemnification is at the Offeror's discretion, Production Price Matrix – Indemnified tab will not be included in the TEP, nor will failing to submit the indemnification matrix render the Offeror unacceptable. If the Awardee has submitted the Production Price Matrix – Indemnified tab, the PCO will determine if pursuing indemnification is in the USG's best interest prior to contract award. If the PCO determines that pursuing indemnification is in the USG's best interest, the Production Price Matrix – Indemnified tab will be reviewed to determine whether it is fair and reasonable as well as for unbalanced pricing. If the Offeror completes and submits the Production Price Matrix – Indemnified tab, the Offeror shall also complete and submit the Production Price Matrix (without Indemnification).

b. For the PWS Price tab:

i. For each PWS, the Price Matrix (Attachment 0019) will include the PWS's that will be directly funded at the start of the contract. The Offeror shall propose PWS direct funded amounts for Ordering Periods 1 through 10 and shall determine what amount will be applied indirectly to the product prices, with the PWS direct funding showing $0 in Ordering Period 10. The PWS directed funded amounts for each Ordering Period will be summed to arrive at a Total Evaluated PWS TEP in Attachment 0019.

ii. Given that indemnification cannot be assumed and the request for indemnification is at the Offeror's discretion, PWS Price Matrix – Indemnified tab will not be included in the TEP, nor will failing to submit the indemnification matrix render the Offeror unacceptable. If the Awardee has submitted the PWS Price Matrix – Indemnified tab, the PCO will determine if pursuing indemnification is in the USG's best interest prior to contract award. If the PCO determines that pursuing indemnification is in the USG's best interest, the PWS Price Matrix – Indemnified tab will be reviewed to determine whether it is fair and reasonable as well as for unbalanced pricing. If the Offeror completes and submits the PWS Price Matrix – Indemnified tab, the Offeror shall also complete and submit the PWS Price Matrix (without Indemnification).

c. In the Price Matrix Summary Evaluation Matrix tab (Attachment 0019), the Grand TEP will be derived from the Total TEPs across all tabs. **(The USG is accepting industry feedback on incorporation of NC Fines into the PWS cost or as an individual project, either way to be calculated into the TEP.)**

2. In accordance with FAR 15.404-1(b), the USG will use Price Analysis to determine price reasonableness. Additional analysis techniques may be used as determined necessary by the PCO. These methods of evaluation may include the use of information/input from sources such as, but not limited to, other USG agencies and personnel.

3. As part of the evaluation, proposals shall be reviewed to identify any unbalanced pricing. In accordance with FAR 15.404-1(g), Unbalanced Pricing, a proposal may be rejected if the PCO determines the lack of balance poses an unacceptable risk to the USG.

4. The USG anticipates receiving adequate price competition under this solicitation; therefore, cost or pricing data is not required to be submitted with the proposal. However, in the event the PCO determines that adequate competition does not exist, the USG reserves the right to require certified cost or pricing data to be submitted. Additionally, the USG reserves the right to request data other than certified cost or pricing data in the event such data is necessary to establish a fair and reasonable price.

5. The PCO reserves the right to make no award as a result of the solicitation if, upon evaluation, the proposed price(s) cannot be determined fair and reasonable.

F. VOLUME 5 – SMALL BUSINESS PARTICIPATION (Oral Presentation Only)

1. Small Business Participation Proposal Rating Methodology: The USG will assign an overall Small Business Participation Rating based on the level of small business participation. This requirement applies to Other Than Small Business Offerors (OTSB) only. Small Business Offerors will be given an Outstanding rating for this factor.

2. Small Business Participation Commitment: The USG will review the contents of solicitation Attachment 0035, Small Business Participation Commitment Document, integrated with the Small Business Participation Commitment methodology. The USG will consider the following aspects when evaluating the Offeror's Small Business Participation:

    a. Degree to which an Offeror meets or exceeds the USG's overall Small Business goal of 16.57%. The USG will also consider the proposed Small Business Participation Commitment methodology when evaluating the proposed socioeconomic goals.
    b. The proposed Small Business Participation Commitment methodology is well-reasoned and thought out with reliable data and any risk is appropriately assessed and mitigated.
    c. Degree to which the Offeror describes specific initiatives and how it directly supports industrial base growth and resiliency.
    d. Degree to which the Offeror has binding agreements in place with small business teaming partners/subcontractors. Enforceable commitments are to be weighted more heavily than non-enforceable ones.
    e. If applicable, degree to which demonstrated small business history has met or exceeded its small business utilization on similar contract/efforts.

3. The USG will develop one overall Small Business Participation rating for each Offeror based on the evaluation criteria described above and assign an adjectival Small Business Participation Rating from the table below:

Color	Rating	Description
Blue	Outstanding	Proposal indicates an exceptional approach and understanding of the small business objectives.
Purple	Good	Proposal indicates a thorough approach and understanding of the small business objectives.
Green	Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the small business objectives.
Red	Unacceptable	Proposal does not meet small business objectives.

4. OTSB Offerors' Small Business Subcontracting Plans will not be evaluated as part of the Small Business Participation Factor. The apparent awardee's Plan will be reviewed as part of the responsibility determination; the Plan must be acceptable and address the elements set forth in FAR Clause 52.219-9(d)(1) through (15) and must reflect and be consistent with the commitments offered in the final revised SBPCD (Attachment 0035). OTSB Offerors shall submit acceptable subcontracting plans to be eligible for award. The awardee's Small Business Participation Commitment Document (Attachment 0035) and the Small Business Subcontracting Plan will be incorporated into any resultant contract.

G. VOLUME 6 – INDEMNIFICATION REQUEST PACKAGE itself will not be included in the evaluation.

1. The Production Price Matrix – Indemnified tab and/or the PWS Price Matrix– Indemnified tab of attachment 0019 will not be included in the TEP, nor will failing to submit the indemnification matrices render the Offeror unacceptable. However, if the PCO determines that pursuing indemnification is in the USG's best interest, these prices will be evaluated to determine whether they are fair and reasonable as well as for unbalanced pricing. The prices are binding if indemnification approval is ultimately provided and approved by the Secretary of the Army and will be utilized in contract execution accordingly.

H. VOLUME 7 – SOLICITATION, OFFER AND AWARD DOCUMENTS AND CERTIFICATIONS/REPRESENTATIONS

This Volume will be evaluated based on completeness of documents required to be included in this Volume.